

# DUDLEY BOROUGH DEVELOPMENT STRATEGY

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Adoption March 2017



DUDLEY COUNCIL'S REGENERATION SERVICE

**REGENERATING**





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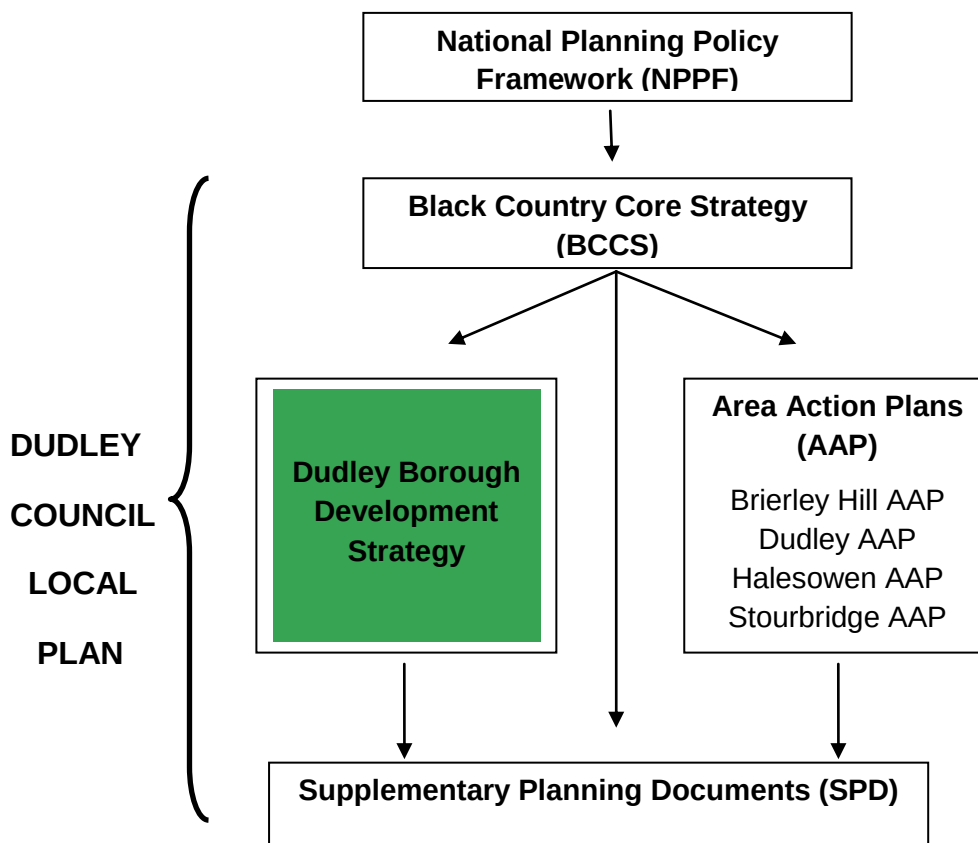
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## Introduction

This Document forms part of Dudley Council's Local Plan alongside other documents which have recently been prepared and adopted to replace the Dudley Unitary Development Plan 2005. These documents have been prepared to be in general conformity with the National Planning Policy Framework (NPPF), first published by the Department for Communities and Local Government DCLG in April 2012, and will guide future planning decisions. The four Black Country Authorities of Dudley, Sandwell, Walsall and Wolverhampton have also prepared and adopted the Black Country Core Strategy as the strategic planning document for the Black Country which was adopted on 3rd February 2011.

The documents which make up the Dudley Local Plan as well as the wider strategic planning documents which influence planning decisions within the Borough are illustrated below.



The Black Country Core Strategy identifies an approach founded on Strategic Centres and Corridors. This Borough Development Strategy is a key document of the Dudley Local Plan and builds on the Black Country Core Strategy, providing much greater detail for Dudley Borough. Within the Borough, each of the four main town centres of Brierley Hill, Stourbridge, Halesowen and Dudley are covered by separate Area Action Plans as set out below.

| Development Document                 | Adoption Date |
|--------------------------------------|---------------|
| Brierley Hill Area Action Plan (AAP) | February 2011 |
| Stourbridge AAP                      | October 2013  |
| Halesowen AAP                        | October 2013  |
| Dudley AAP                           | February 2017 |

The determination of planning applications must be in accordance with any of the documents which make up the Local Plan unless material considerations indicate otherwise. It is important therefore that each document which makes up the Local Plan is not read in isolation.

### Purpose and Role of the Borough Development Strategy (BDS)

This document, the BDS, guides development within the Borough until 2026 by providing allocations and local planning policies to give greater certainty to the development process.

The BDS has been prepared to be in conformity with the spatial strategy set out in the adopted Black Country Core Strategy (BCCS). This strategy is based on concentrating development within regeneration corridors and centres to provide the quantities of housing growth and employment land across the Black Country. This document therefore provides the detailed land use allocations and designations within these broad areas to meet the Borough's housing and employment land requirements up to 2026. **However as other material considerations can affect the decision making process, an allocation does not necessarily represent an unconditional approval for that use.**

This document also provides a series of local policies and links to other strategies to respond to particular issues in the Borough which are not covered by the Core Strategy, and these will be used alongside the Core Strategy when considering planning applications for the use and development of land. These policies, alongside all of the other adopted documents highlighted above which make up the Dudley Local Plan replace what remains of the Dudley Unitary Development Plan which was originally adopted in 2005.

In addition the document promotes the infrastructure requirements to achieve sustainable communities particularly with regard to requirements for transport, community facilities, education, health as well as the natural, built and historic environment.

The Document also contains a final list of site allocations and is therefore accompanied by a detailed Proposals Map for the Borough.

## Preparing the BDS and developing the policies and site allocations

### **Scoping and Issues – July 2010.**

As a first step towards the production of the Borough Development Strategy (BDS), this first document indicated which areas were broadly earmarked for employment retention and which areas were to be explored more fully for other potential uses such as housing in accordance with the Black Country Core Strategy.

### **Preferred Options Document - July 2014.**

Ongoing community engagement took place with landowners, businesses, developers and ward members on a series of draft planning policies to supplement the Core Strategy as well as providing Dudley-specific policies to replace those retained within the Dudley Unitary Development Plan.

### **Proposed Modifications – August 2015.**

Following representations received, a series of proposed modifications was published for consultation before being incorporated into the Publication version of the Document.

### **Publication version – January 2016.**

This contained a final draft set of policies and a final draft version of housing and employment site allocations across the Borough.

### **Submission – March 2016**

Following consultation at the publication stage, a final version was submitted to the Secretary of State for Communities and Local Government

### **Examination in Public – May 2016**

The Planning Inspectorate carried out an Examination in Public including Public Hearings. The chosen Planning Inspector produced a Report into the soundness of the document which was received by the Council in October 2016.

## The Structure of this Document

This document is divided into three main parts.

**PART ONE** - Planning Policies to supplement the Black Country Core Strategy and replace the remaining policies within the saved Dudley Unitary Development Plan (2005). The policies are grouped into a series of themes – Strategic Policies, Land Use Policies and Development Management Policies.

**PART TWO** – Part Two focuses on the six Regeneration Corridors which cross the Borough as identified in the Black Country Core Strategy. There is a Chapter on each Corridor which details the future direction of development and also provides

site allocations within each Corridor. There is also a section on other areas outside of the Corridors where site allocations are proposed.

**PART THREE** – A series of plans of the three District Centres of the Borough (Kingswinford, Lye and Sedgley) and the fifteen local centres as set out in the Retail and Centres Chapter of the Document. The plan of each centre features the area which is subject to Policy L9 on Protected Frontages and any key regeneration opportunities in each centre.

**APPENDIX 1** – Proposals Map

**APPENDIX 2** – List of Superseded Policies

### Further Information

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## **PART ONE – PLANNING POLICIES**





## STRATEGIC POLICIES

### Planning for a Sustainable Future

#### Presumption in favour of Sustainable Development

In accordance with the National Planning Guidance the DPD has included a “Model Policy” which highlights that through all the Development Plan Policies and allocations the Council’s key aim will be to promote and take a positive approach to achieving sustainable forms of development within the Borough.

The delivery of sustainable development is at the heart of the Council’s adopted Core Strategy and is a cross cutting theme of this DPD. The Council considers that development at a local level can have a wider impact and therefore requires an integrated approach to new development, which promotes an innovative and productive economy, services and facilities that are socially inclusive and balanced communities in ways, which protect and enhance the wider environment and minimise the use of resources and consumption of energy. These policy objectives cut across all of the policies within this document.

#### **Policy S1 – Presumption in favour of Sustainable Development**

When considering development proposals the Council will take a positive approach that reflects the presumption in favour of sustainable development contained in the National Planning Policy Framework (NPPF) and the sustainability principles contained within the Black Country Core Strategy. It will also work proactively with applicants jointly to find solutions which mean that proposals can be approved wherever possible, and to secure development that improves the economic, social and environmental conditions in the area.

Planning applications that accord with the policies in this DPD and / or the Black Country Core Strategy and/or the Area Action Plans for Brierley Hill, Stourbridge or Halesowen will be approved without delay, unless material considerations indicate otherwise.

Where there are no policies relevant to the application or relevant policies are out of date at the time of making the decision then the Council will grant planning permission unless material considerations indicate otherwise-taking into account whether;

- any adverse impacts of granting permission would significantly and demonstrably outweigh the benefits, when assessed against the policies in the NPPF as a whole; or
- specific policies in the NPPF indicate that development should be restricted

## Planning for a Healthy Borough

Developing strong, healthy and vibrant communities is vital to ensuring the well-being of the Borough's population. The Planning system plays a pivotal role in helping to maintain and improve the health and well-being of local communities through raising the quality of new developments and ensuring that they are accessible for all.

### Policy S2 – Planning for a Healthy Borough

Dudley Council is committed to fostering a borough where people enjoy good health, well being and are supported to make healthy choices for a more active lifestyle. The application of Planning Policy, including the guidance set out within The Planning for Health Supplementary Planning Document (SPD), will help in achieving this aim.

In particular, Dudley Council will;

1. utilise spatial planning to help address obesity and improve fitness and general well being by ensuring that environmental infrastructure is protected and enhanced and additional facilities are provided, with a focus on :-
  - open space, playing fields and sports facilities which are accessible to all
  - creating environments conducive to cycling and walking and aiming to create walkable neighbourhoods accessible to and integrated with a wide range of transport means in conjunction with Core Strategy Policy TRAN4
  - promoting active travel through the application of Travel Plans (CS Policy TRAN2), giving priority to pedestrians and cyclists, and aiming to connect new development to existing walking and cycling networks such as the canal network
  - protecting and enhancing Dudley's Green Network including woods and trees.
2. ensure that existing health, education, cultural and community facilities are protected and that the siting of such facilities meets the criteria set out in Core Strategy Policy HOU5 and Policy EMP6 to ensure accessibility and choice for the benefit and well being of all communities within the Borough
3. apply the following measures to promote health related sustainable development as appropriate;
  - seeking to improve air quality (Core Strategy Policy ENV8 ) and reducing noise pollution (Policy D5) within the borough
  - controlling the concentration of hot food takeaways and promoting greater access to healthy food, including the creation and protection of

allotments

- ensuring the submission of a Health Impact Assessment (HIA), where required in support of development proposals
  - providing good quality and well designed housing which is readily accessible to employment, education, health and community facilities and fresh food (Core Strategy Policies HOU2 and ENV3)
  - promoting safe residential environments and addressing the fear of crime (Core Strategy Policy ENV3)
  - improving road safety (Core Strategy Policy TRAN2)
  - addressing climate change issues and sustainable building principles (Policy S3)
  - requiring new large commercial and public buildings to include facilities for baby changing and breastfeeding
4. support community based projects which promote physical activity and campaigns such as *Walk to School Week* and *Bike to Work Week* and work in partnership with the NHS, business partners and agencies to enable health strategies to be interlinked and cross cutting.

## Renewable Energy

In promoting the sustainable development of the Borough, the Borough Development Strategy will attempt to address some of the causes and consequences of climate change. It will conform, and be closely linked to, climate change policies in national policy and in the Black Country Core Strategy (BCCS) (adopted February 2011) in particular policies ENV3 “Design Quality”, ENV5 “Flood Risk, Sustainable Drainage Systems and Urban Heat Island” and Policy ENV7 “Renewable Energy”.

Addressing climate change will require the widespread uptake of sustainable energy sources and decentralised energy systems, through greater support of both established and innovative low carbon and renewable energy technologies. A Decentralised Energy System that produces energy in the form of heat and electrical power at, or near, the point of use provides the opportunity to improve the utilisation of energy and reduce the intensity of use within the established energy network. This, in part, helps to achieve the Government’s ambitions towards reduction in conventional energy use.

Due to the built up nature of the Borough, wind turbines are likely to be limited in their use and positioning, but other renewable technologies such as photo-voltaic cells, ground and air source heat pumps and other forms of renewable energy may be appropriate in many parts of the Borough.

## Policy S3 - Renewable Energy

All Major planning applications within the Borough are required to be accompanied by an Energy Assessment to fulfil the objectives of Policy ENV7 of the Black Country Core Strategy, as articulated by the guidance contained within the Council's Renewable Energy SPD and also to address the following factors;

- the potential to connect to existing / planned networks and maximise opportunities for the generation of renewable energy
- an evaluation of the potential use of combined cooling, heat and power (CCHP) and combined heat and power (CHP) systems and, where such a system is to be installed, examine opportunities to extend the scheme beyond the site boundary to adjacent sites
- Incorporate the latest standards of energy and water efficiency into the conversion and / or extension of existing buildings wherever possible including the retrofitting of such buildings
- investigate using canal water for the heating and cooling of developments where they are near to the canal network with no intervening roads and railway lines.

## Flood Risk

The Borough is affected by a number of different sources of flood risk, including fluvial (river) flooding, but more increasingly through surface water, sewer and groundwater flooding due to the surcharging of sewers and drains and the limitations of the existing infrastructure. Development proposals in flood risk areas are therefore required to take account of all sources of flooding and demonstrate this through the submission of Flood Risk Assessments (FRAs). Flood Risk Assessments may also be required for smaller development proposals in low flood risk areas), where there is evidence of a risk from any source of flooding identified in the Strategic Flood Risk Assessment or the Council's Preliminary Flood Risk Assessment (PFRA) report and surface water flood risk maps.

In certain circumstances an 'Exception Test', may be required to demonstrate that the level of flood risk associated with the site is acceptable and the development is able to mitigate against, and minimise, the risk of flooding without increasing the risk of flooding elsewhere.

The flood zones are identified on the policies maps and will updated as necessary during the lifetime of the plan.

## Policy S4 - Flood Risk

The Council will require Flood Risk Assessments (FRAs) to be prepared in support of planning applications for;

- all developments within Flood Zone 1 (low risk) for development proposals of 1 hectare or greater and all proposals for new development in Flood Zone 2 (medium risk) or Flood Zone 3 (high risk) as identified in the Environment Agency's flood maps which are updated quarterly and represent the best available information and the Council's surface water flood risk maps and Preliminary Flood Risk Assessment (PFRA) report
- all developments identified as at risk from other sources of flooding as identified in the updated flood maps included in the Council's Preliminary Flood Risk Assessment produced in 2011 including surface water, sewer and groundwater flooding
- all developments identified as at risk from flooding in the PFRA report and indicated on the Council's updated Flood Maps for Surface Water which now represent the Council's locally agreed surface water Information as defined in the PFRA including information on flood extents, depths and velocity (speed and direction)
- all other developments identified as at risk of flooding by the Council as Lead Local Flood Authority (LLFA).

FRAs should;

- identify and assess the risks of all forms of flooding to and from the proposed development on the basis of the PFRA and the updated Flood Map for Surface Water, and demonstrate how these flood risks will be managed now and in the future, taking the future impacts of climate change into account
- demonstrate that the development will be safe, without increasing flood risk elsewhere, and where possible, will reduce flood risk overall.

Proposed developments should seek to reduce flood risks and enhance the ecological functioning of river corridors by;

- considering site specific detailed studies (such as site based flood risk assessment and ecological survey) in order to minimise flood risk
- taking into account all the policy requirements of Policy CSP3- Environmental Infrastructure; ENV1-Nature Conservation and ENV5-Flood Risk, Sustainable Drainage Systems and Urban Heat island and the information contained in the NPPF.

For proposals located within flood risk areas for which the NPPF 'Exception Test' is required, applicants should have due regard to the relevant paragraphs

within the NPPF.

In line with the objectives of the Severn and Humber River Basin Management Plans development proposals must not adversely affect the ecological status of a water body and wherever possible take measures to improve ecological value in order to help meet the required status. Proposed developments should seek to reduce flood risks and enhance the ecological functioning of river corridors by;

- requiring all development to have at least 8m buffer strip from bank top free from all formal development, and where required by improved form of natural green corridor. Lighting if any should be sited outside this area
- maximising opportunities to de-culvert and restore river channels, flood flow pathways and floodplains to their natural state to reduce flood risk downstream particularly where habitats have become fragmented or a lack of maintenance increases the risk of blockage which may result in localised flooding. This is a particular issue along parts of the River Stour, Illey Brook near Halesowen and Mousesweet Brook between Cradley and Netherton
- ensuring that the integrity and effectiveness of existing flood defences are maintained in liaison with Dudley Council as the local flood risk management authority and the Environment Agency internal flood risk team where appropriate.

### **Minimising Flood Risk and Sustainable Drainage Systems (SuDS)**

Recent Government changes to the National Planning Policy Framework (NPPF), the Black Country Core Strategy and the Council's adopted Preliminary Flood Risk Assessment have identified that reducing the rate of discharge from development sites to green field runoff rates is one of the most effective ways of reducing and managing flood risk within the Borough. Green field run-off is the existing surface water drainage regime experienced on a site prior to development.

The Flood and Water Management Act (FWMA) came into effect in 2010. As a part of the Act, Schedule 3 requires all new developments to implement SuDS in new developments. It should be noted that in accordance with the Flood and Water Management Act there is no automatic right to connect and discharge surface water to a public sewer. Developers will be required to provide evidence that a SuDS solution is not feasible and that capacity exists in the public sewerage network to serve their development.

There are numerous different ways that SuDS can be incorporated into a development. The appropriate application of a SuDS scheme to a specific development is heavily dependent upon the layout, topography and geology of the site and its surroundings. Developers should use and follow the guidance provided

by the Construction Industry Research and Information Association (CIRIA) for design criteria, technical feasibility and to ensure the future sustainability of any Sustainable Drainage system. The Environment Agency (EA) may also be able to provide advice for larger development sites.

Under the new proposals the Environment Agency would be able to provide advice on water drainage applications if:

- the area is prone to critical drainage problems
- sites within Flood Zone 3
- contaminated sites which require Risk Assessment review
- sites located over Source Protection Zone (SPZ-1)-requiring Risk Assessment Review
- sites that require an environmental permit issued by the Environment Agency
- sites where deep drainage boreholes are proposed.

Applicants should submit a feasibility assessment of using SuDS within their proposal.

The satisfactory performance of SuDS depends not only on good design but also adequate maintenance, and provision for adoption and maintenance must be made from the outset. Additional enactments of the Flood and Water Management Act place new roles and responsibilities on developers and Local Authorities covering design, construction and long term maintenance in line with new SuDS national standards.

#### **Policy S5 - Minimising Flood Risk and Sustainable Drainage Systems (SuDS)**

All new development and any adaptation of existing development shall minimise flood risk, help improve water quality and promote sustainable drainage through the following measures;

- incorporate SuDS schemes which maximise the value for biodiversity and are of a type which maximises the improvement of water quality before it is discharged to local watercourses or any other receiving body in line with the requirements of Policies CSP3, ENV1 and ENV5 of the Black Country Core Strategy
- where adjacent to the River Stour and its tributaries, re-naturalise the banks and beds of the river, integrating them into the design and removing any man made-modifications
- adequately consider and adhere to the requirements of the latest Water Framework Directive targets
- consider actions suggested by the Severn and Humber River Basin Management Plans
- remove and reduce the amount of hard, impermeable surfaces within the development



- promote water efficiency measures within new development including water saving devices such as grey water and/or rainwater harvesting and recycling
- where possible, provide new tree and shrub planting of locally occurring indigenous or locally distinctive tree species, and softening heavily urbanised areas with new natural green space provision to protect watercourse banks, improve water quality and slow down excessive flow.
- seek to retain areas of existing green space and safeguarding existing trees within the area, unless such trees are evidenced to be damaged, diseased or dying or contribute little to the public realm- in which case replacement planting shall be sought
- provide SuDS which provide beneficial wildlife habitat, outdoor green space recreation and amenity value where practical to do so
- ensure that surface water drainage for the site is designed as far as possible in accordance with the latest Flood Management Act legislation and associated National Standards
- provide SuDS which reduce overall run-off volumes leaving the site to green field run off equivalents and control the rate of flow
- ensure that SuDS meet the design standards set out in the National Non-statutory SuDS Guidance
- ensure that any new SuDS scheme carefully considers the guidance and requirements as set out in the Environment Agency position statements Groundwater Protection: Principles and Practice (GP3) with specific reference to sections G10, G11, G12 and G13 (whichever one is appropriate for the development)
- make a 30% allowance for the forecast effects of climate change specific to the region. Mitigation should include measures to reduce risk from flooding and extreme rainfall events. The applicant should clearly state the sources of the baseline data that have informed the mitigation measures
- ensure that any proposal is accompanied by mutually agreed long-term maintenance and ownership/adoption agreements in line with the latest SuDS guidance.

### **Mineral Resources within the Borough**

The Black Country Core Strategy (2011) set out detailed policies for dealing with mineral resources across the Black Country. This policy framework is deemed sufficient to deal with mineral issues arising from future development in the Borough until the Black Country Core Strategy itself is reviewed (due to commence in 2016).

Designations in relation to minerals are set out in the Proposals Map attached to this document. This shows Mineral Safeguarding Areas and Mineral Areas of Search



within the Borough which is in accordance with Policies MIN1, MIN2 and MIN3 of the Core Strategy.

### **Waste Management**

As with mineral resources, the Black Country Core Strategy (2011) set out detailed policies for dealing with waste management and facilities across the Black Country. This policy framework is deemed sufficient to deal with waste issues arising from future development in the Borough until the Black Country Core Strategy itself is reviewed (due to commence in 2016).

Designations in relation to waste sites are set out in the Proposals Map attached to this document. This shows existing and proposed Strategic Waste sites within the Borough. These sites and their reference numbers are listed and referred to in the Black Country Core Strategy Appendix 6 and Policy WM3.

Since the adoption of the Black Country Core Strategy, two identified Proposed Waste sites have now become “Strategic Waste Sites” in addition to those sites listed in Table WM2a of Appendix 6 of the Black Country Core Strategy. The two sites are listed below and have been added to the Proposals Map.

WSD11: Blowers Green Road satellite to Dudley Council Depot, Dudley.

WSD12: Oak Farm (Clay Pit) landfill site run by Himley Environmental Ltd.



## Urban Design and Landscape

The following policies will be applied in conjunction with the policies contained within the Core Strategy, in particular: Policies ENV3 (Design Quality), ENV5 (Flood risk, Sustainable Drainage Systems and Urban Heat Island), CSP3 Environmental Infrastructure and CSP4 (Place Making)

### Urban Design

It is acknowledged that good Urban Design principles should underpin all development. Dudley, as part of the Black Country, will strive to achieve the highest standards of design, with the maximum use of site potential whilst not compromising the principles of sustainable development. The BCCS seeks to achieve this aim, especially through the application of Policy ENV3.

The Dudley Borough Development Strategy will take this steer further by applying these overarching design principles to future development in the Borough, particularly to ensure that urban design is also responsive to the Borough's local character and distinctiveness.

The local focus will be informed by an Urban Design and Landscape evidence base and defined by an Historic Characterisation Survey (HCS) which are all currently being prepared in parallel to this document. The Evidence Bases will primarily be focused on the Black Country Core Strategy Regeneration Corridors and will help to guide and shape development for the various site allocations and opportunity sites. The HCS will also define local character and distinctiveness with an emphasis on how this has been shaped by the historic environment and how this character can be safeguarded.

#### Policy S6 - Urban Design

Dudley Council will support appropriately designed, sustainable development which is responsive to the character and/or visual amenities of the local area, and is thereby assessed as;

- supporting the requirements of Policies ENV3 (Design Quality), ENV5 (Flood risk, Sustainable Drainage Systems and Urban Heat Island), CSP3 Environmental Infrastructure and CSP4 (Place Making) of the Black Country Core Strategy
- conforming with the guidance for place shaping and environmental uplift set out within Dudley Council's Urban Design and Landscape Evidence Base
- complementing local distinctiveness as defined in Dudley Council's Historic Characterisation Surveys in support of the Borough Development Strategy displaying innovation in design where appropriate.

Dudley Council will apply the provisions of these policies and guidance with reference to the response of the development to the following design

principles;

- connectivity and ease of movement
- building blocks (enclosure and frontage)
- quality of public spaces including use of public art
- ease of understanding
- character and appearance, including the use of appropriate materials
- landscape design
- Design for Community Safety Supplementary Planning Guidance
- Green Infrastructure.

## Landscape Design

Provision of high quality and attractive on-site green space landscaping has an integral role to play in creating high quality residential communities particularly low maintenance solutions with locally occurring deciduous tree planting. This type of provision can help to promote more sustainable development by making development schemes more responsive to future climate change pressures such as urban cooling, reduced flood risk and biodiversity movement.

Applicants should consider how habitat and features will be managed post development so that their contribution to local biodiversity and geodiversity is maintained in the long-term. Management of natural habitat often proves less costly than that of equivalent areas of more formal landscaping.

For large sites, the Council would recommend the preparation of a management plan. Examples of the types of nature conservation interest that may benefit from management plans are: woodlands, hedgerows, wildflower grasslands, watercourses, ponds and wetlands.

## Policy S7 - Landscape Design

Within new development sites, the Council will prioritise natural green space landscaping over the use of hard landscape (such as paving). New development proposals will be required to include native tree and shrub species in on-site landscaping schemes in keeping with the local character and in accordance with the Dudley Nature Conservation SPD for the following reasons;

- to strengthen and provide beneficial wildlife habitat and/or geological outcrop
- to enhance the appearance and landscape setting of the development scheme and help blend the development scheme into the surroundings
- to introduce climate change benefits including promoting urban cooling, reducing air borne pollution, providing shade cover, and reducing flood risk

by reducing surface water run-off

- to promote locally-distinctive development
- to assist with delivering positive outcomes for physical and mental health.

Wherever possible, locally grown plant stock and use of local seed banks should be used as it is better suited to local conditions and is attractive to local wildlife. A list of suitable tree and shrub species can be found in Appendix 4 of Dudley Council's adopted Nature Conservation Supplementary Planning Document (SPD) (2006).

Preserving or creating new green space landscape linkages from the development site into the surrounding green corridor network (See Below) should be a priority in order to strengthen, repair and restore such corridors.

Design and Access Statements submitted to accompany planning applications and applications for listed building consent should include:-

- a full site analysis of existing landscape features and designations
- an accurate site survey including landscape features and site levels
- the relationship of the site to its surroundings.

Development shall not lead to the spread of non-native invasive species as identified by the latest legislation. Where species are identified on site, planning proposals will provide measures to ensure that they are eradicated in an effective manner, which is sensitive to the local environment.

In addition it should be demonstrated that the future management of the site will prevent the successful re-establishment of these species from off-site sources.



## Historic Environment

The following policies will be applied in conjunction with the policies contained within the Core Strategy, in particular: CSP3 Environmental Infrastructure, CSP4 Place Making and ENV2 and Historic Character and Local Distinctiveness.

### Introduction

The character and quality of Dudley's historic environment is one of the Borough's greatest assets. To ensure that this is exploited to its best advantage and recognised by the community at large, it is necessary to have planning policies in place to protect the Borough's distinctive townscape, landscape, individual buildings and archaeology. The overarching aim of these Historic Environment policies is, therefore, to assist in maintaining the individual identity and character of the Borough as a whole rather than focusing solely on locally or nationally designated assets. This directly reflects the guidance in the National Planning Policy Framework (NPPF) and is very much in line with the objectives of the Black Country Core Strategy, in particular Policy ENV2 Historic Character and Local Distinctiveness.

In order to underpin the historic environment policies, the Council has in-place a Historic Environment SPD and Urban Historic Landscape Characterisation (UHLCS) for the Glass Quarter and for the four principal town centres, Brierley Hill, Dudley, Halesowen and Stourbridge. Furthermore a Borough-wide Historic Landscape Characterisation Study (HLCS) has been produced which sets out where physical evidence of local historic character persists to enable developers to properly assess the impact of new development upon any affected Heritage Assets and their setting in order to avoid any harm to their significance. These various strategies including the Borough-wide UHLCS provide an up-to-date evidence base for this Strategy, and are to be used by strategic planners, urban designers, intending developers and others to gain a proper appreciation of the local character and distinctiveness of the Dudley Borough. In combination they will assist in positive place making, the promotion of a sense of place and help to foster responsive design of buildings and surrounding spaces, helping to protect those buildings and areas which make a positive contribution to the character and distinctiveness of the Borough. In this way, as is required by both the Black Country Core Strategy and Government Guidance, the content of Design and Access Statements and Heritage Statements submitted in support of planning applications can be properly informed.

Recognising this, the overarching aim of this plan policy is to conserve the locally distinctive character of the Borough's historic environment as a whole, rather than focusing solely upon particularly special individual components of it. Within the wider context there are nevertheless buildings and features which make important individual contributions to local character and there are nationally significant buildings and areas of special architectural or historic importance which are highly valuable in their own right. Policies accordingly take full account of the need to

conserve and enhance the Borough's locally and statutorily Listed Buildings and Conservation Areas.

An additional dimension is offered by archaeological remains, with structures, earthworks and buried deposits all potentially possessing further evidence that will help better reveal the understanding and significance of the Borough's past and how it has evolved to the present. Dudley's archaeological heritage constitutes a fundamental component of the historic environment and comprises many hundreds of buildings, sites, structures and monuments dating from the Palaeolithic to the Industrial Revolution and beyond. Together these constitute a fragile and irreplaceable resource and plan policies take full account the need for the preservation, better understanding and appropriate enhancement of the Borough's archaeological remains.

Heritage Assets of the borough are recorded in detail within the Historic Environment Record (HER) held by the Council. Developers should always consult the Dudley HER at the earliest possible planning stage and before giving detailed consideration to any proposals for development which could adversely affect heritage assets of archaeological or historic significance.

### **Local Character and Distinctiveness**

Local distinctiveness arises from the cumulative contribution made by many and varied features and factors, both special and commonplace. It is the ordinary and commonplace features of the Borough which, in fact, give it its distinctiveness and help to give us a sense of knowing where we are. This is beneficial for our community identity and wellbeing as well as making places attractive to investment.

The Borough-wide Historic Landscape Characterisation Study (HLCS) in combination with the Historic Environment SPD and the other UHLC studies for Brierley Hill, Dudley, Halesowen, Stourbridge and the Glass Quarter provide the evidence base to inform an understanding of the borough's historic character. This evidence should be used in considering how new development proposals and the enhancement of existing townscapes and landscapes should respect the borough's local character and distinctiveness.

The following policy aims to ensure that where physical evidence of local character persists it should be conserved and where development is proposed, every effort should be made to ensure that the character and quality of the borough's historic environment is fully appreciated and enhanced in terms of its townscape, landscape, individual heritage assets.



## Policy S8 - Conservation and Enhancement of Local Character and Distinctiveness

All development proposals within the Dudley Borough should take account of the locally distinctive character of the area in which they are to be sited, including its historic character, whether formally recognised or as a none designated heritage asset, and should respect and respond to its positive attributes. Physical assets which positively contribute to the local character and distinctiveness of the Borough's landscape and townscape, should be retained and, wherever possible, enhanced and their settings respected. These include buildings, canals, sites or areas together with their settings, whether man made or natural.

New development in Dudley Borough should be designed so as to reinforce and enhance local distinctiveness and full reference should be made in Design and Access and Heritage Statements accompanying planning applications, to the Historic Environment SPD, the Historic Environment Record (HER), the Borough-wide Historic Landscape Characterisation Study (HLCS) and other Urban Historic Landscape Characterisation (UHLC) documents where applicable. Design and Access and Heritage Statements should clearly set out the steps that have been taken to achieve locally responsive design which could be either traditional or more contemporary design solutions. The HLCS and UHLC documents, therefore, provides baseline data that in conjunction with the information held in Dudley Council's Historic Environment Record (HER) must be used to inform Design and Access and Heritage Statements as part of any proposals for development.

In cases where changes of character or demolition are unavoidable Dudley Council will seek to ensure that provision is made for an appropriate level of archaeological recording to take place prior to the alteration of the features concerned.

In respect of major applications or in areas of historic or environmental significance, developers may be required to commission more detailed "Local Area Character Appraisals" (as defined in the Dudley Historic Environment Supplementary Planning Document) in order to more fully inform specific land use proposals.

### Conservation Areas

Conservation Areas are areas that have been designated because of having special architectural or historic interest, the character or appearance of which it is desirable to preserve or enhance. There are 22 designated Conservation Areas within the Borough and their boundaries are to be found on the Proposals Map In addition to the information provided in the Borough wide Historic Landscape Characterisation Study and in the various UHLC documents, information about the borough's

Conservation Areas can also be found in the relevant Conservation Area Appraisals.

### **Policy S9 - Conservation Areas**

The Council will seek to safeguard and enhance the Conservation Areas of the borough ensuring that proposals will better reveal their significance as designated heritage assets. Proposals for the inappropriate demolition or inappropriate alteration or extension of buildings in Conservation Areas; or proposals for works which would be detrimental to their character or setting; and proposals which could prejudice views into or out of Conservation Areas will be resisted.

The Council will require the use of building materials appropriate to the Conservation Area in all new development. Any new development or alterations should respect the historical or vernacular building character, proportion, massing and relationship between buildings and the spaces between them and with their setting.

Where planning permission is granted for the demolition of structures of historic interest in Conservation Areas, the Council will seek to ensure that provision is made for an appropriate level of archaeological buildings recording to take place prior to demolition.

To prevent gap sites, consent for demolition will, where appropriate, be subject to a condition providing that demolition shall not take place until a contract for carrying out redevelopment works is in place and planning permission for those works has been granted in line with the requirements of legislation, the NPPF and the Dudley Local Plan.

The Council will continue to undertake a review of Conservation Areas throughout the Borough and where appropriate will amend or create new Conservation Areas where appropriate in accordance with guidance provided by Historic England.

### **Listed Buildings**

Listed Buildings are those included in a statutory list compiled by the Secretary of State after having been recognised as being of particular special architectural or historic interest. There are approaching 300 such buildings in the Borough. As well as being special in themselves, Listed Buildings often make a great contribution to the character of a wider locality. Their retention and sensitive conservation are accordingly key concerns.

Listed Building Consent must be obtained from the Council for demolition or any alteration, extension or change of use which would affect the character of a Listed Building. This requirement relates equally to internal and external alterations.

Applicants for consent must be able to justify their proposals and will need to show why proposed works affecting the building's special interest are necessary.

Details of Listed Buildings within the Borough can be found on the Council website and on Heritage Gateway.

### **Policy S10 - Listed Buildings**

The Council will protect, conserve and encourage the appropriate enhancement of buildings statutorily listed as being of historic or architectural value. Applicants proposing the alteration, extension or change of use of a statutorily Listed Building will be required to provide sufficient information to demonstrate how the proposals would contribute to the building's conservation, whilst preserving or enhancing its architectural or historic interest.

Where such proposals would affect a listed structure which has a particularly complex building history, and would involve a major impact on the historic plan form or significant loss of historic fabric, applicants may be required to commission a professional archaeological pre-determination assessment. This should include an appropriate level of archaeological buildings recording, an analysis sufficient to demonstrate the significance of the existing plan form and historic fabric to be affected, be to an agreed timescale and clarify the degree of impact which the proposals would have upon the building's historic character and appearance.

Proposals for demolition, inappropriate alteration of or addition to statutorily Listed Buildings, or for development which would harm their significance or be detrimental to their setting, will be resisted. Where Listed Building Consent is granted for demolition or alteration resulting in the loss of historic fabric, the Council will ensure that provision is made for an appropriate level of archaeological buildings recording to take place prior to the commencement of the approved works.

### **Buildings of Local Historic or Architectural Importance**

Many buildings in the Borough which do not currently meet national criteria for statutory listing are nevertheless of significant local historical importance and worthy of protection and conservation in their own right. Dudley Council has adopted a Local List of such buildings, based on the contribution they make to the character and distinctiveness of the Borough's townscape and landscape.

### **Policy S11 - Buildings of Local Historic or Architectural Importance**

Development proposals which contain positive measures to conserve and enhance buildings on the Local List will be supported.

The Council will resist development which will involve;

- inappropriate demolition or part demolition of buildings or structures on the Local List
- inappropriate alteration or extension to buildings or structures on the Local List and
- have a detrimental impact on the setting or context of buildings or structures on the Local List including development which conflicts with the intrinsic historic value of the building and its setting and the local character of the wider area.

Proposals for the change of use of a building or structure on the Local List will be required to demonstrate how this would contribute to its conservation whilst preserving or enhancing its architectural or historic interest and conserving and enhancing its significance.

Applications proposing demolition will be required to demonstrate that the viability of continued beneficial use restoration or conversion has been fully investigated and that there are no reasonable alternatives. In cases where demolition is unavoidable the Council will seek to ensure that provision is made for an appropriate level of archaeological buildings recording to take place prior to demolition.

### **Areas of High Historic Townscape Value**

The Historic Environment SPD and the Borough-wide Historic Landscape Characterisation Study (HLCS) highlight the existence of certain areas of the Borough that exhibit a concentration of heritage assets and other historic features that, in combination, make a particularly positive contribution to local character and distinctiveness. These areas are thereby considered to be “Areas of High Historic Townscape Value” (AHHTV) and are mapped on the Proposals Map.

### **Policy S12 - Areas of High Historic Townscape Value (AHHTV)**

New development proposals within an AHHTV, as defined by Dudley's Historic Landscape Characterisation Survey (HLCS), must consolidate or enhance the existing positive characteristics of the locality, including the public realm, in order to create complementary good quality design. Views into, out of and within the AHHTV must be respected.

Heritage Statements and Design and Access Statements accompanying planning applications in AHHTV's must be prepared with full reference to the

Borough-wide Historic Landscape Characterisation Study (HLCS) in order to produce a locally responsive high quality design that, wherever appropriate, conserves and enhances significant heritage assets together with their settings.

Proposals will not be permitted if they fail to respond adequately to the character and context of an AHHTV or prejudice significant views into, out of or within an AHHTV as identified within the HCS.

### Areas of High Historic Landscape Value

Dudley Council has previously identified Landscape Heritage Areas within the Borough that were incorporated within the Dudley Adopted 2005 Unitary Development Plan (UDP). However, as part of the preparation of the Borough-wide Historic Landscape Characterisation Survey (HLCS), previous Landscape Heritage Areas, in addition to other areas identified as having historic landscape value have been identified and given one designation - Areas of High Historic Landscape Value (AHHLV). These areas are mapped on the Proposals Map.

This demonstrates the importance of the wider landscape elements of the historic environment such as areas of open space, woodland, watercourses, hedgerows and archaeological features and their contribution to local character and distinctiveness as well as their historic, communal, ecological and aesthetic values.

### Policy S13 - Areas of High Historic Landscape Value (AHHLV)

Within Areas of High Historic Landscape Value, Dudley Council will resist any development or other works taking place which would be detrimental to the character, quality and historic integrity of the landscape.

Dudley Council will seek to protect and enhance views into, from or within Areas of High Historic Landscape Value. Approval will not be given where such views would be unduly interrupted or harmed, or where the opportunity to enhance such a view would be lost.

Heritage Statements and Design and Access Statements accompanying planning applications in or adjacent to an AHHLV, must be prepared with full reference to the Borough-wide Historic Landscape Characterisation Study (HLCS). The Design and Access Statement must clearly evidence how the proposal has taken account of the HLCS in order to produce a locally responsive high quality design that, wherever appropriate, conserves and enhances significant landscape heritage assets together with their settings.

Proposals will not be permitted if fail to respond adequately to their historic landscape context or that would prejudice views into, out of or within an AHHLV.

## Registered Parks and Gardens and Designed Landscapes of High Historic Value

Some areas retain landscape features that are the product of a formal design process with the intention of producing both a functional and aesthetically pleasing landscape. Such areas include Parks, gardens and cemeteries.

Nationally a Register of Parks and Gardens of Special Historic or Horticultural Interest is maintained by English Heritage to recognise the contribution to national heritage of the finest designed landscapes. Within the Borough, there are two Registered Parks and Gardens:

- The Leasowes: Grade 1 Registered Park and Garden. A "ferme ornee" landscape laid out in 1740s and 1750s by William Shenstone which was a potent influence on the style of landscape gardening then and in the later 18th Century.
- Priory Park: Grade II Registered Park and Garden. An early 20<sup>th</sup> Century public park developed as part of a town planning scheme by Edward Prentice Mawson from an existing early and mid 19th Century villa garden on the site of a medieval priory.

However, the Borough-wide Historic Landscape Characterisation Survey (HLCS) recognises that there are numerous other formally designed landscaped areas within Dudley Borough that make an important contribution to its character as a result of their design and historic associations which would not meet the criteria for inclusion on this national register. To ensure that the contribution of these areas to local character and distinctiveness is fully recognised in planning for the future of Dudley Borough, the most historically significant of these have been identified as Designed Landscapes of High Historic Value. These are mapped on the Proposals Map.

### Policy S14 - Registered Parks and Gardens and Designed Landscapes of High Historic Value (DLHHV)

Dudley Council will resist any development or other works taking place which would harm the significance or be detrimental to the setting, character, quality and historic integrity of Registered Parks and Gardens at Leasowes Park and Priory Park and Designed Landscapes of High Historic Value including detailed design features and individual historic components, whether man made or natural.

The Registered Parks and Gardens at the Leasowes and Priory Park will be preserved and enhanced wherever possible in order to enhance and maintain their unique features and their significance.

## Heritage Assets of archaeological interest, Scheduled Ancient Monuments and Archaeological Priority Areas

The Dudley Historic Environment Record (HER) registers numerous Heritage Assets of archaeological interest (as defined by the NPPF Para. 139). In addition, there is also a much smaller number of Heritage Assets of archaeological interest that are already positively identified as important at the national level and which have been formally designated as Scheduled Ancient Monuments (SAM's) and these are subject to strict controls under national legislation. The NPPF advises that other currently non-designated assets of archaeological interest that are demonstrably of equivalent significance to scheduled monuments should also be considered.

In this context there are sites and areas throughout Dudley Borough recorded in Dudley Council's HER that have not yet been formally designated as SAM's but have been identified through the Borough-wide Historic Characterisation Survey as having a high potential for the survival of archaeological remains of regional or national importance. These are considered to be "Archaeological Priority Areas" (APA) and are mapped on the Proposals Map.

Dudley Council will need to consider the preservation of all Heritage Assets of archaeological interest when assessing applications for new development. However, where a development proposal affects a Scheduled Ancient Monument or an Archaeological Priority Area, developers can, at the outset, assume that there will be a requirement for a full physical evaluation following desktop archaeological appraisal. The Council considers it reasonable that throughout the Borough, adequate information as to the nature, quality and conditions of archaeological remains affected by development proposals should be provided by the applicant in order that the local planning authority may assess the archaeological impact of the proposals and identify requirements for archaeological preservation.

### Policy S15 - Heritage Assets of archaeological interest, Scheduled Ancient Monuments and Archaeological Priority Areas (APA)

For development proposals which;

1. contain a Heritage Asset of archaeological interest
2. are within an Archaeological Priority Area
3. are in proximity to a Scheduled Ancient Monument
4. are within any other sites and areas of known or potential archaeological significance that may be identified and included in the Dudley Council Historic Environment Record through the life of the plan and or identified in the Borough-wide Historic Characterisation Survey (HCS),

the following will apply;

- a presumption against any development which would threaten the integrity or prejudice the setting of Scheduled Ancient Monuments and non-scheduled sites of national importance
- the Council will seek to ensure that archaeological remains of interest



are preserved in situ and encourage landowners to enter into management agreements in this regard. Where this would be unreasonable, to ensure that provision is made for an appropriate level of archaeological investigation and recording of any buildings structure or buried deposit of interest prior to the commencement of development or, in some cases, prior to the determination of a planning application

- as part of any planning application, applicants are required to provide adequate information to allow the full and proper consideration of the impact of the proposed development on archaeological remains through desk top archaeological appraisal and, as Dudley Council deems appropriate, subsequent physical site evaluation and building recording
- any development proposal that is deemed to have a damaging impact upon significant archaeological remains, and where potentially negative impacts have been identified, is required to carry out an agreed schedule of suitable measures designed to mitigate such impact in order to preserve buildings, structures or buried deposits in situ



## Transport and Accessibility

The following policies will be applied in conjunction with the policies contained within the Core Strategy, in particular: CSP5 Transport Strategy, CEN8 Car Parking in Centres and TRAN1 to TRAN5

### Transport Infrastructure Improvements

The Strategic Highway Network, and other main roads, will continue to be crucial to the efficient movement of people and goods as well as providing opportunities to accommodate new land use and investment. Traffic management measures can also be used to reduce accidents, noise and pollution, and promote the quality of local neighbourhoods, town centres and other sensitive areas.

The improvement and maintenance of the Borough's road network applies not only to the strategic routes. The West Midlands Local Transport Plan contains ten long term themes, developed to support the key transport objectives which in turn, support the transport priorities within Dudley Borough which are:-

- Brierley Hill – Delivery of the Brierley Hill Public Transport Strategy is a key public transport objective, closely associated to the pre-Metro/rapid transit encompassing the A461 Stourbridge to Walsall corridor, Black Country Core Strategy Corridor 11 and improving public transport connectivity with the other three Black Country centres.
- Tram Train from Walsall-Wednesbury-Dudley Port-Dudley-Brierley Hill and Stourbridge
- Redevelopment of Dudley Bus Station
- Motorway Access – A key priority for Dudley is to facilitate and improve links to the motorway network, with particular regard to Pensnett Trading Estate. This includes A4101, A461 and A4123 corridors to the M5/M6, as part of the ITA's new Key Route Network currently being developed for the West Midlands.
- Highway Management – The safe and efficient management of existing highways remains a key priority . The Smart Routes approach and Quick Win programme supports corridor improvement and will assist in the regeneration of Dudley's local and district centres.
- Public Transport – Integration of public transport is a high priority. Dudley MBC will seek to work in partnership with the West Midlands Integrated Transport Authority (ITA) to enhance the public transport network and interchange including improvement to the bus priority network in key corridors. In addition, improvements to the rail network including passenger services on the Jewellery Line and the reintroduction of freight services between Stourbridge to Walsall will be supported in line with the Freight Strategy and long term vision of the ITA.

- Hagley Road Sprint scheme between Birmingham City Centre-Quinton (which is already funded and is expected to open in 2018) with a later extension to Halesowen.
- Sustainable Travel – Encouraging sustainable travel and physical activity is a key driver to reducing the need to travel and the health benefits it can bring. To support this further enhancement of the walking and cycling network to improve active travel infrastructure, and therefore accessibility to key local destinations and public transport interchanges is a priority. This also builds upon the improvement works developed and delivered through LTP2 and The Healthy Towns project.

#### **Policy S16 - Infrastructure Improvements**

The Council will undertake a programme of major and minor works as circumstances require and resources allow in order to integrate and improve:

- Public Transport
- Traffic Management
- Sustainable Modes of Travel (i.e. A network of Safe and well-maintained
- Walking & Cycling routes throughout the Borough)
- Road Safety
- Access to support the regeneration of specific sites and areas.

#### **Access and Impact of Development on the Transport Network**

The majority of developments create a demand to travel. Therefore, by influencing the location, scale, density, design and mix of land uses it is possible to reduce the need to travel, the length of the journey and improve accessibility for public transport, pedestrians and cyclists.

#### **Policy S17 - Access & Impact of Development on the Transport Network**

The Council will require a Transport Assessment to be submitted for major developments, in order to assess the level of impact on the transport network and provide improvements as required. Transport Assessments shall also include an assessment of their impact on future transport schemes, where applicable. Development proposals should also have full regard to the Council Parking Standards SPD and where appropriate the Council will seek a Travel Plan to be implemented for the users of the development.

The Council will require that all development;

- is appropriate in scale to the existing transportation infrastructure of the immediate area and transport corridor or includes measures to overcome

any deficiencies

- make adequate and safe provision for access and egress by vehicle users, cyclists, pedestrians and other road users
- make adequate provision for the loading and unloading of commercial vehicles where appropriate and
- provides links to the public transport system, and local walking and cycling networks.

Developers should ensure that adequate provision is made on site for the managing of delivery operation and the servicing of new properties and businesses. Provision should also be made to incorporate safe, user friendly transport links within the layout of the site, where the development is separate to main transport routes.

## Cycling

Cycling is an important element of integrated transport policy. It has the potential to substitute for car journeys over short distances but is also becoming increasingly popular as a leisure activity and has obvious health benefits which link it to the Council's aspirations to improve and maintain the health and well being local communities. (See also Policy S2 on 'Planning for a Healthy Borough').

The Council's own Active Travel Strategy aims to develop the network of segregated cycle routes across the Borough along with the West Midlands Cycle Charter which aims to develop a new Metropolitan Cycle Network. This will make use of canal towpaths, disused railway lines and public rights of way in order to avoid the area's steep hills and heavily trafficked roads wherever possible.

### Policy S18 - Cycling

Cycling will be promoted within the Borough through the application of Core Strategy Policy TRAN4 and Dudley Council's Active Travel Strategy with particular regard to;

- the provision of secure cycle parking facilities within developments, centres and other appropriate locations, in accordance with the standards set out in the Council's Parking Standards SPD
- requiring development to link into existing networks and the enhancement and extension of those networks including improvements to signage.

The following networks and other linkages within Dudley Borough are considered priorities for potential enhancement and expansion as cycle routes, including their signposting and delineation, and their environment upgraded

with an emphasis on enhanced green infrastructure;

1. Sustrans Link 54 (Derby to Stourport)
2. Sustrans Link 81 (Aberystwyth to West Bromwich)
3. The canal network
4. The River Stour Linear Open Space Network
5. Disused railway lines
6. Links to existing centres
7. Links to leisure facilities
8. Links to the Borough's Parks, especially those which accommodate Healthy Hubs.

## The Borough's Green Infrastructure

The following policies will be applied in conjunction with the policies contained within the Core Strategy, in particular: CSP3 Environmental Infrastructure, CSP4 Place Making, ENV6 Open Space, Sport and Recreation and ENV5 Flood Risk, Sustainable Drainage Systems and Urban Heat Island.

### Dudley Borough's Green Network

Dudley Borough, despite being mainly urban in character, has an extensive network of formal and informal green spaces including areas of Green Belt/Green Wedge and designated nature conservation areas (including the Fens Pool Special Area of Conservation [SAC] and Sites of Local Importance for Nature Conservations [SLINCs]). All of these areas have been mapped and merged together to form Dudley's Green Network.

Green Infrastructure performs a variety of functions including the conservation and enhancement of biodiversity as well as providing space for informal and formal recreation. Green infrastructure can include parks and gardens, natural and semi-natural urban green spaces, green corridors, outdoor sports facilities, amenity green spaces, formal and informal play areas and facilities, allotments, cemeteries and churchyards, river and canal corridors.

Dudley's Green Network has been given a higher profile within the Development Strategy by requiring all development (except householder development) falling within it, or adjacent to it, to provide a Green Network Impact Statement, as part of a Design and Access Statement, which would, in particular, provide proposals as to how the integrity and connectivity of the affected area of Green Network would not be prejudiced, and how the proposal would respond to, and, in particular, strengthen the relevant section of the Green Network.

This plan also seeks to emphasise Dudley's Green Network by providing a more defined and robust measure to ensure its delivery, by specifying a minimum width of corridor (15 metres), recognised as being the minimum to sustain a meaningful and effective wildlife corridor, which development proposals should maintain.

The policy below also recognises the need to provide connectivity within the Green Network, including where there is severance, particularly through the layout of proposed development, and that, in some instances, where the designated Green Network runs through the existing built environment, alternative means of ensuring connectivity by the implementation of, for example, Green Roofs, Green Walls, Street Trees and the creation of boulevards.

As the Green Network brings together a number of planning designations under a single "umbrella" (for example Green Belt and sites of acknowledged nature conservation value), it is important to recognise that this does not exempt development from addressing and responding to those other designations: the need

for development to respond to its inclusion in, or adjacency to, the Green Network being an additional requirement.

### Policy S19 - Dudley Borough's Green Network

The Green Network constitutes Dudley Borough's strategic Green Infrastructure, and comprises the following designations shown on the Policies Map (Appendix 1);

- Green Belt/Green Wedges
- Linear Open Space areas
- areas of designated nature conservation and geological value including Sites of Special Scientific Interest (SSSI), Local and National Nature Reserves (LNR/NNR), Sites of Importance for Nature Conservation (SINC) and Sites of Local Importance for Nature Conservation (SLINC)
- Accessible Natural Greenspace
- other formal and informal open space areas
- Wildlife Corridors
- existing or proposed linking areas of townscape or landscape
- canals and watercourses particularly the River Stour and its tributaries
- railway corridors.

While certain sections of the Green Network will, depending on their inherent value or potential, have a focus on a particular open space/nature conservation aspect, overall the network has a multi-functional role as;

- a wildlife corridor , to provide coherent ecological networks
- accommodating pedestrian and cycle paths, particularly in linking the urban area with the Green Belt and open countryside as well as linking towns and places of employment with residential communities
- providing opportunities for informal recreation
- helping to form a break between locally distinct areas and centres
- grazing land for horses and other livestock
- a means of maintaining the integrity of water courses across the Borough as well as enhancing the natural value and restoration of water courses including de-culverting where opportunities arise.

All development proposals except householder applications, falling within or adjoining, the Green Network shall provide a Green Network Impact Statement, as part of the Design and Access Statement, specifying how the proposal;

- complies with the aims and role of the Green Network
- enhances or adds value to the Green Network, particularly in providing Green infrastructure which would strengthen the network or greening

sections of the network where such infrastructure is absent.

All development proposals, except householder applications, falling within or adjoining the Green Network, shall have a design and layout which would complement and enhance the intended functions of the network. This includes strengthening and supporting existing wildlife corridors through habitat creation and restoration and providing opportunities for outdoor recreation, such as walking and cycling to promote healthy lifestyles and provide an alternative to help reduce congestion and improve air quality throughout the Borough.

The Green Network shall have a minimum width of 15 metres unless it is satisfactorily demonstrated to be unachievable. Any proposed development which has the effect of narrowing the corridor below this threshold will not normally be supported.

Wherever possible, all sections of the Green Network shall seek to accommodate a footpath and cycleway which, when combined, shall be no less than 3.3 metres in width. The layout and route of such paths will be influenced by the nature of the network particularly so as to avoid any undesirable impact on habitats however the requirement will be to achieve a coherent, linked network of paths and cycleways.

Where existing townscape forms part of the Green Network and it is satisfactorily demonstrated that there are limited opportunities to provide a linking area of open space, Dudley Council will seek alternative means of providing continuous green linkages within developments, for example, through the provision of green roofs and green walls, street trees and boulevards. This is as long as such a provision would not prejudice the character and distinctiveness of the local environment.

## The Borough's Geology

The Geology within Dudley Borough is considered to be unique and is internationally renowned. It has shaped the Borough's landscape and history and provided the natural resources which placed the area at the forefront of the Industrial Revolution.

### Policy S20 - The Borough's Geology

The Council will seek to safeguard and maximise the benefits of the Borough's unique and internationally recognised geology by;

- requiring development to prescribe to and apply the relevant guidelines contained within the Council's Nature Conservation Supplementary Planning Document (or superseding guidance or policy) with the priority on preventing harm to sites of geological conservation interest especially;
  - i. Wrens Nest National Nature Reserve

- ii. Castle Hill Woodland
- iii. Sites of Special Scientific Interest (SSSIs)
- iv. other important sites in the context of the Global Geopark aspirations including Sites of Importance for Nature Conservation (SINC) and Sites of Local Importance for Nature Conservation (SLINC)
- v. Geological Consideration Zones (GCZ) as defined in the Black Country Core Strategy

Where consequential harm to geodiversity occurs as a result of a development, the level of improvement works needed to balance this will be assessed on a site by site basis

- maintaining and enhancing the Borough's geology by;
  - i. encouraging geological recording
  - ii. the provision of new facilities and features associated with the management, display and interpretation of the geological resource including those which would contribute positively to Dudley Borough, along with the other Black Country Authorities, collectively aiming towards achieving the status of a Global Geopark across the sub-region.

### **Nature Conservation Enhancement, Mitigation and Compensation**

The following policies will be applied in conjunction with the policies contained within the Core Strategy, in particular: CSP3 Environmental Infrastructure and ENV1 Nature Conservation

Dudley Borough has a world renowned natural environment, both ecological and geological. Fens Pool Special Area of Conservation is one of the best sites in the world for Great Crested Newts. Wrens Nest National Nature Reserve has been instrumental in helping to develop the science of geology for nearly 200 years and is still producing new discoveries for geologists today. The Borough has large tracts of wildlife rich countryside which helps wildlife to permeate into the wider West Midlands Conurbation and provides opportunities for active travel, healthy recreation and education and contributes positively towards physical and mental health issues.

The Borough is part of one of only 12 Nature Improvement Areas (NIAs), in the country as designated by the Government following the publication of the NPPF and the Natural Environment White Paper (2011). The Birmingham and Black Country NIA is providing a focus for delivering conservation action, through a broad and proactive partnership, on a landscape scale.

The Council recognises the importance of the Borough's natural environment and the benefits it brings to the economy, health, well being and quality of life for local



communities. Therefore it is committed to protect and improve the nature conservation resource of the borough for current and future generations.

This Development Strategy will dovetail with the policies of the Core Strategy such as Policy ENV1 setting out the protection afforded to wildlife, nature conservation sites and features. This will not be repeated in this document to avoid repetition. However, in addition, the following policies will be progressed to ensure the sustainable development of the borough in conformity with the National Planning Policy Framework.

Currently the Government is piloting Biodiversity Offsetting schemes across the country based on a set of principles. These principles are presented in the DEFRA document “Biodiversity Offsetting Pilots, Technical Paper: metric for the biodiversity offsetting pilot in England” (See DEFRA website).

Development will be expected to positively enhance the nature conservation value of the Borough through beneficial on or off-site works. The level and detail of this provision will be set out by Dudley Council in other Local Development Documents including the Nature Conservation SPD and through an assessment of individual development schemes.

#### **Policy S21 - Nature Conservation Enhancement, Mitigation and Compensation**

Dudley Council will safeguard and enhance designated nature conservation sites, habitats and features through the development process and in accordance with the Core Strategy, in particular Policy ENV1. Developments in the Borough will be positively encouraged where they demonstrate improvements, expansion or increased links to nature conservation sites, evidenced from up-to-date ecological surveys. Any ecological surveys will need to be carried out in accordance with BS42020 “Biodiversity in Planning and Development” (or the most recent equivalent guidance / code of practice), and provide a locally specific interpretation if necessary.

Exceptionally, where the strategic or community benefits of a development clearly outweigh the nature conservation importance of the area impacted upon, Dudley Council will ensure any damage or loss of nature conservation assets is fully offset by additional nature conservation improvement works. It will be expected that these will normally be accommodated on-site. However where there are exceptional circumstances, which prevent this, off-site works will be required instead.

Where consequential harm to biodiversity occurs as a result of a development, the level of improvement works needed to balance this will be assessed on a site by site basis, using DEFRA’s Biodiversity Offsetting standards or relevant superseding government advice.

## **Mature Trees, Woodland and Ancient Woodland**

Ancient Woodland is land that has been continually wooded since at least 1600. It is therefore a scarce, precious and irreplaceable habitat and can support rare and vulnerable fauna and flora. It also provides a link to our past and therefore contributes to both our natural and cultural heritage.

There are 32 areas identified as Ancient Woodland within the Borough. Some of these areas are small and isolated, remnants of a much larger wildwood.

### **Policy S22 - Mature Trees, Woodland and Ancient Woodland**

Development which would adversely affect Ancient Woodland and Ancient Trees will not be permitted, and measures will be taken to restore these areas, and where appropriate, expand them with new complementary planting, particularly to encourage linked woodland areas.

In addition, the Council will ensure that other woodland as well as ancient, notable or veteran trees are protected and will seek to encourage the appropriate management of existing trees and woodland, and additional tree planting.

Where trees are affected by development, applicants will be required to provide full details of any impact. Proposals involving the loss of mature and semi-mature trees will normally be required to include replacement tree planting.

The Council will require that native species of local provenance are used in planting and landscaping wherever possible. A list of suitable species can be found in Dudley Council's adopted Nature Conservation SPD.

## **Green Belt**

The main purpose of the Green Belt is to keep land open by preventing inappropriate development; therefore most types of development can only be permitted in exceptional circumstances, in accordance with the NPPF. Such exceptional circumstances will only be permitted where other considerations outweigh the harm to the Green Belt. It is not sufficient justification to override Green Belt policies because a development would be inconspicuous or would not harm the site or locality.

For uses appropriate in the Green Belt, development which would adversely affect the open and rural character would be contrary to the objectives of the Green Belt. Where development is permitted, appropriate landscaping and maintenance conditions will be necessary in order to ensure that the impact on the Green Belt is lessened and mitigated against.

This Development Strategy is not proposing to review any of the Borough's Green Belt boundaries or allocate any development sites or proposals within the Green Belt in accordance with policy stance taken in the Black Country Core Strategy (2011). A review of the Black Country Core Strategy is scheduled to commence in 2016 which will include a comprehensive Green Belt review and propose any green belt boundary changes accordingly.

#### **Policy S23 - Green Belt**

There shall be a presumption against inappropriate development in the Dudley Borough's designated Green Belt. The boundaries and extent of the Green Belt are shown on the Policies Map forming part of the Dudley BDS. Within the Green Belt, development will not be permitted except for circumstances set out in the National Planning Policy Framework or superseding national policy and guidance on this matter.

#### **Agricultural and Rural workers dwellings**

In assessing proposals for new agricultural, forestry, horticulture or countryside workers' dwellings in the Green Belt, Green Belt Policy will apply in chief, and it is a requirement that such proposals, establish a functional need for any such dwelling – e.g. to establish whether it is essential for one or more workers to be available at site at most times for the proper functioning of the agricultural enterprise.

#### **Policy S24 - Agricultural and Rural Workers Dwellings**

If a new dwelling is proposed as essential to support a farming activity or other rural enterprise, whether on a newly-created agricultural unit or an established one, it should normally, for the first three years, be provided by temporary accommodation.

Any new permanent agricultural, forestry, horticulture or other essential rural workers dwellings will only be allowed if the following circumstances can be demonstrated;

- there is a clearly established existing functional need
- the need relates to a full-time worker, or one who is primarily employed in agriculture and does not relate to a part-time requirement
- the residential unit and the agricultural activity concerned have been established for at least 3 years, and can be clearly demonstrated to be an economically viable use
- the functional need could not be fulfilled by another existing dwelling at the planning unit, or any other existing accommodation in the local area which is suitable and available for occupation by the worker(s) concerned

- a dwelling which has served the holding has not recently been severed off or sold off from the holding
- the proposed dwelling is of a size and type commensurate with its established functional requirement.

Where temporary or permanent planning permission is granted, the Council will impose an Agricultural Occupancy Condition to ensure that the dwelling is used only for purpose of housing essential workers in accordance with this policy.

## Canals

The following policies will be applied in conjunction with the policies contained within the Core Strategy, in particular: EMP6 Cultural Facilities and the Visitor Economy CSP3 Environmental Infrastructure and ENV4 Canals.

Canals have played an important role in shaping the development of Dudley Borough since the 18th Century. Today, the canal network is not only important for its historic and archaeological value, but also its value for nature conservation, recreation and tourism. Canals and their settings also provide high quality environments for new development.

### Policy S25 - Canals

The Council will seek to improve the functional, recreational, environmental, historic, ecological and geological conservation value of the canals in Dudley Borough. This will be done in accordance with Policy ENV4 of the Black Country Core Strategy and by following the guidance and principles in the Council's Strategy for Dudley Canals or any superseding provisions and/or guidance adopted by the Council.

The Council will expect all development alongside and near to canals to;

- positively relate to the opportunity presented by the waterway and achieve high standards of design including providing active frontages on to the canal and improving the public realm
- be sensitively integrated with the canal and any associated canal-side features
- be responsive and sensitive to the historic environment including conserving and enhancing any Heritage Assets including the conservation areas at Bumble Hole, Parkhead Locks, Delph Locks, Stourbridge Sixteen Locks and the Stourbridge Branch Canal
- where suitable, make provision for Green Infrastructure within the canal-side environment, incorporating landscaped areas that provide a natural setting for the canal and/or improve the wildlife value of the local

environment

- improve public access and signage to, and along, the canal particularly for pedestrians and cyclists, and also disabled access, to link the canal towpath into a wider network of pedestrian and cycle pathways, especially to access the Borough's Centres and the Green Belt.

Development on sites that include sections of disused canals should protect the line of the canal through the detailed layout of the proposal. The Council will, in appropriate circumstances, secure improvements to the canal in order to maintain the potential for reopening any sections of the canal network which are currently closed.

### Residential Canal Moorings

With increasing use and interest in canals, there is an increasing demand for secure, well serviced residential and visitor moorings. Residential moorings must be sensitive to the needs of the canalside environment in conjunction with nature conservation, green belt and historic conservation policies but also, like all residential development, accord with sustainable housing principles in terms of design and access to local facilities and a range of transport choices.

#### Policy S26 - Residential Canal Moorings

Planning consent will only be given for residential moorings in locations which include the provision of;

- necessary boating facilities (a minimum requirement of electrical power, a water supply and sanitary disposal)
- appropriate access, including links to cycling and walking, and especially access for emergency vehicles and access for people with disabilities
- an adequate level of amenity for boaters, not unduly impacted upon by reason of noise, fumes or other nearby polluting activities.

All locations for residential moorings shall also include the provision for vehicular parking at one space per boat unless otherwise demonstrated with supporting evidence. Such parking shall be provided within 500 metres of the moorings, with the spaces allocated and not used for any other purpose.

The location of new canal residential moorings will need to take into account other policies in this Development Strategy, including Green Belt policies where a proposal falls within such an area.

## River Stour and its Tributaries

The River Stour runs east to west through the south of the Borough from Lapal to Wordsley. Over the years, development alongside and over the river has been accompanied by culverts and other man-made features to control or redirect the flow of the river. This has had a detrimental effect on the natural environment as well as leading to a decrease in natural drainage and run-off which has increased the possibilities of flood risk in certain locations. Where possible, future development alongside and close to the river must take steps to reverse or improve this situation.

### Policy S27 - River Stour and its Tributaries

Dudley Council will require all development proposals and other enhancement proposals, alongside or in close proximity to the River Stour and its tributaries to accord with the provisions of Core Strategy Policy ENV5 and through cross-boundary partnership working with neighbouring authorities, the Environment Agency and the Canals and Rivers Trust as appropriate.

Dudley Council will also require works which;

- enable the restoration of the natural riverbank habitat and, as appropriate, create new habitats, and remove invasive plant species from the riverside environment
- enable the restoration of the in-channel habitat structure including the removal of culverts and improving the water quality of discharges into the watercourse
- seek to retain, or create, an area of Green Infrastructure either side of the River Stour channel and its tributaries, of at least 10 metres in width from each riverbank top, unless this can be satisfactorily demonstrated to be unfeasible or unviable or it is in conflict with other Local Plan policies.
- create a footway and cycleway of a combined width of 3.3 metres (minimum) within a landscaped setting along at least one side of the watercourse to link in with the wider network of paths and cycleways. Where these links are broken, new links shall be formed where possible, and the river bridges which support this network made structurally sound and legible as river crossings to enable connectivity within this network. In some instances, Dudley Council will seek to require the provision of new river bridges.

## Recreation and Community Uses

The following policies will be applied in conjunction with the policies contained within the Core Strategy, in particular: ENV6 Open Space, Sport and Recreation and Policy EMP6 Cultural Facilities and the Visitor Economy

### Sports Facilities and Stadiums

The provision of sports facilities and stadiums plays an important role in promoting health and well being for the Borough's residents (see Policy S2) as well as fostering opportunities for employment and community cohesion. The Council, in recognising their importance, is committed to minimising the future loss of such facilities. At the same time, the Council will positively encourage the provision of new proposals and facilities in line with the following policy in order to maintain a portfolio of sports facilities and stadiums which provides for the needs of both residents and visitors alike.

#### Policy S28 - Sports Facilities and Stadiums

Proposals for new indoor sports halls, new sports stadiums and other new sports developments must be sufficiently well designed in terms of overall scale, character and appearance in keeping with their surrounding area as well as being assessed and considered against the following criteria and their associated policies;

- located in highly accessible areas with good access to public transport
- providing links to cycling and walking networks and including appropriate provision of cycle storage
- impact on the loss of areas of importance and value for informal or formal recreation
- physical and visual impact on the amenity of adjacent residential areas and other land uses including in terms of noise, parking and increased lighting
- impact on the loss of designated sites of value for nature conservation as well as any adverse impacts on adjacent sites of nature conservation value
- physical and visual impact on areas of high importance for landscape quality
- impact on sites of historical value or archaeological interest;
- highway safety
- adequacy of parking provision.

Associated uses such as restaurants, cafes or retail will only be accepted if they are ancillary to the main proposal.

The Council will encourage the dual-use of school or private sports grounds (playing fields) and indoor sports halls, where appropriate to increase the cost



effectiveness and access by all sections of the community for all such sports facilities

The location of new sports facilities and stadiums will need to take into account other policies in the Borough Development Strategy including Green Belt policies where a proposal falls within such an area.

## Public Open Space

Retention, improvement and management of informal and formal public open space across the Borough is a significant issue to ensure suitable levels and standards are available to the public, particularly in light of an increased borough population, mainly as a result of a continuing increase in the housing supply.

In addition, there is a requirement for the Council to protect areas of tranquillity as defined in the NPPF (paragraph 123).

Only the public open spaces previously designated as parks are highlighted on the proposals map for identification purposes. However there are other areas of POS across the Borough which are not designated on the map but meet the criteria of the policy below.

### Policy S29 - Public Open Space

Development proposals which impact on areas of Public Open Space (POS) will be assessed against the criteria which inform on the value of such areas as set out in Core Strategy Policy ENV6 (Open Space, Sport and Recreation), and also the criteria set out in the NPPF at paragraph 74 (or superseding policy). These provisions will also apply to assessing proposed or existing, unlawful encroachments into areas of POS as a result of the extension of the site curtilage, including the extension of private garden land.

Developers will be encouraged to seek opportunities to use open space as a dual function, offering a reduction in flood risk (through flood water and surface water storage) and improvements in amenity.

Dudley Council will seek to identify areas of tranquillity and protect the value of such areas to the local community as publically accessible areas which are undisturbed by significant noise and light pollution.



## Public Open Space within New Large Housing Developments

New large residential developments generate a requirement for outdoor playing space. This ranges from small areas of amenity green space that sometimes have seating and play equipment, through to larger areas of green space for informal recreation and outdoor sports space. Evidence from the Council's adopted Parks and Green Space Strategy (Green Space Audit) (2009) show that coverage levels of publicly accessible green space varies across the Dudley Borough with some areas being well-served and some areas having less provision.

Therefore in order to promote healthy lifestyles and sustainable development it is important to ensure that there are good levels of access to recreational amenity green space close to existing and new residential communities.

### Policy S30 - Public Open Space within New Large Housing Developments

Development proposals of 80 residential dwellings or more will be required to provide new on-site recreational amenity green space if the site is isolated from and poorly served by existing nearby publicly accessible open space areas within a 1 kilometre straight line distance.

Where new recreational green space provision is being provided on-site, developers will be expected to provide for its future maintenance in accordance with standards set out in the Council's latest Planning Obligations SPD.

If it can be demonstrated that it is not practical or viable to provide new on-site informal recreational green space, then a financial contribution will be required towards new or improving nearby off-site public open space areas or play equipment which are well linked by means of cycling and walking in accordance with standards set out in the Council's latest Planning Obligations SPD.

New on-site recreational green space should be provided to the following quantity standard: At least 0.81 hectares of amenity green space per 1,000 population.

### Policy S31 - Children's Play Areas

Children's play areas will be retained and, where necessary, improved.

Where a development proposal results in the loss of existing children's playspace, or results in an increased deficiency in the availability of such playspace, then planning permission will only be granted if a replacement facility of equivalent or better quantity and quality is provided. Such a replacement facility should be in an agreed suitable location well linked by means of cycling and walking and operational before the new development is occupied.

In residential development proposals over the 80 units threshold, equipped children's play areas will be explored within the on-site recreational green space area in consultation with the Council to assess the type of play equipment needed to meet need. Guidance in the Council's latest Open Space, Sport and Recreation Provision SPD will be considered in the suitability and type of any new play area.

## Parks

Within the 2005 Unitary Development Plan (UDP), a hierarchy of Town Parks and Local Parks was established. However, this hierarchy has become outdated and so the Borough Development Strategy is proposing a single designation set out in the Policy below consisting of a series of Community Parks located strategically across the Borough.

In order to come up with the proposed list of Community Parks set out below, the Council have undertaken a review of all 11 Town Parks and 48 Local Parks identified in the 2005 UDP based upon their 1000 metre catchment areas. This provided an overview of their geographic distribution and any areas of under or over provision but was then considered in tandem with the quality of each park depending on the level of facilities on offer. This was done according to a national benchmarking tool for parks and open spaces devised by the Association of Public Service Excellence (APSE) along with some additional criteria to bring in Dudley specific elements to the assessment.

By analysing this information, together with the geographic distribution of the respective sites, it has been possible to establish a single tier of 'Community Parks' which would ensure that every resident of the Borough has approximately equal access to this type of facility.

### Policy S32 - Parks

The Council will protect parks from inappropriate development that would jeopardise their existing and future role, function, and setting and is committed, in consultation with the local community, to maintain and, where possible, improve and upgrade them to a standard appropriate to their identified function.

#### **The Leasowes - Historic Park:**

The Leasowes will continue to be restored and maintained as far as possible to the original design and setting taking into account the needs for nature conservation. It is designated as Grade I on English Heritage's Register of Parks and Gardens of Special Historic Interest in England which signifies that it is "of exceptional interest" (only 9% of 1600 Parks and Gardens on the

Register are Grade I).

### **Community Parks**

Community Parks (identified below) will be protected and appropriate works to improve their standard and amenity would be supported including their links to cycling and walking networks.

The proposed Community Parks for Dudley Borough are therefore listed below:

- Priory Park, Dudley - also recognised by English Heritage as a Grade II Registered Park and Garden
- Grange Park, Dudley
- Netherton Park
- Quarry Bank Park (Steven's Park)
- Sedgley Hall Farm Park
- Silver Jubilee Park, Coseley
- King George V Park, Wordsley
- King George VI Park, Kingswinford
- Marsh Park and Lawyers Field Brierley Hill
- Mary Steven's Park, Stourbridge
- Steven's Park, Wollescote

The above were all identified as Town Parks in the Dudley Unitary Development Plan (2005) but it is also proposed that the following parks, previously designated as Local Parks in the 2005 UDP, are to be designated as Community Parks.

- Green Park, Kates Hill
- Buffery Park, Dudley
- Woodside Park, Dudley
- Dudley Wood Recreation Ground
- Milking Bank, Open Space
- Clayton Park, Coseley
- Vale Street Recreation Ground, Gornal
- Abbey Street Recreation Ground, Gornal
- The Straits Open Space, Sedgley
- Wall Heath and Enville Road, Wall Heath
- The Dell Recreation Ground, Brierley Hill
- Wollaston Recreation Ground
- Amblecote Recreation Ground
- Huntingtree Park, Halesowen
- Hurst Green Park, Halesowen
- Highfield Park, Halesowen
- Homer Hill Park, Cradley

## Playing fields

Sites of existing publicly accessible Playing Fields are shown on the relevant proposals map appended to this consultation document. The Council's adopted Parks and Green Space Strategy (June 2009) and the Dudley Playing Pitch Strategy (2015) contain coverage maps which show the distribution of publicly accessible playing fields across the Dudley Borough and identifies areas of current deficiency for playing fields.

### Policy S33 - Playing Fields

The loss of any playing fields will be resisted in accordance with the National Planning Policy Framework.

Across the Borough, the Council will encourage the dual use (for public access) of existing school playing fields and the creation of new additional playing fields sites as part of major new development proposals. Where practical, to increase the accessibility of such facilities, including for walking and cycling, the upgrading of standard pitches to multi-use areas will also be encouraged.

Proposals for new playing fields should seek to build-in biodiversity features as part of the wider redevelopment proposal to help support wildlife. Where possible and practicable, the retention and provision of natural turf pitches as opposed to the use of synthetic or artificial pitches can better help reduce flood risk, promote urban cooling, support local biodiversity and enhance the landscape setting and visual amenity of urban areas.

## Allotments

The demand for allotments in the Borough has increased over recent years as greater numbers of people are seeking space to grow their own food produce. This is important as it provides a sustainable source of local produce and also encourages healthier eating which links to other policies within this document on Planning for Health. It is therefore important for the Council to help protect existing allotment sites and encourage the provision of new allotment sites.

### Policy S34 - Allotments

The redevelopment of allotment sites for other uses will not be allowed if a substantial part of the site is in use; or there is proven demand for allotments in the area.

Redevelopment of an allotment site will only be allowed if alternative allotment provision of the same or better quality and quantity is provided in the locality before the use of the existing allotment ceases.

Planning permission will not be granted simply because an allotment site has been allowed to fall out of use and become derelict.

Proposals for the provision of new allotment sites will be permitted provided that they;

- are accessible by a variety of transport means, including walking and cycling as well as adequate parking
- do not result in the loss of, or harm to a high quality nature conservation site
- do not harm the visual amenity, landscape setting and appearance of the area
- do not result in the loss of an area of importance and value for informal or formal recreation
- do not detrimentally harm the amenity of adjacent residents and/or highway safety
- safeguard and enhance any biodiversity features where possible to help support wildlife.

On all allotment sites, the Council will encourage sustainable methods of power, the storage and re-use of water and on-site composting where appropriate.

### **Burial Land including Cemeteries and Crematoriums**

Land available for burials is limited within the Borough. In order to ensure that burial sites are available for the local communities Borough-wide it will be necessary to identify suitable sites. The Council will also consider favourably proposals for green burial sites as a sustainable form of burial.

Proposals for new burial sites must take into consideration the Environment Agency (EA) guidelines for the location and layout of burial grounds especially in terms of minimum distances between burial sites and how to deal with watercourses, wells, boreholes and springs amongst other considerations.

Whilst this can be an emotive and difficult issue, there is clear evidence of the pollution potential from cemeteries and that some form of control is often needed. The burial of human remains results in the release of a variety of substances and organisms into the subsurface. These may, in time, find their way into the groundwater. Therefore, groundwater can be at risk of pollution from human burials where the numbers are sufficient and the protection afforded by the subsurface geology is poor.

The EA must be consulted in the preparation of proposals for any new burial site.

### **Policy S35 - Burial Land including Cemeteries and Crematoriums**

Wherever possible the safeguarding and extension of existing burial grounds, including churchyards and cemeteries should be given preference. Where these are full, additional sites in the vicinity should be considered favourably providing they do not;

- adversely harm the amenity of adjacent residential areas
- result in the loss of an area of importance and value for informal or formal recreation
- result in the loss of agricultural land
- result in the loss of, or harm a high quality nature conservation site.

New proposals for cemeteries and crematoriums need to have consideration for the following;

- must be located in accessible locations well-served by a range of transport modes including walking and cycling and be close to existing settlements to minimise travel distances
- must have adequate parking facilities
- need to consider the needs of different faiths
- where feasible, retain and include existing landscape, nature conservation and biodiversity features within their design
- if appropriate, make use of existing buildings and infrastructure
- take account of the latest Environment Agency Guidance on groundwater protection (GP3 or latest equivalent).

## **Public Houses**

### **Policy S36 – Public Houses**

Dudley Council will guard against the unnecessary loss of valued public houses, particularly where this would reduce the community's ability to meet its day-to-day needs, by assessing any application for their change of use or their redevelopment against the provisions of the NPPF and the development plan.

## Housing

The following policies will be applied in conjunction with the policies contained within the Core Strategy, in particular: **HOU1** Delivering Sustainable Housing Growth; **HOU2** Housing Density, Type and Accessibility; **HOU3** Delivering Affordable Housing; **HOU4** Accommodation for Gypsies and Travellers and Travelling Showpeople; **DEL2** Managing the Balance between Employment Land and Housing.

### Housing Delivery

The creation of cohesive, healthy and prosperous communities is vital for the achievement of the Vision for the Black Country. The Core Strategy identifies sufficient land to achieve 63,000 net new homes in the Black Country by 2026 under Policy HOU1. It is this document that provides the detail on land supply within the Dudley Borough, indicating where these new homes can be delivered.

Sites suitable for residential development or redevelopment have been identified in order to provide land to meet housing provision requirements. These sites are designated on the Corridor Maps and Proposals Map.

Local services appropriate within residential areas, such as health, education and community facilities may be required where there is a service need and the use would not conflict with policies CEN6 and CEN7 of the Core Strategy.

A target of at least 16,127 net dwellings is anticipated to be delivered within Dudley Borough with specific sites now identified to indicate the housing land supply, through the site allocation process. A list of the proposed housing site allocations can be found in Part Two of this document. The Black Country Local Authorities are committed to a review of the Black Country Core Strategy starting in 2016. This will look at housing need beyond 2026 and will take account of wider needs across the wider West Midlands housing market area through co-operation across the relevant local authorities.

Table 1 sets out Dudley Borough's housing land supply up to 2026. This is subject to review on an annual basis in order to update the housing trajectory and supply of specific deliverable sites, reported within the Council's Strategic Housing Land Availability Assessment (SHLAA) and Annual Monitoring Report (AMR).

**Table 1: Housing Land Supply 2006-2026**

|                                                                           |              |
|---------------------------------------------------------------------------|--------------|
| Net completions 2006-2015                                                 | <b>5151</b>  |
| <b>Additional Capacity within Regeneration Corridors up to 2026</b>       |              |
| Regeneration Corridor 10                                                  | 398          |
| Regeneration Corridor 11a                                                 | 851          |
| Regeneration Corridor 11b                                                 | 1059         |
| Regeneration Corridor 13                                                  | 1597         |
| Regeneration Corridor 14                                                  | 210          |
| Regeneration Corridor 16                                                  | 1190         |
| <b>Total Additional Capacity within Regeneration Corridors up to 2026</b> | <b>5305</b>  |
| Strategic Centre (Brierley Hill AAP)                                      | <b>2836</b>  |
| Stourbridge, Halesowen and Dudley Town Centres Area Action Plans          | <b>907</b>   |
| Freestanding Employment sites                                             | <b>298</b>   |
| Capacity outside of the Growth Network                                    | <b>419</b>   |
| Sites Under Construction                                                  | <b>1049</b>  |
| Small sites allowance (under 0.25 hectares) from 2015/16 -2025/26 *       | <b>1639</b>  |
| <b>TOTAL GROSS CAPACITY UP TO 2026</b>                                    | <b>17604</b> |
| Anticipated demolitions 2015-2026**                                       | <b>-220</b>  |
| <b>TOTAL NET CAPACITY UP TO 2026</b>                                      | <b>17384</b> |

\*Based on the average number of completions on sites under 0.25 hectares over the last 8 years (149 per year)

\*\* Based on the anticipated average number of demolitions of 20 per year

Housing capacity has been identified on the basis of the following evidence base:

- The Council's Strategic Housing Land Availability Assessment (SHLAA)
- Employment studies – the Council has carried out an Employment Land Review (2014) identifying projected supply of surplus employment land



## Housing Development, extensions and alterations to existing dwellings

In order to ensure that housing development is of high quality, in sustainable locations, the following policy aims to protect and enhance the locally distinctive character and amenity of existing areas in the Borough.

### Policy L1 - Housing Development, extensions and alterations to existing dwellings

Housing development will be supported on previously developed land and on sites in sustainable locations, close to public transport facilities and links. Housing development, residential conversions, extensions and alterations to existing dwellings will be permitted, provided that;

- the design of the development is of an appropriate form, siting, scale, and mass, with the use of appropriate materials, which respect and are responsive to the context and character of the surrounding area (unless the proposal can be assessed as being significantly innovative, particularly in terms of sustainable measures or outstanding design). In addition, in the case of residential conversions, extensions and alterations, such development shall not have a detrimental impact on the character, form and design of the host dwelling.
- the development is appropriate in its locality and would not cause unacceptable harm to the amenities of the occupiers of neighbouring dwellings, including harm arising from loss of privacy, outlook and sunlight, taking into account factors such as levels, orientation and the separation of development
- an appropriate level of amenity shall be provided for future occupiers of the development including the provision of adequate accessible space for the storage and collection of household waste;
- the development would provide adequate access, parking and provision for the manoeuvring of vehicles, with no detrimental impact on highway safety and free flow of traffic.

## Supported Accommodation

Providing a range of housing types, tenures, densities and the need to deliver affordable housing forms the basis of Core Strategy policies HOU2 and HOU3. This is fundamental in creating inclusive communities and providing a choice for new and existing residents in the Borough. Housing Needs evidence (2011) supports these objectives and highlights the importance of addressing the housing and support needs of the Borough's ageing population. The following policy supports the provision of supported accommodation for people with specific needs, such as the elderly.

## Policy L2 - Supported Accommodation

The Council will support the provision of accommodation for people with specific needs, where a need has been identified. Proposals providing accommodation for people with specific needs, including care homes and extra care facilities will be considered in relation to the following criteria;

- accessibility to public transport links and local services
- compatibility with adjacent uses and resulting impact on the character and adequate level of overall amenity of the surrounding area
- provision for sufficient parking, manoeuvring of vehicles and impact on highway safety
- provision of private amenity space or be in close proximity to an area of public open space.

## Affordable Housing

National Planning Policy recognises that the provision of housing to meet the needs of present and future generations is a key role of the planning system, and widening the choice of high quality homes through the provision of a range of housing types, tenures, densities and affordability is a key driver towards the delivery of sustainable developments.

The Black Country Core Strategy also aspires to create a network of cohesive, healthy and prosperous communities across the Black Country, with equal access to a mix of affordable and aspirational housing. Core Strategy Policy HOU3 'Delivering Affordable Housing' seeks to secure 25% affordable housing on all sites across the Black Country of 15 dwellings or more with aim to provide a minimum of 11,000 new affordable homes between 2006 and 2026, in partnership with developers and the Homes and Communities Agency.

## Policy L3 - Provision of Affordable Housing in New Developments

Where a requirement for affordable housing has been identified in line with Core Strategy Policy HOU3, this provision should be delivered on-site, except where reasoned justification has been demonstrated to the Council's satisfaction that it is more appropriate to provide the affordable housing requirement either off-site or via a commuted sum. Off-Site Provision of Affordable Housing will only be acceptable in exceptional circumstances and where the Council has been satisfied that the alternative location;

- is a location where housing is supported in principle
- is capable of delivering the number of affordable units required on the principal site (usually 25% of the total)

- is delivered no later than if the affordable housing had been provided on-site
- is within an area where there is not already a concentration of social rented accommodation.

Commuted Sums for Affordable Housing will only be acceptable where on-site affordable housing can be robustly justified not to be viable or feasible. The Council will normally secure Affordable Housing from developers through the use of Planning Obligations (S106 Agreements).

## Type, Tenure and Location of Affordable Housing in New Developments

### Policy L4 - Type, Tenure and Location of Affordable Housing in New Developments

In order to achieve mixed and balanced communities, the Council will normally require affordable housing units to be identical in appearance to the market housing units (tenure blind) and be dispersed in clusters within the site.

The required type and tenure mix of affordable housing units will be determined on a site by site basis, and should be in line with the Council's latest Housing Market Intelligence Report, except where there are exceptional circumstances to justify alternative provision.

The Council will only accept affordable housing tenure types that fall within the definition as set out in Annex 2 of the NPPF.

#### **Phasing of a housing development or subdivision of a housing site into smaller parcels of land.**

Where it is proposed to either phase housing development on a site, or subdivide a housing site into smaller parcels of land, Dudley Council will require a commitment, normally through the terms of a planning obligation, that the applicable quantum of affordable housing is provided across the whole site. In addition the number of affordable units for each phase or parcel be specified, or that each phase of the development or parcel of land provides affordable housing proportionate to the level required across the whole site.

## Accommodation for Gypsies and Travellers

In recognising the accommodation needs of all sectors of the community, the Black Country Core Strategy set out indicative targets for the provision of new pitches in each of the Black Country Boroughs from 2008 to 2018 for gypsies and travellers.

The target number of pitches for Dudley for this period was 51(including those already in existence) in accordance with the Black Country Gypsy and Traveller Accommodation Assessment (GTAA) carried out in 2008.

The Borough is currently meeting its provision for 51 pitches which are split amongst five sites throughout the Borough, all of which in use as gypsy and traveller accommodation sites as set out below.

| <b>Site</b>                                  | <b>Existing Pitches</b> | <b>Further Capacity</b> |
|----------------------------------------------|-------------------------|-------------------------|
| Oak Lane, Pensnett (Owned by Dudley Council) | 22                      | 0                       |
| Smithy Lane, Pensnett (Private)              | 15                      | 0                       |
| Holbeache Lane, Wall Heath (Private)         | 4                       | 4                       |
| Dudley Road, Lye (Private)                   | 6                       | 0                       |
| Delph Lane, Brierley Hill (Private)          | 4                       | 2                       |
| <b>Total within Dudley Borough</b>           | <b>51</b>               | <b>6</b>                |

There is also potential for a further 6 pitches if land at the Holbeache Lane Site and the Delph Lane site were utilised more efficiently.

In the meantime, any other proposals for sites for gypsies and travellers will be assessed using the proposed criteria-based policy set out at the end of this section.

As part of the review of the Black Country Core Strategy which is due to commence in 2016, the four Black Country Authorities will jointly be carrying out a further GTAA to examine the need for Gypsy and Traveller accommodation beyond 2018. Any further site requirements, if deemed necessary beyond 2018, will be allocated through the Core Strategy review.

### **Accommodation for Travelling Showpeople**

The Black Country Core Strategy also set out indicative targets for the provision of new pitches in each of the Black Country Boroughs from 2008 to 2018 for the needs of travelling showpeople. The target number of travelling show people pitches for Dudley for this period was 6 in accordance with the Black Country Gypsy and Traveller Accommodation Assessment (GTAA) carried out in 2008.

The Council already has one site occupied by travelling showpeople but it is likely that an additional site is required to meet current needs or an alternative larger site. Any proposals for sites for travelling showpeople will also be assessed using the proposed criteria-based policy set out at the end of this section.

Similarly to the needs of gypsies and travellers, the review of the Black Country Core Strategy which is due to commence in 2016, will be accompanied by a further GTAA

to be jointly carried out to examine the need for Travelling Showpeople accommodation beyond 2018. Any further site requirements, if deemed necessary beyond 2018, will be allocated through the Core Strategy review.

#### **Policy L5 – Provision of Accommodation for Gypsies Travellers and Travelling Showpeople**

The provision of accommodation for Gypsies, Travellers and Travelling Showpeople will be supported on suitable sites in sustainable locations where;

- the site would not adversely affect the character of the immediate or surrounding area, and there would be no significant adverse impact on the amenity of nearby residents or on the operations of adjoining land uses
- the site is of sufficient size to accommodate pitches of an appropriate size, and, in the case of Travelling Showpeople, to accommodate appropriate levels of storage space
- there is safe and convenient pedestrian and vehicular access to and from the public highway and adequate space for vehicle parking and manoeuvring within the site
- the site is accessible to shops, schools, health facilities and employment opportunities by public transport, on foot or by cycle and is capable of being served by services such as mains water, sewerage and power and waste disposal
- there is no conflict with other relevant policies such as those relating to the protection of the Green Belt, other greenfield land and industrial land, and those concerned with development within areas at risk of flooding or on contaminated land.

In applying the above criteria the Dudley Council will seek to ensure that there is an even distribution of sites across the Borough.



## Employment and Economy

The following policies will be applied in conjunction with the policies contained within the Black Country Core Strategy (BCCS), in particular: Policy EMP1 sets out overall employment land targets at the Borough level and Policies EMP2 and EMP3 break the overall figure down into High Quality and Local Quality Employment Areas. Policy EMP4 sets out targets for the supply of readily available employment land.

The figures set out in the BCCS for Dudley Borough are as follows:

**Table: Core Strategy Employment Land Targets**

| Target                                      | Area         |
|---------------------------------------------|--------------|
| Total Employment Land Stock Target by 2026  | 648 hectares |
| Total High Quality Employment Land by 2026  | 274 hectares |
| Total Local Quality Employment Land by 2026 | 374 hectares |
| 5 year land supply target                   | 28 hectares  |

### Strategic High Quality Employment Areas

Those areas which are identified as High Quality and Potential High Quality Employment areas and those Local Quality Employment areas which are identified within the Strategic Employment Land Review (SELR) to remain as such will be protected in accordance with Policies EMP2 and EMP3 of the Black Country Core Strategy. Opportunities to enhance and improve the identified employment areas will also be encouraged to foster the continuous physical and economic improvement of the Borough's main industrial areas in accordance with the following proposed Policy.

#### Policy L6 - Strategic High Quality Employment Areas

Existing, Potential and Proposed Strategic High Quality Employment Areas (SHQEA) as identified within the Strategic Employment Land Review (SELR) will be safeguarded for industrial employment uses (B1b, B1c, B2 and B8 Uses), and the environment within these SHQEA enhanced and upgraded.

Both Potential and Proposed SHQEA will be upgraded to SHQEA by, in particular, the following interventions;

- ground remediation and the bringing forward of vacant land or underused buildings or facilities within these areas, back into a high quality industrial employment use
- strategic and local access improvements, including on-site parking and links to the walking and cycling network
- environmental uplifts including landscaping and tree planting and, as

appropriate, the enhancement of both heritage assets and the nature conservation resource

- the provision of renewable energy and other measures which promote environmental sustainability.

In addition to the High Quality Employment Areas highlighted above, the BCCS also identifies a need for a large logistics site or sites to serve the Black Country which is currently subject to further work in conjunction with neighbouring Authorities.

Dudley Council will continue to investigate potential opportunities within its boundaries for large scale employment areas which are well connected to accessible road networks and which meet the demands of business investors to further the recovery and expansion of the economy of Dudley Borough and the wider Black Country.

### Local Quality Employment Areas

#### Policy L7 - Local Quality Employment Areas

The Borough's Local Quality Employment Areas (LQEA) are allocated to remain as LQEA or for potential release for alternative uses, primarily housing to help enable the reduced land target for LQEA as set out in BCCS Policy EMP3 to be met and to enable the effective application of BCCS Policy DEL2.

LQEA allocated on the Proposals Map will be retained for employment uses as set out in BCCS Policy EMP3, and the environment of these areas upgraded so as to be conducive to attracting further investment in local employment uses and initiatives.

With regard to LQEA allocated to be released for housing, for the purposes of the application of BCCS Policy DEL2, these will be regarded as areas identified for new housing growth.

### Protecting the Viability and Integrity of Industrial and Business Uses

Policy DEL2 of the Black Country Core Strategy (Managing the Balance between Employment Land and Housing) sets out a list of criteria by which existing employment land can be released for housing. In addition to Policy DEL2, it is proposed to include a complimentary Policy within the Development Strategy concerning the protection of industrial and business uses which are scheduled to remain as part of any redevelopment proposals.



## Policy L8 - Protecting the Viability and Integrity of Industrial and Business Uses

Where new non-industrial development is proposed near to an existing business (B1, B2, B8) site, particularly where those non-industrial uses may threaten the viability of the neighbouring industrial use or the integrity of the wider industrial area, such a proposal will only be permitted;

- if the site is no longer viable and required either for employment use, including relocation of businesses displaced from sites released to other uses, or for other employment-generating uses in accordance with Policy DEL2 of the Black Country Core Strategy
- if it can be demonstrated that the new non-industrial development would not adversely affect the continued viability and operation of the existing business use, and suitable mitigation measures can be built into the new proposal to address such concerns as necessary. Where this is to be achieved by way of a buffer, the new development will be required to provide and maintain the buffer.



## Retail and Centres

The following policies will be applied in conjunction with the policies contained within the Core Strategy, in particular: **CEN1 to CEN 8**. Please also refer to Part C of this Document which has maps of all the District and Local Centres in the Borough showing their boundaries, their Protected Frontages and any opportunity sites which exist within the boundary.

### Hierarchy of Centres in the Borough

The Core Strategy sets out a hierarchy of centres for the Black Country in Policy CEN2 where investment in retail and town centre uses of an appropriate scale to meet its position in the hierarchy will be promoted and existing provision enhanced to facilitate sustainable development.

The defined centres are shown in the hierarchy and identified on the centres key diagram for the Core strategy. A hierarchy of centres consisting of three levels has been identified across the Black Country:

- Strategic Centres;
- Town Centres; and
- District and Local Centres.

**Table: Hierarchy of Centres in Dudley Borough**

| Strategic Town Centre | Town Centres                       | District Centres               | Local Centres                                                                                                                                                                                                       |
|-----------------------|------------------------------------|--------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Brierley Hill         | Dudley<br>Halesowen<br>Stourbridge | Kingswinford<br>Lye<br>Sedgley | Amblecote<br>Cradley/Windmill Hill<br>Gornal Wood<br>Hawne*<br>Netherton<br>Oldswinford*<br>Pensnett<br>Quarry Bank<br>Roseville<br>Shell Corner<br>The Stag<br>Upper Gornal<br>Wall Heath<br>Wollaston<br>Wordsley |

**\*New local Centres identified in the Black Country Core Strategy**

In the Borough, the strategic centre of Brierley Hill provides the main focus for significant growth in office and comparison retail floorspace. The three town centres of Dudley, Halesowen and Stourbridge will complement Brierley Hill

and perform an important focus for day-to-day shopping, leisure and community activity. Development in Brierley Hill, Halesowen and Stourbridge are guided by adopted Area Action Plans providing a clear framework for phased development. The planned regeneration of Dudley town centre is currently set out in The Dudley Area Development Framework (adopted December 2005) but is being updated through the preparation of the Dudley Area Action Plan which is due to be adopted by the end of 2015.

This Borough Development Strategy focuses on the district and local centres and the specific policy approach to protect their vitality and viability. Regeneration priorities will be identified and to help deliver projects. The district and local centres range in scale but all provide day-to-day convenience shopping and services to meet local needs. There are three District Centres which provide a reasonable range and choice of goods and services. All benefit from good public transport links, car parking provision and a strong walk-in catchment area. They provide a natural focus for community facilities and are traditionally a main shopping destination. It is therefore important that these centres retain or improve their existing level and quality of convenience store representation as well as other shops to sustain and enhance their viability. However, Lye has been identified as a regeneration priority through the Core Strategy and needs to secure a supermarket to maintain its role as a district centre.

There are 15 local centres in the Borough which generally have a small scale supermarket and a range of convenience based shops. It will remain important to provide sufficient and attractive well located car parking to underpin the relative competitiveness of each centre both in terms of attracting investment and meeting the public's needs.

The hierarchy of centres has been reassessed through the Black Country Centres Study 2009 by GVA Grimley. The process resulted in the identification of two new local centres within the borough – Hawne and Oldswinford. The detailed boundaries for the two new local centres, any adjustments to existing centre boundaries, and primary and secondary frontages will be delivered through this Borough Development Strategy and have been set out in the Proposals Map. Currently there is no evidence to justify additions or changes to the above hierarchy except for the potential designation of additional local centres over the plan period.

Within the borough there are also a significant number of small local shops either individually or in small parades of shops meeting essential day-to-day needs of communities within walking distance which wherever possible should be protected. Small scale-local facilities to serve existing or future gaps in day-to-day top up-

shopping, particularly in the housing-led regeneration corridors will be supported subject to the relevant Core Strategy policy tests being met.

### Protected Frontages in District and Local Centres

The network of District and Local Centres detailed above, and set out in plan form in Part Three of this Document, will be maintained and enhanced as a means of providing access to a wide range of shops, services and other activities in accessible locations.

#### Policy L9 - District and Local Centres Protected Frontages

Proposals to use ground floor units for non-retail use within the District and Local Centres (as defined on the maps in Part Three of this document), will be considered favourably only where all of the following criteria are met;

- the overall retail function of the centre/group of shops would not be undermined. Permission will not be granted where non A1 uses constitute any of the following:
  - More than 50 % of units within protected frontage areas;
  - More than two non-retail uses adjacent to each other to create bunching of non-retail uses within protected frontage areas;
- the use would make a positive contribution to the overall role of the centre and its retail function would not be undermined; and
- shop front treatment should be consistent and subject to Policy L12 'Shop Front Security'.

This policy will be implemented through the planning application process. Annual centre health check surveys will monitor changes of use taking place within the designated centres and protected frontages.

### Living over Shops

The upper storeys of shops and other commercial buildings offer opportunity for residential development. Living above shops and commercial buildings can increase the vitality of an area and provide security through natural surveillance outside of normal business hours. Encouraging more people to live in town and local centres increases the viability of centres and reduces the need to travel by car as centres have good transport links and there are increased opportunities for walking and cycling.

The Council therefore supports the retention or conversion of floor space above shops for residential uses to provide additional and varied housing choice.

### Policy L10 - Living over Shops

Where planning permission is required, development proposals involving the conversion or development of the upper floors of premises within Town Centres, District Centres and Local Centres for residential use will be permitted provided that the following points are considered;

- that there is no unduly adverse effect on the amenities of the locality by means of design, appearance or traffic generation
- that proposals maximise the potential use of the whole building including appropriate space for cycle storage and storage and collection of household waste
- that sound proofing measures for proposed residential units are properly considered.

### Parking in Town Centres

Parking guidance is set out within the Council's SPD on Parking Standards. The SPD is based on locally derived evidence and provides developers and Planning Officers with the optimum numerical parking space provision for new developments. National guidance recommends that Local Planning Authorities should determine their parking standards based on local need and circumstances to make the most efficient use of land and maintaining the principles of sustainable development and good urban design.

Car parking standards for new development are affected by location, especially if it falls within or adjacent to one of the defined town centre boundaries as space for parking can be constrained. However, a balance has to be struck between encouraging new development and investment by providing adequate parking levels and potentially increasing traffic congestion.

### Policy L11 - Parking in Town Centres

Dudley Council will seek a reduction in the parking standards for developments in the main town centres of Brierley Hill, Dudley, Stourbridge and Halesowen of up to 40%. This will be done on a case-by-case basis and will;

- be applied flexibly and only where appropriate so as not to be to the detriment of achieving regeneration and economic growth
- relate to the distance of the proposed development from the core of the town centre.

Regardless of these standards the Council will not be able to support development that may give rise to road safety issues or where the residual cumulative impacts to the free flow of the Highway Network are severe. All proposed developments in town centres which require parking should be

assessed by baseline standards to verify if a Transport Statement, Transport Assessment or Travel Plan is required.

### Shop Front Design, Signage and Security

Shop fronts and advertisements make an essential contribution to the quality of both our urban settlements and the businesses that occupy them. An increase in the number of standardised style shop fronts, projecting signs, bulky illuminated advertisements and poorly designed security measures can harm the appearance of the street scene. Shop fronts, particularly those which are original or are of period character, contribute to local character and distinctiveness and form an important part of the overall street scene.

Dudley Council is progressing a Shopfronts SPD which will set out detailed guidance on the way Dudley Council expects proposals for new or replacement shop fronts and advertisements (or the alteration of existing ones) to be formulated/designed.

#### Policy L12 - Shop Front Security

The Council will support a hierarchical approach to shopfront security with the preference for other security measures being fully exhausted before resorting to physical barriers such as an external grille or shutter. Early discussions with the local Planning Authority are actively encouraged.

When considering security for a shopfront the following principles should be applied;

- security requirements should be carefully considered and integrated in the design of all new or replacement shopfronts, using the established Secured by Design approach
- security fixtures should not be located on architectural features of the shopfront or building. Alarm boxes and security cameras, where deemed appropriate, should be positioned unobtrusively, having regard to the symmetry of the building
- priority should be given to integrating physical measures (such as a stallriser, smaller paned glass with mullions and transoms, the use of toughened or laminated glass etc) into the design of existing and new shopfronts
- if additional security is deemed necessary, priority should be given to the use of discreetly designed and retractable internal security shutters/grilles.
- in circumstances where external security measures are agreed to be necessary, demountable external grilles of a visually appropriate design and colour should be considered. Retractable

or folding gates can be used to secure recessed doorways. The use of roller shutters in recessed doorways is not supported nor is the use of solid or perforated roller shutters for shopfronts.

- external roller grilles or shutters will only be accepted if it has been clearly demonstrated that all other security options have been fully exhausted and where a departure from this stance can be justified. The Local Planning Authority will work with applicants to consider these options. In these circumstances, external roller grilles or shutters would only be acceptable if designed in accordance with the following guidelines;
  - i. it must be of a design that allows for the shop window display to remain clearly visible behind
  - ii. shutters must not extend beyond the span of the shop window and must be contained within an area defined by the fascia and pilasters of the shopfront
  - iii. shutter box housings and guide channels should form an integral part of the shopfront design and be concealed behind the fascia or should be set back flush with the shopfront. Where visible they should be finished in a colour to match that of the shopfront
  - iv. the installation of shutters should not result in the loss, removal or inappropriate alteration of an historic shopfront.
- within Conservation Areas, on Listed and Locally Listed Buildings or where proposals affect the appearance or setting of a Heritage Asset, external roller grilles or shutters will not be permitted.



## Development Management Policies

The following policies will be applied in conjunction with the policies contained within the Core Strategy.

### Access for All

Dudley MBC recognises that in order to achieve strong, vibrant, sustainable and inclusive communities, our built environment should be fully accessible to enable everyone to participate in the community. An important part of delivering this commitment is breaking down unnecessary physical barriers imposed on people by poor design of buildings and places, allowing everyone to fully participate in community, leisure, retail, social and cultural activities.

#### Policy D1 - Access for All

Dudley Borough shall be an environment accessible and inclusive to all members of its community.

All new development for townscape and landscape enhancements shall be informed by the Access for All SPD, in particular to seek to incorporate measures for the ease of access for disabled, infirm and partially sighted persons.

This is particularly to ensure unhindered movement for all within Dudley's Centres, along its Canals and The River Stour, and other footpaths and pedestrian linkages.

This is providing that such measures would not conflict with the value, character or setting of heritage assets or would not prevent works which would provide substantial benefits to the wider local community from being realised.

### Incompatible Land Uses

It is acknowledged that amenity of existing occupants or users of a particular development or space can be harmed as a result of the impact of environmental factors such as noise and air pollution brought about by a new development or proposal. Previously, in Dudley's Unitary Development Plan (2005), Policy EP1 referred to that impact. In bringing that Policy forward, this Document recognises that it is not only occupiers of residential buildings that experience the impact of adjacent development on amenity value but also buildings and spaces which are used for employment, retail, community or leisure purposes.

While BCCS Policy DEL2 partly refers to this issue, it only has a focus on the protection of existing employment uses that would unreasonably constrain the beneficial reuse of neighbouring land which is why this Policy is being proposed to fulfil a wider range of uses.

## Policy D2 - Incompatible Land Uses

Development will not be permitted if it is incompatible, in terms of its environmental impact, with the surrounding uses.

This will particularly be as a result of the amenity of the occupiers of existing and proposed buildings and the users of the public realm at or near to the site potentially being subject to undue harm as a result of development, especially by virtue of noise and disturbance, light and air pollution, and odours and fumes. This especially relates to the amenity of the occupiers of dwellings.

## Contaminated Land

The Black Country Core Strategy promotes the development of 'Brownfield first' (previously developed land), ensuring that previously developed land, particularly where vacant, derelict or underused, is prioritised for development over greenfield sites. As a result of the spatial objectives of the Core Strategy, redevelopment of derelict and redundant employment land is likely to result in the remediation of land affected by contamination and therefore is an important issue to address when delivering new development in the Borough.

Where a site is affected by contamination, responsibility for securing a safe development rests with the developer and/or landowner. It is therefore vital that land contamination is dealt with properly and in an appropriate manner to ensure that development is 'suitable for use' and does not present any unacceptable risks to people, property or the wider environment. The remediation of land contamination which may affect ground or surface waters must be dealt with in a manner consistent with an established risk management framework contained in Model Procedures for the Management of Contaminated Land Report 11 (CLR11) published by the Environment Agency and DEFRA and/or the latest equivalent UK guidance.

Dudley Council encourages applicants and developers on potentially contaminated sites to discuss the possible nature and extent of the contamination present and measures needed to address it at the pre-application stage so that sufficient, relevant information can form part of documents and supporting information to be submitted alongside any planning application.

## Policy D3 - Contaminated Land

Where it is known or suspected that land contamination is present or the proposed use is sensitive or vulnerable to land contamination, it is necessary for the applicant to provide sufficient, relevant information to enable a proper assessment of the proposal to be made in the determination of an application.

Where planning permission is granted, conditions may be placed which require the applicant to undertake further action in relation to;

- provision of a risk assessment and options appraisal
- formulation of a sustainable remediation strategy
- implementation and verification of a remediation strategy
- the sustainable remediation of contaminated land not previously identified

## Unstable Land

There is an acknowledged and evidenced legacy of unstable land within Dudley Borough, primarily relating to both coal and limestone workings. The Policy below seeks to address this where possible in the development process as well as referring to the need to ensure that controlled waters (inland freshwaters and groundwaters) are not adversely affected by remediation works.

### Policy D4 - Unstable Land

Where it is known or suspected that land stability may have an impact on any development or works to upgrade the local environment, planning applications must be accompanied by sufficient proportionate information to determine the extent of the instability.

The developer will be required to undertake an assessment of the potential of such works to mitigate against, or ensure that there are no significant adverse impacts on controlled waters and geological features of value.

## Noise Pollution

Noise pollution has the potential to be a nuisance and in extreme circumstances can cause considerable stress for people living and working in close proximity. The planning system has an important role to play in protecting local residents from development that results in noise pollution.

The Black Country Core Strategy and this proposed Strategy promotes the phased release of employment land for housing development and it will be increasingly important to manage noise sensitive development from existing sources of significant noise.

### Policy D5 - Noise Pollution

Where development has the potential to generate noise, Dudley Council will require any such proposal to include measures that would minimise noise emissions and intrusions to an agreed, acceptable level.

Where development would be subject to high noise levels Dudley Council will require the proposal to include measures to reduce noise intrusion to an

agreed, appropriate level.

Dudley Council will not permit development for either noise-generating proposals or noise-sensitive proposals where;

- a juxtaposition of uses arise
- noise levels are assessed as being significant to the extent that amenity will be demonstrably prejudiced despite the provision of mitigation measures and, where those mitigation measures are considered to be inappropriate for the development proposal.

## Light Pollution

The quality of the night time environment is often dependent upon light. Artificial light is essential for reasons of safety and security as well as for a vibrant night time economy in towns or add to the amenity of a place by highlighting special buildings and open spaces of character. However, insensitive lighting can cause light pollution and can also have an adverse impact upon biodiversity by affecting normal diurnal patterns of plants and animals.

External lighting is needed for commercial use, such as security lights, and for some community and sports facilities such as floodlit sports grounds and facilities in Parks and open spaces, particularly during the winter for added safety to encourage increased use. Whilst the lighting has to be adequate for the purpose, it is important that there is no significant nuisance to the amenity of surrounding properties. This may require the use of planning conditions to limit times when lighting is used to minimise the intrusion.

### Policy D6 - Light Pollution

Applications for development that comprise or require external lighting must demonstrate that;

- the use and design of the lighting scheme is necessary, particularly on the grounds of public safety, and appropriate to the location and the use proposed and/or design of the scheme/building. Clustering of lighting installations will only be permitted in the interests of safety or to highlight an individual landmark building or thoroughfare or town centre area
- there is no harm to residential amenity
- light spillage is minimised and, where appropriate, measures are provided to:-
  - screen lighting installations from view from neighbouring areas, especially within, to or from heritage assets and areas of Green Belt and
  - to restrict the times of illumination
- there shall be no harm to protected wildlife species or habitats of

- acknowledged nature conservation importance including watercourses;
- illumination shall not provide an undue distraction to users of the public highway.

Approval of development which includes significant external lighting will contain appropriate conditions where necessary to mitigate against any negative impacts. Where such impacts cannot be mitigated and there is the potential for significant harm to the local environment, Dudley Council will refuse permission for that scheme.

## Air Pollution

Black Country Core Strategy Policy ENV8 (Air Quality) refers to appropriate measures being undertaken to assist the delivery of the aims of Dudley Council's Air Quality Action Plan (AQAP) (March 2011). The AQAP states that, in Dudley, the monitoring of air quality has demonstrated that objectives are being met for six of the seven nationally recognised pollutants: the only exception is nitrogen dioxide (NO<sub>2</sub>), the main source of which has been identified as road vehicle exhaust fumes. Further action is now required to ensure that NO<sub>2</sub> concentrations do not increase in the future and are ultimately reduced to achieve compliance with government objectives. Clearly, there is a tie in here with spatial planning, not only in terms of transport planning in general, but also in promoting development which is sustainably located including access to a variety of transport modes. Development will be expected to mitigate any impacts by appropriate means in line with policy ENV 8 of the BCCS and it is therefore deemed unnecessary to include a further specific policy here.

## Hazardous Installations and Hazardous Substances

Circular 04/2000 (Planning Controls for Hazardous Substances) (as amended) remains as extant government policy. This requires that LP As ensure that their land use policies, and the procedures for implementing those policies, take account of the need to maintain appropriate distances between Hazardous Installations and residential areas, areas of public use and areas of particular natural sensitivity or interest.

Dudley Council is concerned to stabilise and reduce the population at risk from hazardous substances. Consequently, it will oppose applications which will increase its population at risk and will seek the reduction or removal of the hazardous component of notified installations.

### Policy D7 - Hazardous Installations and Hazardous Substances

Dudley Council will oppose the development of new, or the expansion of existing, Hazardous Installations unless it can be demonstrated that consent will not increase the population at risk or the level of risk, or will not adversely

impact on the potential for development and/or redevelopment of adjoining land.

Dudley Council will not grant planning permission for new developments or grant Hazardous Substances Consent which, when operational, will result in a significant increase to the risk or consequences of a major incident, and/or will adversely impact on the potential for development and/or redevelopment of adjoining land. This includes the storage of hazardous material or pollutants on sites which currently do not require a Permit.

### Telecommunication Installations

Modern telecommunications are important in the national and local economy and in people's lives. Accordingly, the Council will respond positively to telecommunications proposals whilst balancing decisions against the need to protect and enhance the character and the overall environmental quality of the Borough. This is supported by the National Planning Policy Framework (paragraphs 43-46).

Discussions with operators prior to any strategies and applications being finalised are encouraged to establish at an early stage a shared view of equipment needs and constraints. Health concerns will be addressed by a requirement for applications to be accompanied by proper and appropriate certification of compliance and evidence that, before submitting the application, they have consulted nearby educational establishments.

#### Policy D8 - Telecommunication Installations

Proposals for telecommunications masts and equipment shall be accompanied by evidence that the sharing of an existing mast and other alternatives to the provision of a new mast have been considered by the applicant and found not to be practical to provide for the efficient operation of the telecommunications network.

Proposals shall be sensitively designed and sited to minimise the impact of development on the environment and surrounding area. Protection from visual intrusion will be an important consideration in determining applications. Proposals for new / re-sited telecommunications masts and equipment will be permitted provided that;

- the siting and design of the apparatus is appropriate
- the external appearance of the apparatus is acceptable
- the development shall not have an unacceptable effect on areas of ecological interest, areas of landscape importance, heritage assets, conservation areas or buildings of architectural or historical interest that proper regard has been given to location and landscaping requirements including innovative design solutions that are complimentary to the

immediate surrounding

- any impact on amenity is acceptable

consideration is given to the requirements of the Code of Best Practice on Mobile Phone Network Development and Telecommunications Act 1984 or the relevant national requirement at the time of submitting the proposal.

### Hot Food Takeaways

Although it is recognised that hot food takeaways can provide an important complementary service compared to other retail uses, they can also have a detrimental impact on the amenity and the retail character and function of shopping centres due to their hours of operation, increased incidence of litter, odours, noise and general disturbance as well as parking and traffic problems.

The introduction of a planning policy to control the numbers of hot food takeaways in particular locations will assist in providing a healthy balance of food choices for all communities across the Borough.. It will also help to counteract the over concentration of hot food takeaways in certain localities. It should of course be noted, that this policy will not reduce the numbers of premises already operating under an A5 land use class category, but will aim to restrict new premises opening where they would lead to an over-concentration or exacerbate an existing over-concentration of such premises.

There is a need to take a co-ordinated approach to public health to tackle obesity (particularly childhood obesity). There are also other interventions that can contribute to the improvement in public health including the Council's Licensing service to ensure that street vending also provides a healthy balance in terms of the location of food choices across the Borough.

This Policy should be read in conjunction with Policy L9 of the Dudley BDS on Protected Frontages as certain requirements within that Policy will apply to A5 uses located within designated Protected Frontages.

#### Policy D9 - Hot Food Takeaways

All applications for hot food takeaways, whether through new build or change of use, will be assessed on their individual merits. However, within the Borough's protected frontages, planning permission for hot food takeaways will only be granted where no more than 5% of the units will consist of A5 uses.

No more than two A5 uses will be permitted adjacent to one another within the boundaries of all the Borough's centres and retail parades. Elsewhere, hot food takeaways will be permitted where they do not create or exacerbate a concentration (typically 3 or 4) of those uses.



In all locations planning permission for hot food takeaways will only be granted where, in addition to the above considerations, there would not be an adverse impact on public or highway safety. Regard will be given to;

- existing traffic conditions including availability of parking spaces
- availability of safe and legal loading areas
- proximity to junctions, pelican crossings, bus bays and bus stops
- accessibility of the site by public transport and cycling
- applications for hot food takeaways within close proximity to residential properties will be refused where it is considered that there may be significant adverse impacts on residential amenity in terms of disturbance, vibrations, odours, traffic impacts, litter or hours of operation as a result of the proposal
- additionally, the cumulative impact of proposed hot food takeaways will be assessed with regard to their risks around community safety, crime and disorder.

Wherever practicable, extract equipment should be accommodated internally within the building and routed within existing chimneys. Where external equipment is proposed, it should not be detrimental to the area or host property.

***\*In addition to planning permission, proposals for hot food takeaways will require other approvals under other legislation and applicants should ensure that these requirements are met.***

### **Taxis (Hackney Carriages) / Private Hire Vehicles**

Hackney Carriages and Private Hire Vehicles provide an important transport function within the integrated transport network. They provide a service operating door to door for 24 hours a day which enables unrestricted accessibility to any location.

Taxis also support and supplement public transport, by being available to enable passengers to make connections. Therefore, provision for Hackney Carriage ranks and drop off/pick up points for private hire should ideally be located within reasonable proximity to public transport interchanges/links, large areas of retail, employment and leisure facilities, in order to provide benefit to the highest number of passengers.

#### **Policy D10 - Taxis (Hackney Carriages) and Private Hire Vehicles**

The Council will require provision to be made for Taxi (Hackney Carriage) ranks in town centres, interchanges and other key locations. New developments which require a Transport Statement or Transport Assessment and Travel Plan should explore access and facilities for taxis and identify how,



if implemented, the space would be managed and promoted.

### Hand Car Washes

In recent years there has been a proliferation of hand car washes appearing in the Borough. However, due to effluent and run-off from vehicle washing and cleaning activities, such business operations need to be carefully planned and managed to minimise damage to the environment including the pollution of water courses and groundwater. Proper collection and disposal of effluent is necessary to prevent pollution and it is illegal to discharge trade effluent into the environment or into drains without authorisation.

#### Policy D11 - Hand Car Washes

Planning applications for new , or change of use to, hand car washes, will only be considered favourably where it is shown that the following criteria have been met;

- an up-to-date foul water drainage plan of the whole site is required including the areas where vehicles washing will take place (designated washing bays). This should be submitted with the planning application to ensure that drainage is connected to the correct system including isolation from surface water drainage, and the isolation and collection of runoff including the use of silt traps or settlement tanks
- under no circumstances shall trade effluent, detergents and other pollutants be discharged into water courses or the surface water drainage system
- foul water drains must be used for their disposal at all times
- proposed car washes are not going to be detrimental to the surrounding built and natural environment in terms of their character and scale
- provision of screening of an appropriate design, size and siting to minimise jet spray to be approved as part of any application
- approval of a layout plan for the car wash detailing the parking and manoeuvring of vehicles on the site and any potential impact on the highway network.

### Advertisement Control

The Council recognises that outdoor advertising is essential to promote commercial activity and communicate information. Well designed and well located advertisements add colour and vitality in urban areas whereas poorly designed and/or located advertising can be detrimental to visual amenity , and in some cases a public or highway safety hazard.

## Policy D12 - Control of Advertisements

The Council will resist the display of any advertisement which is detrimental to;

- the appearance of the building and/or land on which it is displayed
- the visual amenity and character of the surrounding area including key views and vistas
- maintaining public safety including highway safety.

The Council will require that the scale and design of any proposed advertisement should;

- be in keeping with the scale and character of the area and any adjacent or nearby buildings.
- fit to the surroundings and any recognised heritage assets or buildings and locations identified as being heritage assets.
- avoid obscuring any elevational design details and architectural features of a building.
- be appropriately and sensitively illuminated.
- avoid the cumulative impact of advertisements which may result in over proliferation and cluttering of the street-scene.

## **PART TWO – REGENERATION CORRIDORS AND SITE ALLOCATIONS**



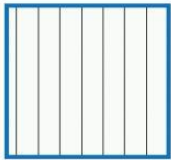
## Borough Development Strategy. Key to Regeneration Corridor Maps



High quality employment areas



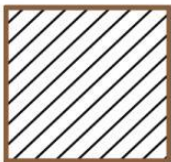
Vacant or underused high quality employment sites



Local employment areas



Vacant or underused local employment sites



Housing sites



Mixed-use regeneration site



Regeneration corridor



Area Action Plan boundary



Overlap into Area Action Plan boundary



## Regeneration Corridor 10 - Pensnett

### Overview

The Corridor is centred on the Pensnett Trading Estate as one of the Borough's High Quality Employment Areas as well as the adjacent industrial areas of Oak Lane/Ham Lane and the Gibbons Industrial Estate. The corridor is also an important area for mineral extraction containing Ketley Quarry, Oak Farm Quarry and Oak Lane Quarry.

The corridor is served by Kingswinford District Centre in its south-west corner, Pensnett local centre on its eastern edge and Wall Heath local centre lies just outside the Corridor to the west. The area also has a coal mining legacy with evidence of former mine entries and shallow mine workings present within the Corridor. Further details are within the Sustainability Appraisal and Site Implementation and Delivery Plan accompanying this Document.

### Spatial Strategy

The main focus of this Corridor is to protect and enhance the high quality employment offer within the Pensnett Trading Estate and its peripheral industrial areas through continuous improvements to its infrastructure premises and environment. This will include the need to improve accessibility along the strategic highway network between the area and the motorway network through junction improvements and congestion decreasing measures.

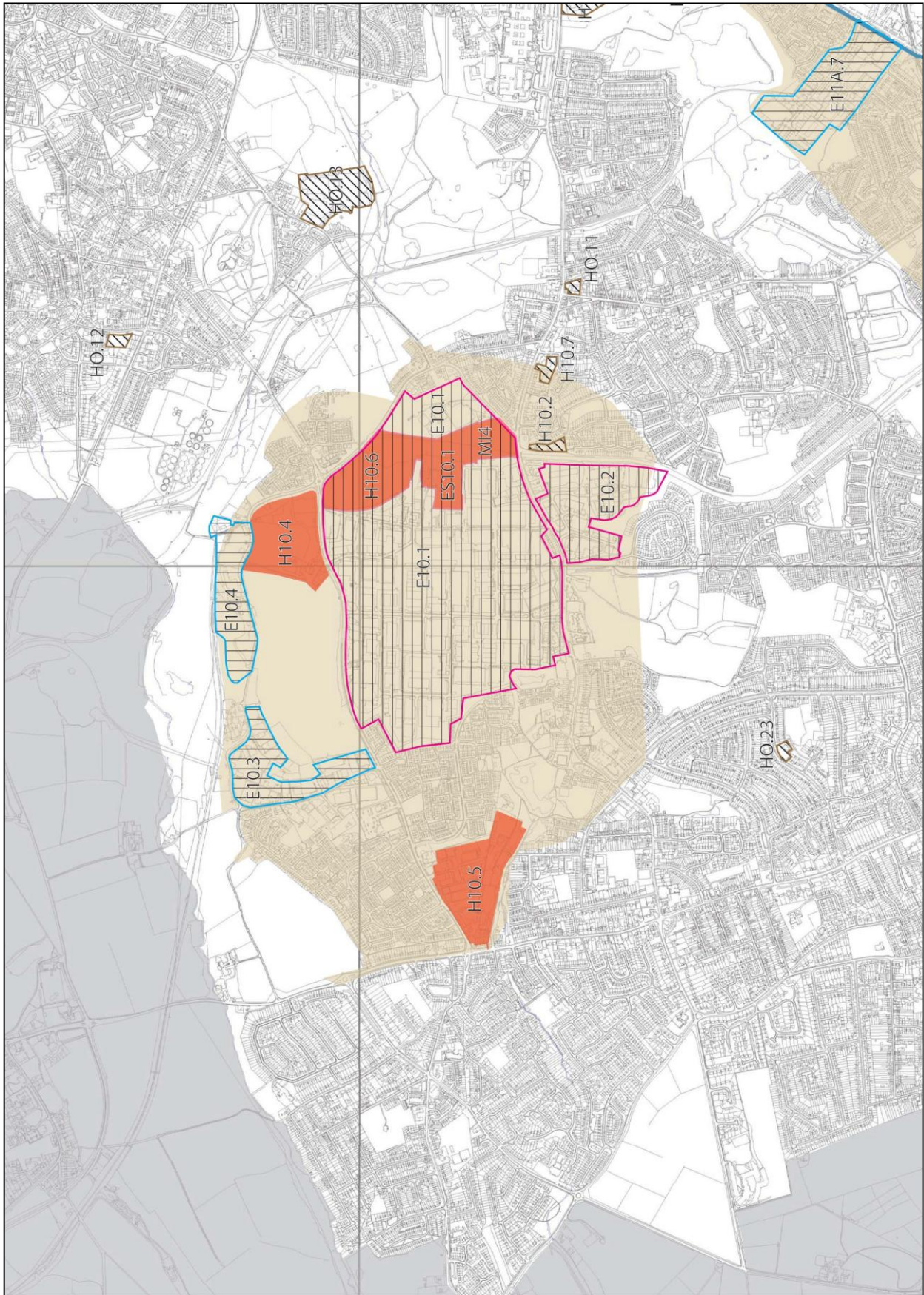
New residential communities will also be developed to the east of the Corridor to provide additional high quality housing on the edge of the green belt.

The area is also important for brick clay extraction with three quarries (Ketley Quarry, Himley Quarry and Oak Farm Quarry) present and at various stages in their extraction life. The infilling and aftercare of the quarrying activity in the Corridor will also play an important role in strengthening ecological and wildlife links across the area and into the Black Country.

In fact, protection and enhancement of all of the significant wildlife corridors will be a feature for the Corridor between the green belt areas running into South Staffordshire and urban areas such as Brierley Hill, Pensnett and Dudley. There are also important ecological links to Fens Pools Local Nature Reserve and its Special Area of Conservation.



## REGENERATION CORRIDOR 10 - SITE ALLOCATIONS MAP





## TOTAL HOUSING PROVISION FOR THE CORRIDOR

|                                                        |            |
|--------------------------------------------------------|------------|
| Completions 2006-2015                                  | 198        |
| Under Construction as at March 2015                    | 160        |
| Proposed Housing Site Allocations                      | 398        |
| <b>TOTAL HOUSING PROVISION IN CORRIDOR (2006-2026)</b> | <b>756</b> |

## TOTAL EMPLOYMENT LAND FOR THE CORRIDOR (Hectares)

|                                                        |              |
|--------------------------------------------------------|--------------|
| Existing High Quality (hectares)                       | 90.6         |
| Existing Local Quality (hectares)                      | 31           |
| Employment Opportunity Sites – High Quality (hectares) | 8.0          |
| <b>TOTAL EMPLOYMENT LAND IN CORRIDOR (2026)</b>        | <b>129.6</b> |

## Housing

### Housing Site Allocations

| Ref                    | Site Address                     | Description                                                                                                                             | Phasing | Total estimated number of dwellings (Area) |
|------------------------|----------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------|---------|--------------------------------------------|
| H10.4                  | Stallings Lane / Oak Lane        | Housing led mixed use proposal                                                                                                          | 2016-21 | 140<br>(7.58 Ha)                           |
| H10.2                  | Land to the east of Gibbons Lane | Housing Proposal on former employment site                                                                                              | 2016-21 | 13<br>(0.44 Ha)                            |
| H10.6                  | Tansey Green Rd / Stallings Lane | Former Ibstock Brickworks. Mixed use proposal to include housing to the north and business uses to the south on site ES10.1 (See below) | 2016-21 | 132<br>(6.3 Ha)                            |
| H10.7                  | Corbyns Hall Lane                | Housing proposal with outline planning permission                                                                                       | 2016-21 | 18<br>(0.6 Ha)                             |
| H10.5                  | Stallings Lane Kingswinford      | Proposed mixed use to include existing uses and a proportion of new housing                                                             | 2021-26 | 95<br>(10.86 Ha)                           |
| <b>TOTAL PROPOSALS</b> |                                  |                                                                                                                                         |         | <b>398</b>                                 |

## Employment Areas and Opportunity Sites

### High Quality Areas

| Ref   | Site Address            | Description                                                                  | Area    |
|-------|-------------------------|------------------------------------------------------------------------------|---------|
| E10.1 | Pensnett Trading Estate | Majority of site in single ownership – LCP Limited                           | 76 Ha   |
| E10.2 | Gibbons Industrial Park | Good Quality local Employment area with a range of premises in terms of size | 14.6 Ha |

### Local Quality Areas

| Ref   | Site Address                | Description                                                                                                   | Area  |
|-------|-----------------------------|---------------------------------------------------------------------------------------------------------------|-------|
| E10.3 | Ham Lane                    | Large plots providing significant local employment opportunities                                              | 16 Ha |
| E10.4 | Oak Lane                    | Mainly storage and recycling industries alongside safeguarded clay extraction and area of search for minerals | 7 Ha  |
| H10.5 | Stallings Lane Kingswinford | Residual employment land remaining following proposed peripheral housing redevelopment                        | 8 Ha  |

### Employment Opportunity Sites

| Ref    | Site Address     | Description                                                                                                                                                                    | Phasing | Floorspace / Area |
|--------|------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------|-------------------|
| ES10.1 | Dreadnought Road | Part of a mixed housing and business site alongside site H10.6 to the north. Potential Strategic High Quality Employment site due to its proximity the Pensnett Trading Estate | 2016-21 | 8.0 Ha            |

## Regeneration Corridor 11a - Dudley Town Centre to Brierley Hill

### Overview

Regeneration Corridor 11a runs from the northern edge of the Brierley Hill Area Action Plan boundary, north-eastwards towards Dudley Town Centre and beyond through to the A4123 (Birmingham New Road) which forms the boundary between Dudley Borough and Sandwell.

The Corridor has the Dudley Canal and the former Stourbridge to Walsall railway line as its spine and includes the high quality employment areas of Narrowboat Way, Pedmore Road and Peartree Lane. The Corridor also includes areas around Dudley Town Centre including large housing development sites at Constitution Hill and Guest Hospital as well as older industrial areas on the outskirts of Dudley Town Centre. The area has a significant coal mining legacy with evidence of extensive former mine entries and shallow mine workings present within the Corridor. Further details are within the Sustainability Appraisal and Site Implementation and Delivery Plan accompanying this Document.

### Spatial Strategy

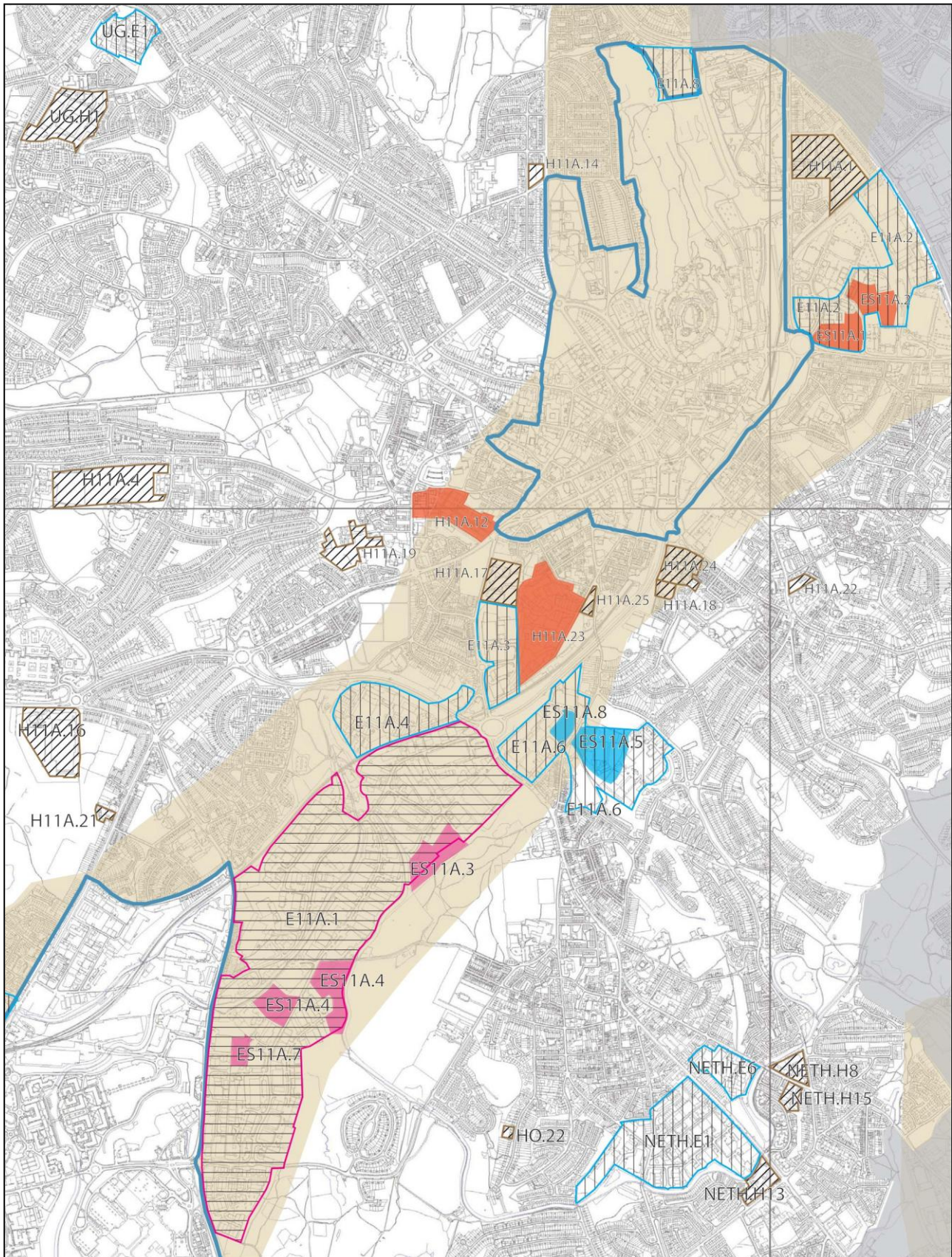
This Corridor provides a link between the anchor points of Dudley and Brierley Hill Town Centres providing a wide range of employment activity from the Waterfront at Brierley Hill up to the western edge of Dudley Town Centre at Castle Gate. The Strategy will focus on continuous improvement to the quality of the employment offer within the Corridor through industrial redevelopment opportunities to provide new and improved employment premises. This will be combined with continued improvements to the highway network linking the area to the M5 and M6 to ensure that the area achieves and maintains its standing as a high quality employment location. There will also be some peripheral housing development close to the two Town Centres and increased public transport links through the corridor through the introduction of a rapid transit connection between the two and beyond to other Centres in the Black Country as well as Birmingham City Centre via the rail network.

Protecting and enhancing the important wildlife and ecological corridors will also be a priority especially links to the Fens Pool Special Area of Conservation to the west, Saltwells Nature Reserve to the east and Castle Hill and Wrens Nest National Nature Reserve in the north of the Corridor.

The Canal network will also act as a basis for these ecological links but will also provide an important tourism and heritage asset in attracting visitors to the area particularly in and around Dudley Town Centre. Dudley's built heritage as an historic market town as well as visitor attractions such as Dudley Zoo and Castle, the Black Country Museum, Dudley Canal Trust, the Archives Centre and Wrens Nest Nature Reserve and limestone caverns provide excellent opportunities to stimulate the visitor economy and act as a tourism development hub



## REGENERATION CORRIDOR 11A - SITE ALLOCATIONS MAP



## TOTAL HOUSING PROVISION FOR THE CORRIDOR

|                                                        |              |
|--------------------------------------------------------|--------------|
| <b>Completions 2006-2015</b>                           | <b>328</b>   |
| <b>Under Construction as at March 2015</b>             | <b>109</b>   |
| <b>Housing Site Allocations (Corridor 11a)</b>         | <b>851</b>   |
| <b>TOTAL HOUSING PROVISION IN CORRIDOR (2006-2026)</b> | <b>1,288</b> |

## TOTAL EMPLOYMENT LAND FOR THE CORRIDOR

|                                                               |                 |
|---------------------------------------------------------------|-----------------|
| <b>High Quality (hectares)</b>                                | <b>110.5</b>    |
| <b>Local Quality (hectares)</b>                               | <b>47.3</b>     |
| <b>Employment Opportunity Sites – High Quality (hectares)</b> | <b>9.5</b>      |
| <b>TOTAL EMPLOYMENT LAND IN CORRIDOR (2026)</b>               | <b>167.3 Ha</b> |

## Housing

### Housing Site Allocations

| <b>Ref</b> | <b>Site Address</b>                         | <b>Description</b>                                                                             | <b>Phasing</b> | <b>Total Number of Dwellings (Area)</b> |
|------------|---------------------------------------------|------------------------------------------------------------------------------------------------|----------------|-----------------------------------------|
| H11A.1     | Dudley Guest Hospital Site                  | Owned by Homes and Communities Agency. Part retention of historic buildings and part new build | 2016-21        | 157<br>(6.54 ha)                        |
| H11A.4     | Middlepark Road, Russells Hall              | Owned by Dudley MBC. Residual land adjacent to a park.                                         | 2011-16        | 129<br>(3.68 ha)                        |
| H11A.14    | Maple Road / Limes Road, Dudley             | Former Pub site with outline planning permission                                               | 2016-21        | 12<br>(0.26 ha)                         |
| H11A.17    | Claughton House, Blowers Green Road, Dudley | Recently vacated office buildings owned by Dudley Council                                      | 2016-21        | 36<br>(0.89 ha)                         |
| H11A.18    | 200 Prospect Row                            | Redevelopment of older industrial premises –full planning permission received.                 | 2016-21        | 34<br>(1.5 ha)                          |
| H11A.19    | Land at Bull                                | Former MEB site. Extension of                                                                  | 2016-21        | 100                                     |



|                          |                                                     |                                                                                                           |         |                  |
|--------------------------|-----------------------------------------------------|-----------------------------------------------------------------------------------------------------------|---------|------------------|
|                          | Street Dudley                                       | time granted on existing planning permission                                                              |         | (2.06 ha)        |
| H11A.21                  | 280 Stourbridge Rd, Dudley                          | Former Training Centre site. Extension of time on existing planning permission                            | 2016-21 | 22<br>(0.28 ha)  |
| H11A.22                  | The Woodlands, Dixons Green Road, Dudley            | Vacant land in a residential area.                                                                        | 2016-21 | 22<br>(0.36 ha)  |
| H11A.25                  | Shaw Road / New Road Dudley                         | Old low quality industrial uses on east side of Shaw Road                                                 | 2016-21 | 16<br>(0.39 Ha)  |
| H11A.12                  | Angel St, Vauxhall St, Dock Lane, Turner St, Dudley | Part redevelopment (50%) employment area with high vacancy rates and restrictive road layout              | 2021-26 | 61<br>(2.0 ha)   |
| H11A.16                  | Pensnett Road, Dudley                               | Current Steel Stockholders site adjacent to Fens Pool Special Area of Conservation                        | 2021-26 | 135<br>(6.45 ha) |
| H11A.23                  | Shaw Road, Dudley                                   | Part redevelopment (25%) of low quality industrial premises with high vacancy rates and poor road layout. | 2021-26 | 75<br>(9.0ha)    |
| H11A.24                  | Prospect Row                                        | Redevelopment of older industrial premises either side of Prospect Row.                                   | 2021-26 | 52<br>(1.5 ha)   |
| <b>TOTAL ALLOCATIONS</b> |                                                     |                                                                                                           |         | <b>851</b>       |

## Employment Areas and Opportunity Sites

### High Quality Areas

| Ref    | Site Address                                                       | Description                                                                                                                                             | Area   |
|--------|--------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|--------|
| E11A.1 | Peartree Lane/<br>Narrowboat Way/<br>Navigation Drive / Yorks Park | High quality industrial accommodation of varying size. Links to motorway network recently enhanced by completion of Burnt Tree Interchange improvements | 105 ha |
| E11A.2 | Ionic Business Park                                                | Business Park and Thomas Dudley Works with direct access onto the strategic highway network (Birmingham New Road – A4123)                               | 5.5 ha |

### Local Quality Areas

| Ref    | Site Address | Description                                       | Area   |
|--------|--------------|---------------------------------------------------|--------|
| E11A.4 | Thornleigh   | Mix of good and lower quality industrial premises | 8.5 ha |

|         |                                                     |                                                                                                                                         |        |
|---------|-----------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------|--------|
|         | Industrial Estate                                   | of varying sizes                                                                                                                        |        |
| E11A.6  | New Road, Dudley                                    | Large units of varying quality either side of New Road plus Lister Road Strategic Waste Management site owned by Dudley MBC             | 21 ha  |
| E11A.7  | Wallows Industrial Estate, Brierley Hill            | Made up of Wallows Road and Fens Pool Avenue industrial units of varying size and quality                                               | 5.5 ha |
| E11A.8  | Birmingham New Road                                 | Local industrial estate (British Federal) accessed directly from the Birmingham New Road                                                | 3.5 ha |
| H11A.23 | Shaw Road                                           | Part redevelopment (25%) for housing whilst retaining most industrial uses.                                                             | 6.5 ha |
| H11A.12 | Angel St, Vauxhall St, Dock Lane, Turner St, Dudley | Part redevelopment (50%) of low quality employment area with high vacancy rates with a restrictive road layout for industrial vehicles. | 2.3 ha |

### Employment Opportunity Sites

| Ref     | Site Address                              | Description                                                                                 | Phasing | Area    |
|---------|-------------------------------------------|---------------------------------------------------------------------------------------------|---------|---------|
| ES11A.1 | Castlegate Way                            | Mixed use employment opportunity for industrial and / or commercial potential               | 2011-16 | 1.5 ha  |
| ES11A.2 | Castlegate Drive                          | Mixed use employment opportunity for industrial and / or commercial potential               | 2011-16 | 1.5 ha  |
| ES11A.3 | Hulbert Drive                             | 2 sites (0.9 ha and 1.1 ha) marketed as a leasehold design and build                        | 2011-16 | 2.0 ha  |
| ES11A.5 | Midtherm, New Road, Dudley                | Planning permission granted for expansion of Midtherm to take up underused part of the site | 2011-16 | 3.0 ha  |
| ES11A.7 | Brewins Way, Dudley                       | Vacant Employment land site                                                                 | 2011-16 | 0.75 ha |
| ES11A.8 | Hillcrest Business Park, New Road, Dudley | Vacant Employment land site                                                                 | 2011-16 | 0.75 ha |





## **Regeneration Corridor 11b - Brierley Hill to Stourbridge Town Centre**

### **Overview**

Regeneration Corridor 11b runs from the western edge of the Brierley Hill Area Action Plan boundary in a south westerly direction down to the northern edge of the Stourbridge Area Action Plan boundary.

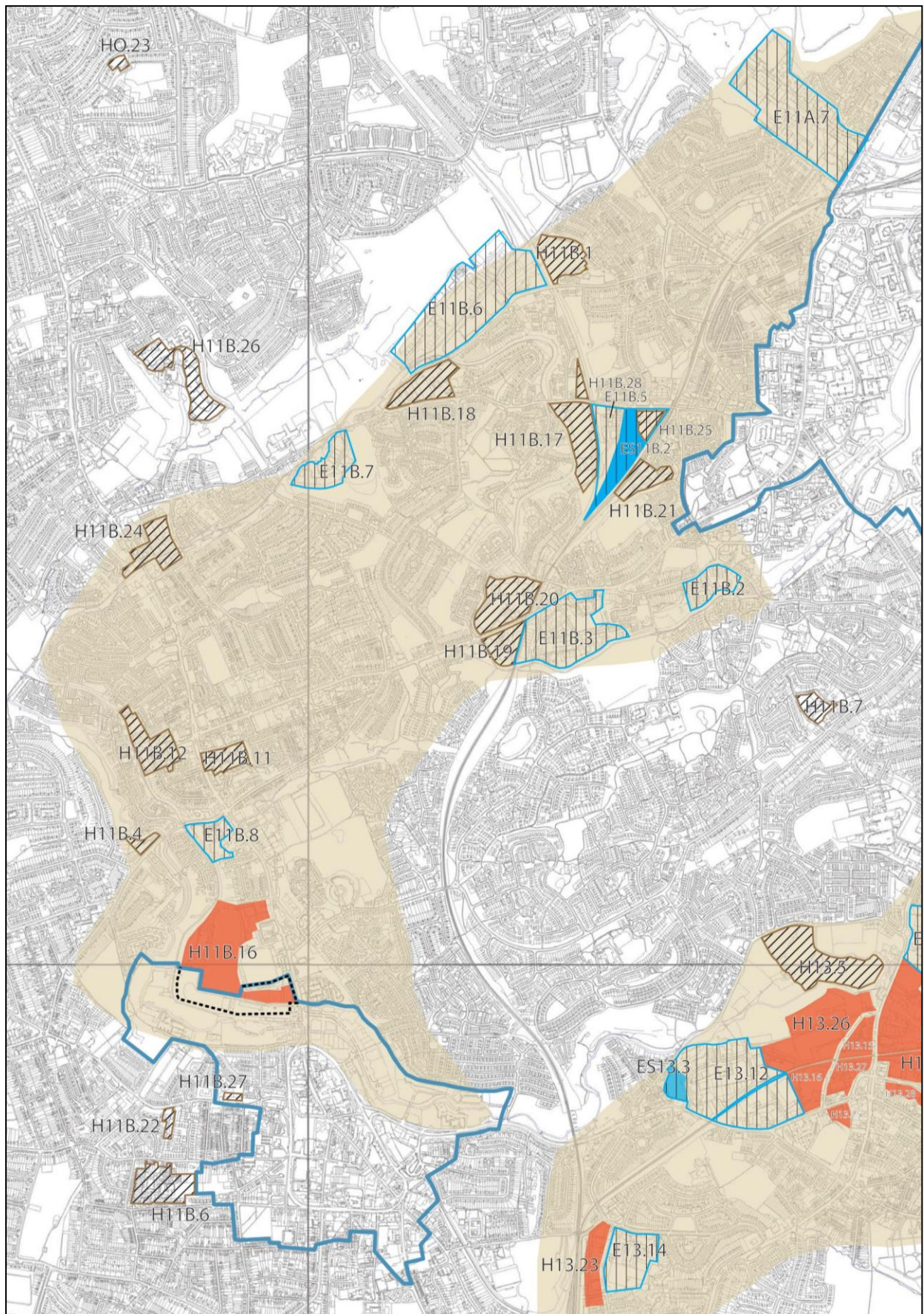
The Corridor follows the Stourbridge Canal as its spine running south west between Brierley Hill and Wordsley and then south towards Stourbridge Town Centre taking in the Glass Quarter and many of the older industrial areas which grew along the canal. The area has a significant coal mining legacy particularly to the north and east of Stourbridge and Wordsley with evidence of extensive former mine entries and shallow mine workings present within the Corridor. Further details are within the Sustainability Appraisal and Site Implementation and Delivery Plan accompanying this Document.

### **Spatial Strategy**

The main focus of development will be housing growth in older, outdated and remote industrial land and premises along the canal network and close to the town centres of Stourbridge and Brierley Hill. This will be coupled with continuous improvements to ecological links along the canal network and the River Stour to the green belt of South Staffordshire to the west as well as the railway corridors running north to south to provide a high quality environment. Regeneration in this area should look to enhance and restore the river corridors of the Stour, Coalbourne Brook and Wordsley Brook as well as being sensitive and meeting the requirements of being within close proximity to Fens Pool SAC and SSSI. This will help to attract and retain population and increase housing growth potential not only along the canal network but also in and around the Stourbridge and Brierley Hill Town Centres.

The Corridor is also characterised for its unique industrial heritage and legacy from the glass making industry which is an attraction for visitors and a key feature to be recognised in future redevelopment.

## REGENERATION CORRIDOR 11B - SITE ALLOCATIONS MAP



## TOTAL HOUSING PROVISION FOR THE CORRIDOR

|                                                         |              |
|---------------------------------------------------------|--------------|
| <b>Completions 2006-2015</b>                            | <b>426</b>   |
| <b>Under Construction as at March 2015</b>              | <b>235</b>   |
| <b>Proposed Housing Site Allocations (Corridor 11b)</b> | <b>1,059</b> |
| <b>TOTAL HOUSING PROVISION IN CORRIDOR (2006-2026)</b>  | <b>1,720</b> |

## TOTAL EMPLOYMENT LAND FOR THE CORRIDOR

|                                                                |             |
|----------------------------------------------------------------|-------------|
| <b>High Quality (hectares)</b>                                 | <b>0</b>    |
| <b>Local Quality (hectares)</b>                                | <b>35.7</b> |
| <b>Employment Opportunity Sites – Local Quality (hectares)</b> | <b>2.2</b>  |
| <b>TOTAL EMPLOYMENT LAND IN CORRIDOR (2026)</b>                | <b>37.9</b> |

## Housing

### Housing Site Allocations

| <b>Ref</b> | <b>Site Address</b>                                      | <b>Description</b>                                                     | <b>Phasing</b> | <b>Number of Dwellings (Area)</b> |
|------------|----------------------------------------------------------|------------------------------------------------------------------------|----------------|-----------------------------------|
| H11B.1     | Land off Leys Road, Brockmoor                            | Former Foundry site now vacant                                         | 2016-21        | 57<br>(2.16 ha)                   |
| H11B.4     | Land to the north of High Street Wollaston               | Housing proposal for former Stour House                                | 2016-21        | 14<br>(0.56 ha)                   |
| H11B.6     | Stourbridge College, Longlands Campus                    | Campus now vacated. Part retention of college buildings for conversion | 2016-21        | 34<br>(1.14 ha)                   |
| H11B.16    | Old Wharf Road, Stourbridge                              | Mixed use development partly included in Stourbridge Area Action Plan. | 2016-21        | 180<br>(7 ha)                     |
| H11B.17    | Albion Works, off Moor Street Brierley Hill              | Two large industrial units partly vacant. Canalside location.          | 2016-21        | 74<br>(2.8 ha)                    |
| H11B.20    | Former Brickworks, north of Brettell Lane, Brierley Hill | Partly derelict industrial site with a canalside location              | 2016-21        | 79<br>(3.0 ha)                    |
| H11B.22    | Quantum Works, Enville St, Stourbridge                   | Narrow industrial site in a predominantly residential area             | 2016-21        | 14<br>(0.36 ha)                   |



|                        |                                                      |                                                                                                                     |         |                 |
|------------------------|------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------|---------|-----------------|
| H11B.25                | Moor Street, Brierley Hill                           | Former Waste transfer site to be redeveloped for housing                                                            | 2016-21 | 94<br>(1.5 ha)  |
| H11B.26                | Ridge Hill, Wordsley                                 | Former Hospital site to be redeveloped for housing                                                                  | 2016-21 | 129<br>(3.5 ha) |
| H11B.27                | Land north of Enville Street                         | Part vacant car park site close to Stourbridge Town Centre                                                          | 2016-21 | 8<br>(0.25 ha)  |
| H11B.28                | North of Moor Street                                 | Former Norton House site in a predominantly residential area                                                        | 2016-21 | 12<br>(0.35 ha) |
| H11B.7                 | Land off Delph Lane, Brierley Hill                   | Longstanding vacant site in a residential area                                                                      | 2021-26 | 34<br>(1.28 ha) |
| H11B.11                | South of King William Street, Amblecote              | Potential housing development adjacent to Amblecote Local Centre                                                    | 2021-26 | 50<br>(1.52 ha) |
| H11B.12                | Land off Platts Road / Dial Lane, Amblecote          | Redevelopment / conversion of older industrial premises. Canalside location including protected historic buildings. | 2021-26 | 45<br>(1.44 ha) |
| H11B.18                | Corner of Leys Road and Moor Street                  | Block of older industrial premises in a predominantly residential area                                              | 2021-26 | 73<br>(2.77 ha) |
| H11B.19                | South of Brettell Lane, Brierley Hill                | Land either side of Stourbridge Canal to the west of railway line.                                                  | 2021-26 | 55<br>(2.1 ha)  |
| H11B.21                | North Street Industrial Estate                       | Old industrial estate with narrow access                                                                            | 2021-26 | 44<br>(1.4 ha)  |
| H11B.24                | Plant Street / Mill Street / Bridge Street, Wordsley | Older industrial area flanked by housing – difficult access.                                                        | 2021-26 | 63<br>(1.8 ha)  |
| <b>TOTAL PROPOSALS</b> |                                                      |                                                                                                                     |         | <b>1,059</b>    |

## Employment Areas and Opportunity Sites

### Local Quality Areas

| Ref    | Site Address                                                         | Description                                                                                                                  | Area   |
|--------|----------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------|--------|
| E11B.1 | Two Woods Trading Estate                                             | Mixed area, scope for some peripheral redevelopment                                                                          | 8.5 ha |
| E11B.3 | Silver End                                                           | Mixed ownership and a range of industrial premises in terms of size and quality includes Delph Road Industrial Park          | 4.9 ha |
| E11B.5 | Moor Street Industrial Estate                                        | Bounded to the west by a former railway line and a vacant freight terminal to the east                                       | 2.7 ha |
| E11B.6 | Cookley Wharf / Premier Partnership Industrial Estate, off Leys Road | Range of industrial premises from small to large units including Dudley Council depot and Brockmoor Foundry. Some vacancies. | 12 ha  |
| E11B.7 | Bevan Road Industrial Estate, Off Leys Road                          | Well occupied Estate providing a range of units – parking issues.                                                            | 2.3 ha |

|        |                                  |                                                                    |        |
|--------|----------------------------------|--------------------------------------------------------------------|--------|
| E11B.8 | Ruskin Mill<br>Amblecote         | Protected buildings - continued use as glass<br>centre / workshops | 1.1 ha |
| E11B.9 | Mill Race Lane<br>Trading Estate | Mixed use based on 50% of the site area                            | 4.2 ha |

### **Employment Opportunity Sites**

| <b>Ref</b> | <b>Site Address</b>                         | <b>Description</b>                                                                                                | <b>Phasing</b> | <b>Area</b> |
|------------|---------------------------------------------|-------------------------------------------------------------------------------------------------------------------|----------------|-------------|
| ES11B.2    | Moor Street site<br>and Freight<br>Terminal | Underused land offering<br>redevelopment opportunity for<br>employment uses possibly<br>utilising freight sidings | 2016-21        | 2.2 ha      |



## **Regeneration Corridor 13 - Jewellery Line (Stourbridge Junction – Rowley Regis)**

### **Overview**

The Corridor follows, and is centred on, the railway line from Birmingham to Worcester (and beyond). This railway line is termed The Jewellery Line - it passes through the Jewellery Quarter in Birmingham. There are stations at Stourbridge Junction and Lye, and nearby, in Sandwell MBC, at Cradley Heath and Rowley Regis. In Dudley Borough, the corridor also contains the Local Centres of Lye and Shell Corner, which have both commercial and social functions, with Cradley Local Centre located nearby to the south of the corridor.

In terms of strategic landscape, the River Stour corridor provides an open space “spine”, the floodplain of which is designated as Sites of Local Importance for Nature Conservation (SLINCs), with pockets designated as Sites of Importance for Nature Conservation and Ancient Woodland at Bob's Coppice and Mear's Coppice. Regeneration in this area should seek to enhance and restore the river corridors of the Stour and Mousesweet Brook. Also the Rowley Hills are identified as one of the Black Country “Beacons” and are part of the watershed that divides the flow of streams of rivers between those which flow south and those which flow north. Flood Zones 2 & 3 run along the River Stour and Mousesweet Brook, with associated flood risks at certain locations: within Dudley Borough, significant fluvial flooding occurred in 2007 at the confluence of River Stour and Lutley Gutter to the south of the corridor.

The area has a significant coal mining legacy particularly in the western part of the Corridor with evidence of extensive former mine entries and shallow mine workings present. Further details are within the Sustainability Appraisal and Site Implementation and Delivery Plan accompanying this Document.

### **Spatial Strategy**

This corridor will be consolidated as a housing corridor through the development of outdated or obsolete areas of industrial land and the exploitation of the excellent main-line rail links. From a broad viewpoint, the area is essentially well connected as a result of main roads and the railway and therefore has the potential to accommodate sustainable development. It is envisaged that the planned new residential communities will substantially increase the catchment and population base of Lye to create a distinctive urban village with its proximity to Lye Station.

However, the scale of the new housing growth is such that there may be a requirement for new open spaces to be created. The River Stour and its tributaries will provide the opportunities to promote good quality waterside living and public realm environments. The area's local distinctiveness and character will also be

enhanced, particularly in places such as Lye Centre. Other public transport links will also be improved.

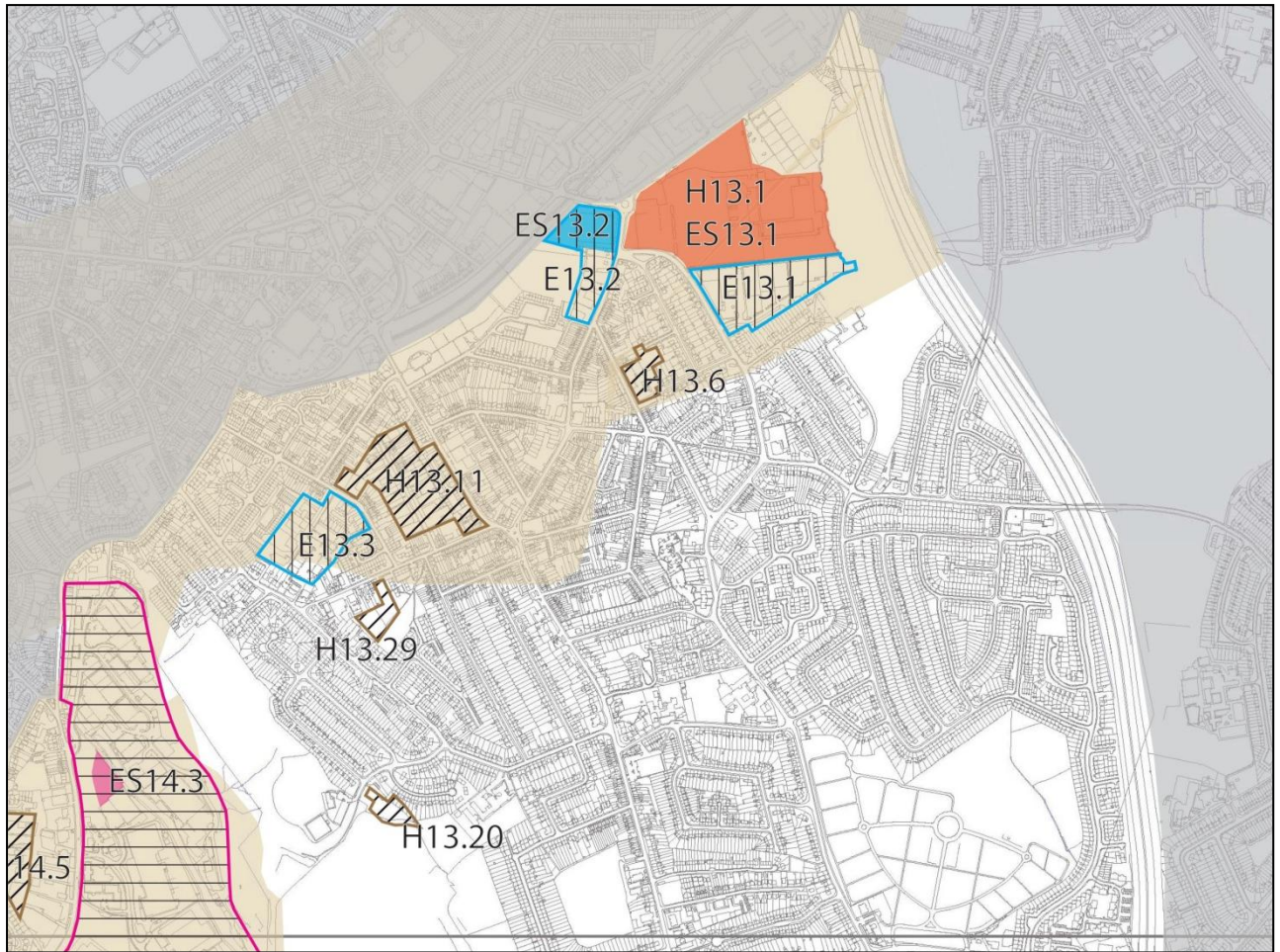
In addition, identified areas and sites will be safeguarded for employment uses, with these areas enhanced to encourage this form of investment and to uplift the image of the area in general.







## REGENERATION CORRIDOR 13 - SITE ALLOCATIONS MAP (EAST)



## TOTAL HOUSING PROVISION FOR THE CORRIDOR (2006-26)

|                                                        |             |
|--------------------------------------------------------|-------------|
| <b>Completions 2006-2015</b>                           | 266         |
| <b>Under Construction as at March 2015</b>             | 8           |
| <b>Proposed Housing Site Allocations (Corridor 13)</b> | 1597        |
| <b>TOTAL HOUSING PROVISION IN CORRIDOR (2006-2026)</b> | <b>1871</b> |

## PROPOSED TOTAL EMPLOYMENT LAND FOR THE CORRIDOR

|                                                                |             |
|----------------------------------------------------------------|-------------|
| <b>Proposed High Quality (hectares)</b>                        | 0           |
| <b>Proposed Local Quality (hectares)</b>                       | 85.2        |
| <b>Employment Opportunity Sites – Local Quality (hectares)</b> | 8.0         |
| <b>TOTAL EMPLOYMENT LAND IN CORRIDOR (2026)</b>                | <b>93.2</b> |

## Housing

### Housing Site Allocations

| Ref    | Site Address                               | Description                                                                                  | Phasing | Number of Dwellings (Area) |
|--------|--------------------------------------------|----------------------------------------------------------------------------------------------|---------|----------------------------|
| H13.1  | Land south of Cakemore Road, Blackheath    | Mixed Use site for housing and/or employment uses jointly with ES13.1 (11 hectares in total) | 2016-21 | 200<br>(5.5 ha)            |
| H13.2  | Attwood Street Lye                         | Currently derelict site in a predominantly residential area                                  | 2016-21 | 21<br>(0.6 ha)             |
| H13.4  | Belmont Road, Lye                          | Back-land site to the rear of residential properties                                         | 2016-21 | 11<br>(0.33 ha)            |
| H13.5  | Caledonia Sewage Works                     | Outline planning permission being sought                                                     | 2016-21 | 140<br>(6.76 ha)           |
| H13.6  | Former Holt Farm Primary School, Holt Road | Former school site with buildings of historic value preferably to be retained                | 2016-21 | 24<br>(0.77 ha)            |
| H13.10 | 116-120 Colley Gate, Cradley               | Within Cradley / Windmill Hill Local Centre                                                  | 2016-21 | 14<br>(0.25 ha)            |
| H13.13 | East of Park Lane, Lye                     | Outline planning permission for cleared industrial site.                                     | 2016-21 | 108<br>(3.35 ha)           |

|        |                                                                                               |                                                                                                                                                             |         |                                  |
|--------|-----------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------|---------|----------------------------------|
| H13.17 | Eaton Works,<br>Thorns Road, Lye                                                              | Industrial Site – owners /<br>occupiers to relocate                                                                                                         | 2016-26 | 231<br>(8.7 ha)                  |
| H13.20 | Stewarts Road                                                                                 | Longstanding vacant site in a<br>residential area                                                                                                           | 2016-21 | 15<br>(0.48)                     |
| H13.21 | Springfield Works,<br>Pearson Street,<br>Lye                                                  | Locally Listed building, residential<br>conversion preferable.                                                                                              | 2016-21 | 10<br>(0.25 ha)                  |
| H13.22 | Foredraft Street,<br>Cradley                                                                  | Two adjacent sites within Cradley<br>/ Windmill Hill Local Centre                                                                                           | 2016-21 | 18<br>(0.53 ha)                  |
| H13.29 | Land off Malt Mill<br>Lane, Shell Corner                                                      | Former industrial site now cleared                                                                                                                          | 2016-21 | 25<br>(0.64 ha)                  |
| H13.30 | Land off Homer Hill<br>Road, Cradley                                                          | Strip of land adjacent to recently<br>completed Extra Care scheme                                                                                           | 2016-21 | 9<br>(0.4 ha)                    |
| H13.31 | St Marks House,<br>Brook Street, Lye                                                          | Former industrial site to be<br>redeveloped                                                                                                                 | 2016-21 | 12<br>(0.29 ha)                  |
| H13.11 | Victoria Road,<br>Shell Corner                                                                | Older industrial units mixed with<br>housing and narrow road layout                                                                                         | 2021-26 | 65<br>(1.92 ha)                  |
| H13.12 | Lyde Green /<br>Cradley Road,<br>Cradley                                                      | Row of industrial units of varying<br>quality and size opposite housing.<br>Part of site has permission for<br>residential development.                     | 2021-26 | 40<br>(1.7ha)                    |
| H13.14 | East of Balds Lane,<br>Lye                                                                    | Industrial site with housing on two<br>sides of its boundary. Potential for<br>a range of development options.                                              | 2021-26 | 68<br>(2.6 ha)                   |
| H13.15 | Bott Lane / Dudley<br>Road, Lye                                                               | Mix of commercial and industrial<br>uses – redevelopment would help<br>to make more efficient use of land                                                   | 2021-26 | 43<br>(1.25 ha)                  |
| H13.16 | Land off Engine<br>Lane, Lye (south of<br>railway)                                            | Vacant site - range of options<br>considered including industrial,<br>residential or mixed uses close to<br>Lye centre                                      | 2021-26 | 68<br>(1.7 ha)                   |
| H13.19 | North of<br>Providence Street /<br>South of the<br>Railway line, Lye                          | Restricted access to north part of<br>the site via Dudley Road.<br>Redevelopment may require<br>comprehensive approach with<br>access via Providence Street | 2021-26 | 58<br>(1.46 ha out<br>of 5.0 ha) |
| H13.23 | Rufford Road,<br>Stourbridge                                                                  | Old industrial premises close to<br>Stourbridge Junction Station and<br>Car Park                                                                            | 2021-26 | 67<br>(1.9 ha)                   |
| H13.24 | Land east of<br>Dudley Road, north<br>of the railway line,<br>Lye including<br>Bromley Street | Mixed industrial area.<br>Redevelopment will involve<br>mainly employment retention and<br>peripheral housing where suitable                                | 2021-26 | 200<br>(9.37 Ha)                 |
| H13.25 | South Of<br>Stourbridge Road,<br>Lye                                                          | Builders Yard site – possible<br>redevelopment site for a range of<br>possible uses.                                                                        | 2021-26 | 15<br>(0.5 ha)                   |

|                        |                                                |                                                                                                 |         |                 |
|------------------------|------------------------------------------------|-------------------------------------------------------------------------------------------------|---------|-----------------|
| H13.26                 | West of Engine Lane, north of the railway, Lye | Range of options considered including industrial, residential or mixed uses close to Lye centre | 2016-21 | 90<br>(6.0 ha)  |
| H13.27                 | East of Engine Lane, south of the railway, Lye | Range of options considered including industrial, residential or mixed uses close to Lye centre | 2016-21 | 35<br>(1.25 ha) |
| H13.28                 | Clinic Drive, Lye                              | Mixed Use site for Community Uses or supermarket provision with peripheral housing              | 2021-26 | 10<br>(0.9 ha)  |
| <b>TOTAL PROPOSALS</b> |                                                |                                                                                                 |         | <b>1597</b>     |

## Employment Areas and Opportunity Sites

### Local Quality Areas

| Ref    | Site Address                                           | Description                                                                                                                                                                 | Floorspace / Area |
|--------|--------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------|
| E13.1  | Fairfield Park Industrial Estate, off Fairfield Road   | Self contained established industrial estate                                                                                                                                | 3.2 ha            |
| E13.2  | Nimmings Road / Station Road, Blackheath               | Row of industrial units of varying quality and size                                                                                                                         | 2.2 ha            |
| E13.3  | Vernon Trading Estate and Acorn Park, Shell Corner     | Small modern units in a predominantly residential area                                                                                                                      | 2.3 ha            |
| E13.4  | Maypole Fields, Quarry Bank                            | Row of industrial units of varying quality and size either side of Maypole fields                                                                                           | 3.9 ha            |
| E13.6  | The Hayes                                              | Large area of industrial land stretching from Park Lane in the east to Thorns Road in the west, contains a range of quite good quality industrial to the east of Hayes Lane | 56.6 ha           |
| E13.12 | Stambermill                                            | Well occupied industrial area offering a range of industrial premises                                                                                                       | 14.0 ha           |
| E13.14 | Gainsborough Trading Estate, Rufford Road, Stourbridge | Range of premises from small units to large occupiers.                                                                                                                      | 3.7 ha            |

### Employment Opportunity Sites

| Ref    | Site Address                            | Description                                                                                 | Phasing | Floorspace / Area |
|--------|-----------------------------------------|---------------------------------------------------------------------------------------------|---------|-------------------|
| ES13.1 | Land south of Cakemore Road, Blackheath | Mixed Use site for housing and/or employment uses jointly with H13.1 (11 hectares in total) | 2016-21 | 5.5 ha            |

|        |                           |                                                                         |         |        |
|--------|---------------------------|-------------------------------------------------------------------------|---------|--------|
| ES13.2 | Station Road, Blackheath  | Underused site with scope for extension or more intensive redevelopment | 2016-21 | 1.3 ha |
| ES13.3 | Land off Timmis Road, Lye | Small development site to the west of Timmis Road                       | 2016-21 | 0.6 ha |
| ES13.5 | Folkes Road, Lye          | Vacant Industrial site within the Hayes Industrial area                 | 2016-21 | 0.6 ha |

## Regeneration Corridor 14 - Coombswood to Halesowen

### Overview

Regeneration Corridor 14 lies in the south eastern corner of the Borough running from Halesowen Town Centre in its south western corner northwards to the boundary with Sandwell and Corridor 13 at Old Hill.

The Corridor is centred on the Coombswood Industrial Estate as one of the Borough's High Quality Employment Areas running from north to south along most of the length of the Corridor to the east of the Dudley Road (A459) and Coombs Road. It includes the industrial areas around Hereward Rise and the A458 Mucklow Hill.

The Corridor is outside the Coal Authority High Risk area as no shallow workings exist. However former mine entries are recorded in the north of the Corridor. Further details are within the Sustainability Appraisal and Site Implementation and Delivery Plan accompanying this Document

### Spatial Strategy

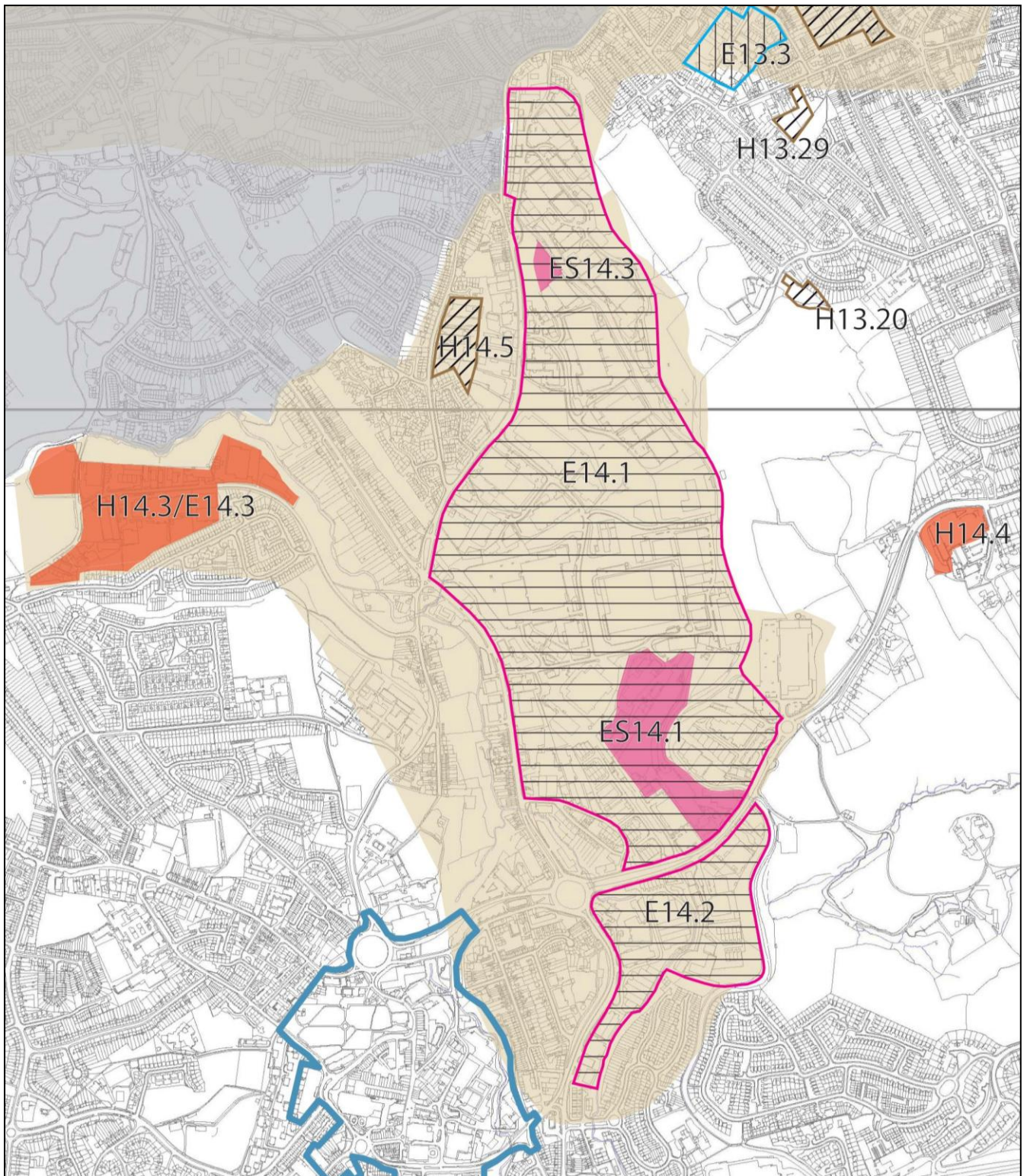
This Corridor will be the focus for high quality employment centred on Coombswood with a well connected public transport system and improved access to the M5 Motorway. High quality residential areas will also be developed close to Halesowen Town Centre, improving its vitality with good walking and cycling links to the Centre as well as to recreational areas at Leasowes Park and the surrounding green belt areas.

By 2026 regeneration of this corridor will provide another example of the new Black Country through the creation of quality environments based on enhancing existing assets to serve both the demands of high technology-led business and aspirational homes for knowledge workers required to achieve the Black Country Vision and Strategy for Growth and Competitiveness.

The Corridor will also be a significant part of the biodiversity network, supporting and encouraging biodiversity and the penetration of habitats into the sub-region from the surrounding green belt areas and the Leasowes Historic Park.



## REGENERATION CORRIDOR 14 - SITE ALLOCATIONS MAP





## TOTAL HOUSING PROVISION FOR THE CORRIDOR

|                                                        |            |
|--------------------------------------------------------|------------|
| <b>Completions 2006-2015</b>                           | <b>77</b>  |
| <b>Under Construction as at March 2015</b>             | <b>14</b>  |
| <b>Proposed Housing Site Allocations</b>               | <b>210</b> |
| <b>TOTAL HOUSING PROVISION IN CORRIDOR (2006-2026)</b> | <b>301</b> |

## TOTAL EMPLOYMENT LAND FOR THE CORRIDOR

|                                                                         |             |
|-------------------------------------------------------------------------|-------------|
| <b>High Quality (hectares)</b>                                          | <b>85</b>   |
| <b>Local Quality (hectares)</b>                                         | <b>9</b>    |
| <b>Employment Opportunity Sites – High and Local Quality (hectares)</b> | <b>4.1</b>  |
| <b>TOTAL EMPLOYMENT LAND IN CORRIDOR (2026)</b>                         | <b>98.1</b> |

## Housing

### Proposed Housing Site Allocations

| <b>Ref</b>             | <b>Site Address</b>                           | <b>Description</b>                                                          | <b>Phasing</b> | <b>Number of Dwellings (Area)</b> |
|------------------------|-----------------------------------------------|-----------------------------------------------------------------------------|----------------|-----------------------------------|
| H14.4                  | Mucklow Headquarters, Mucklow Hill, Halesowen | Planning permission for 66 residential dwellings on office site             | 2016-21        | 66<br>(1.5 ha)                    |
| H14.5                  | Land off Lodgefield Road, Halesowen           | Older outdated industrial premises on either side of Lodgefield Road        | 2021-26        | 65<br>(1.9 ha)                    |
| H14.3 / E14.3          | Shelah Road / Haysech Road                    | Retention of industrial area except for some peripheral housing development | 2021-26        | 79<br>(2.5 ha)                    |
| <b>TOTAL PROPOSALS</b> |                                               |                                                                             |                | <b>210</b>                        |

## Employment Areas and Opportunity Sites

### High Quality Areas

| Ref   | Site Address                                                       | Description                                                                                                                                                                                                                                        | Area    |
|-------|--------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------|
| E14.1 | Coombswood Estate, Halesowen Industrial Park, Forge Trading Estate | Centred on Coombswood Trading Estate, Halesowen Industrial Park, Heywood Forge and Forge trading Estate. Large range of premises sizes as well as high quality, modern environment with good access to the motorway network via the M5 Junction 3. | 74 ha   |
| E14.2 | Shenstone and Belfont Trading Estates                              | Relatively modern estate with few voids and well connected to the motorway network (Junction 3 of the M5) – approximately 1.5 miles/ 3 minutes away.                                                                                               | 11.0 ha |

### Local Quality Areas

| Ref           | Site Address                | Description                                                                 | Area   |
|---------------|-----------------------------|-----------------------------------------------------------------------------|--------|
| E14.3 / H14.3 | Shelah Road / Hayseech Road | Retention of industrial area except for some peripheral housing development | 9.0 ha |

### Employment Opportunity Sites

| Ref    | Site Address                               | Description                                                             | Phasing | Floorspace / Area |
|--------|--------------------------------------------|-------------------------------------------------------------------------|---------|-------------------|
| ES14.3 | Steelpark Road                             | Small vacant site within the Coombswood Trading Estate                  | 2016-21 | 0.4 ha            |
| ES14.1 | Heywood Forge, off Mucklow Hill, Halesowen | Possible long term redevelopment for purpose-built industrial premises. | 2021-26 | 3.7 ha            |

## Regeneration Corridor 16 - Dudley Town Centre to Coseley

### Overview

Regeneration Corridor 16 runs from the northern edge of Corridor 11a from Castle Hill and the Black Country Living Museum north and east of the A4123 and then runs northwards through Coseley up to the Borough boundary with Wolverhampton City Council. The spine of the corridor is formed by the Birmingham Canal and part of the Birmingham to Wolverhampton section of the West Coast Mainline where it crosses the Borough. Within the Black Country Core Strategy, the Corridor also includes areas of Sandwell to the east including Tipton and Princes End but not included in this Document.

The Corridor includes Coseley and its local shopping area at Roseville and Coseley Railway Station. The Corridor also includes local employment areas at Bloomfield Road / Budden Road as well as Gough Road / Darkhouse Lane which is in need of redevelopment and regeneration.

The area has a significant coal mining legacy with evidence of extensive former mine entries and shallow mine workings present within the Corridor. Further details are within the Sustainability Appraisal and Site Implementation and Delivery Plan accompanying this Document.

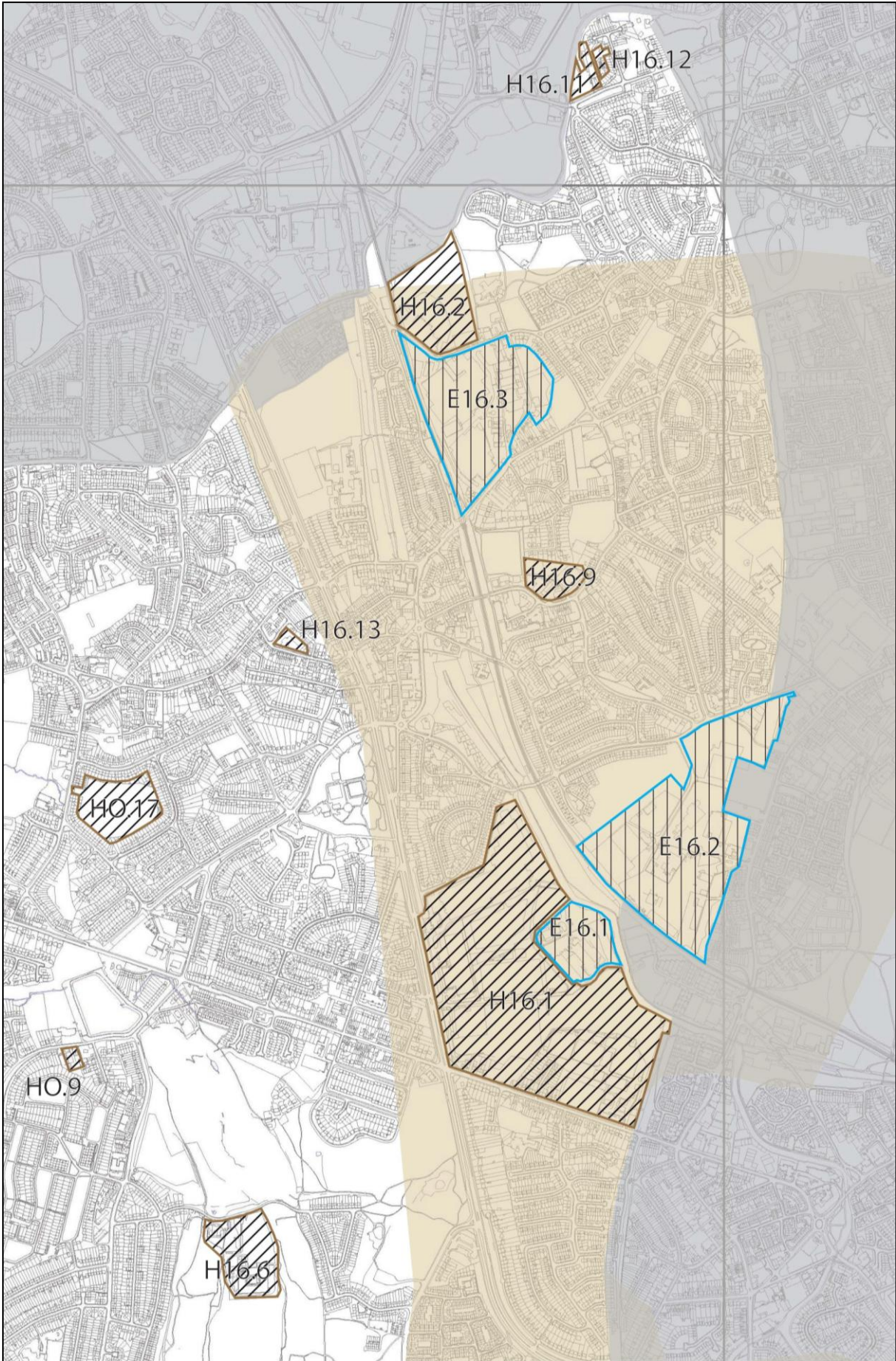
### Spatial Strategy

The Strategy for this corridor will be to create new, high quality residential communities on low quality, under-used employment land. This transformation alone will improve the environment of the area and attract and retain a thriving local population. The additional housing will also benefit the local centres of Coseley (Roseville) by providing a larger population catchment.

Transport links will be improved through the enhancement of Coseley Station. There is good access to green space in this corridor due to the presence of significant open spaces and town parks. However, access to these spaces from new residential areas will need to be improved. Access to nature conservation sites, e.g. Wrens Nest National Nature Reserve, will also be improved where appropriate.

Local character and heritage is particularly important in this area due to Dudley Castle and the Black Country Museum being in close proximity. Opportunities to enhance links to these areas, particularly by canal, will be pursued.

REGENERATION CORRIDOR 16 - SITE ALLOCATIONS MAP





## TOTAL HOUSING PROVISION FOR THE CORRIDOR

|                                                        |             |
|--------------------------------------------------------|-------------|
| <b>Completions 2006-2015</b>                           | <b>439</b>  |
| <b>Under Construction as at March 2015</b>             | <b>0</b>    |
| <b>Proposed Housing Site Allocations (Corridor 16)</b> | <b>1190</b> |
| <b>TOTAL HOUSING PROVISION IN CORRIDOR (2006-2026)</b> | <b>1629</b> |

## TOTAL EMPLOYMENT LAND FOR THE CORRIDOR

|                                                                         |             |
|-------------------------------------------------------------------------|-------------|
| <b>High Quality (hectares)</b>                                          | <b>0</b>    |
| <b>Local Quality (hectares)</b>                                         | <b>23.9</b> |
| <b>Employment Opportunity Sites – High and Local Quality (hectares)</b> | <b>0</b>    |
| <b>TOTAL EMPLOYMENT LAND IN CORRIDOR (2026)</b>                         | <b>23.9</b> |

## Housing

### Housing Site Allocations

| <b>Ref</b> | <b>Site Address</b>                                                           | <b>Description</b>                                                                                              | <b>Phasing</b> | <b>Number of Dwellings (Area)</b> |
|------------|-------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------|----------------|-----------------------------------|
| H16.1      | Land off B'ham New Road / Sedgley Road West (Former Bean Road Factory Estate) | Site is being promoted as a possible Housing Zone                                                               | 2016-26        | 925<br>(27.3 ha)                  |
| H16.2      | Land off Darkhouse Lane, Coseley                                              | Former heavy industry site with associated contamination.                                                       | 2016-21        | 127<br>(5.29 ha)                  |
| H16.6      | Mons Hill, Wrens Hill Road, Dudley                                            | Former Mons Hill Campus of Dudley College                                                                       | 2016-21        | 80<br>(2.45 ha)                   |
| H16.9      | Land off Peartree Lane / Old Meeting Road, Coseley                            | Former Swimming Baths site for housing led, mixed use development depending on relocation of existing occupiers | 2016-21        | 20<br>(0.59 ha)                   |
| H16.11     | Highfields Rd, Coseley                                                        | Vacant land adjacent to residential premises                                                                    | 2016-21        | 13<br>(0.4 ha)                    |
| H16.12     | Davies Avenue, Coseley                                                        | Vacant land to the rear of industrial premises                                                                  | 2016-21        | 9<br>(0.3 ha)                     |

|                        |                                |                                          |         |                 |
|------------------------|--------------------------------|------------------------------------------|---------|-----------------|
| H16.13                 | Mount Pleasant Street, Coseley | Infill development in a residential area | 2016-21 | 16<br>(0.33 ha) |
| <b>TOTAL PROPOSALS</b> |                                |                                          |         | <b>1190</b>     |

## Employment Areas

### Local Quality Employment Area

| Ref   | Site Address                                   | Description                                                                                          | Area    |
|-------|------------------------------------------------|------------------------------------------------------------------------------------------------------|---------|
| E16.1 | Bean Road, Coseley                             | Two large recycling uses at the edge of a proposed housing area                                      | 3.65 ha |
| E16.2 | Bloomfield Road / Budden Road                  | Retention of local employment area                                                                   | 12 ha   |
| E16.3 | Darkhouse Lane, Webb Street and Foundry Street | Retention of local employment area known as Cannon Business Park and surrounding industrial premises | 8.25 ha |

## Outside of the Regeneration Corridors

### TOTAL HOUSING PROVISION OUTSIDE OF THE REGENERATION CORRIDORS AND TOWN CENTRES

|                                                                                                                             |              |
|-----------------------------------------------------------------------------------------------------------------------------|--------------|
| <b>Completions 2009-2015 (outside Regeneration corridors and centres)</b>                                                   | 1871         |
| <b>Under Construction as at March 2015</b>                                                                                  | 523          |
| <b>Proposed Housing Site Allocations in Freestanding Employment Areas</b><br>South of Netherton = 174<br>Upper Gornal = 124 | 298          |
| <b>Proposed Housing Site Allocations (Outside of the Growth Network)</b>                                                    | 419          |
| <b>TOTAL HOUSING PROVISION OUTSIDE OF THE REGENERATION CORRIDORS (2006-2026)</b>                                            | <b>3,111</b> |

### TOTAL EMPLOYMENT LAND OUTSIDE OF THE REGENERATION CORRIDORS

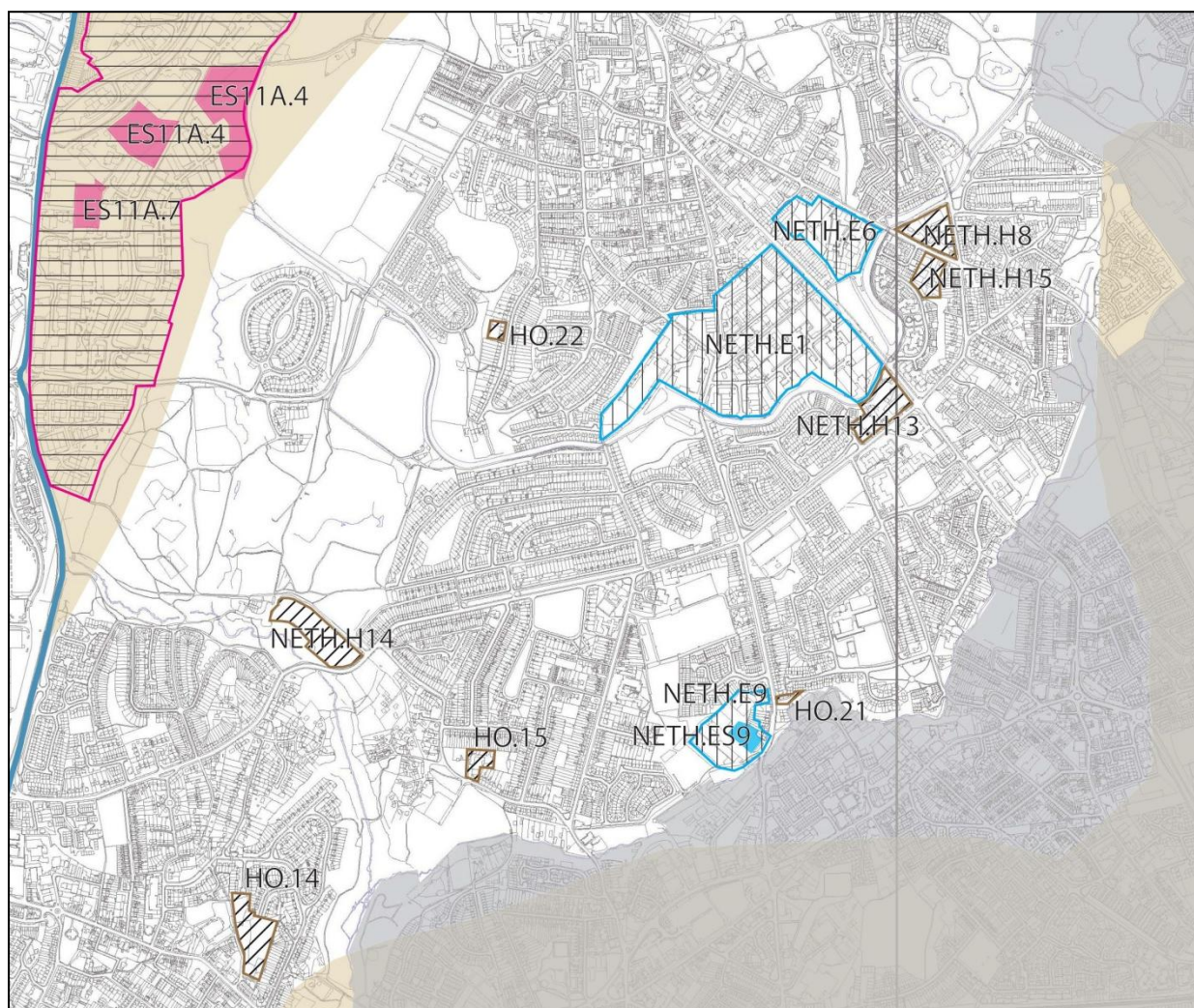
|                                                                           |             |
|---------------------------------------------------------------------------|-------------|
| <b>Proposed High Quality (hectares)</b>                                   | 0           |
| <b>Proposed Local Quality (hectares)</b>                                  | 22.6        |
| <b>Employment Opportunity Sites – High Quality (hectares)</b>             | 0           |
| <b>TOTAL EMPLOYMENT LAND OUTSIDE OF THE REGENERATION CORRIDORS (2026)</b> | <b>22.6</b> |



## South of Netherton (Free Standing Employment Sites)

This is an area of Local Employment lying to the south of Netherton District Centre running along and between the two main roads of Cradley Road and Halesowen Road. It contains the largest industrial Estate outside of the Regeneration Corridors at the Washington Centre as well as pockets of smaller industry of varying quality.

## SOUTH OF NETHERTON – SITE ALLOCATIONS MAP



## Housing

### Housing Site Allocations

| Ref      | Site Address   | Description                                                        | Phasing | Number of Dwellings (Area) |
|----------|----------------|--------------------------------------------------------------------|---------|----------------------------|
| NETH.H14 | Saltwells Road | Vacant industrial premises on the edge of Saltwells Nature Reserve | 2016-21 | 61 (1.75 ha)               |

|                        |                                                             |                                                                                                                                       |         |                 |
|------------------------|-------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------|---------|-----------------|
| NETH.H8                | St Peters Rd/<br>Northfield Rd /<br>Canalside,<br>Netherton | Poor and outdated industrial<br>buildings and layout. Mainly<br>vacant or derelict. Surrounding<br>area is predominantly residential. | 2016-21 | 42<br>(1.2Ha)   |
| NETH.H13               | Corner of<br>Halesowen Rd<br>/ Saltwells Rd,<br>Netherton   | Furniture warehouse and other<br>buildings of varying size and age.<br>Some buildings of historic value<br>near to the canal.         | 2016-21 | 49<br>(1.4 Ha)  |
| NETH.H15               | South of<br>Northfield<br>Road                              | Poor and outdated industrial<br>buildings and layout. Surrounding<br>area is predominantly residential.                               | 2021-26 | 22<br>(0.62 ha) |
| <b>TOTAL PROPOSALS</b> |                                                             |                                                                                                                                       |         | <b>174</b>      |

## Employment Areas and Opportunity Site

### Local Quality Areas

| Ref      | Site Address                                    | Description                                                                                                                                                             | Area    |
|----------|-------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------|
| NETH. E1 | Washington<br>Centre, Netherton                 | Large employment area to the south of<br>Netherton. Mixture of large modern units<br>and older industrial premises with direct<br>access onto the A459 (Halesowen Road) | 14.3 Ha |
| NETH.E9  | Westminster<br>Industrial Estate,<br>Cradley Rd | Well maintained and recently<br>refurbished. Includes a vacant<br>opportunity site                                                                                      | 2.4 Ha  |
| NETH.E6  | Northfield Rd,<br>Netherton                     | Railwharf sidings and adjacent industry<br>off Northfield Road                                                                                                          | 2.5 Ha  |

### Employment Opportunity Sites

| Ref      | Site Address               | Description                                                                    | Phasing | Area    |
|----------|----------------------------|--------------------------------------------------------------------------------|---------|---------|
| NETH.ES9 | Cradley Road,<br>Netherton | Vacant site, centrally located<br>within the Westminster<br>Industrial Estate. | 2011-16 | 0.40 ha |



### Upper Gornal (Freestanding Employment Site)

This is another area of Employment land outside of the Regeneration Corridors of varying quality which is in need of regeneration or redevelopment. The area runs south of Jews Lane and is primarily made up of the Dormston Trading Estate and the Sovereign Works.

The area has a significant coal mining legacy with evidence of extensive former mine entries and shallow mine workings present within the Corridor. Further details are within the Sustainability Appraisal and Site Implementation and Delivery Plan accompanying this Document.

### GORNAL – SITE ALLOCATIONS MAP



## Housing

### Housing Site Allocations

| Ref                    | Site Address                                    | Description                                                                                        | Phasing | Number of Dwellings (Area) |
|------------------------|-------------------------------------------------|----------------------------------------------------------------------------------------------------|---------|----------------------------|
| UG.H1                  | Sovereign Works off Deepdale Lane, Upper Gornal | Large older industrial buildings sub-divided. Poor access. Possible redevelopment opportunity site | 2021-26 | 124<br>(4.65Ha)            |
| <b>TOTAL PROPOSALS</b> |                                                 |                                                                                                    |         | <b>124</b>                 |

## Employment Areas and Opportunity Sites

### Local Quality Areas

| Ref   | Site Address                                | Description                                                                                                                                                                                                                                                   | Area   |
|-------|---------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------|
| UG.E1 | Dormston Trading Estate, Jew's Lane, Gornal | Small to medium sized industrial area, this is the only area in the north-west part of the borough that is proposed to be specifically safeguarded for local employment purposes. It has good access onto the strategic highway network – A459 (Burton Road). | 3.0 Ha |

## Other Housing Sites outside of the Growth Network

### Housing

### Housing Site Allocations

| Ref   | Site Address                         | Description                                               | Phasing | Number of Dwellings (Area) |
|-------|--------------------------------------|-----------------------------------------------------------|---------|----------------------------|
| HO.9  | Turley Street, Woodsetton            | Vacant land in a predominantly residential area           | 2016-21 | 7<br>(0.34 ha)             |
| HO.10 | Ruiton St / Colwall Rd, Lower Gornal | Vacant Land previously allocated in a residential area    | 2016-21 | 19<br>(0.46ha)             |
| HO.11 | High Oak / Swan Street, Pensnett     | Part of a mixed use proposal within Pensnett Local Centre | 2016-21 | 8<br>(0.25 ha)             |

|                        |                                            |                                                                         |         |                  |
|------------------------|--------------------------------------------|-------------------------------------------------------------------------|---------|------------------|
| HO.12                  | Summit Place,<br>Gornal Wood               | Land adjacent to Public House in residential area                       | 2016-21 | 15<br>(0.43 ha)  |
| HO.15                  | Land off Quarry Road,<br>Mushroom Green    | Industrial site adjacent to residential area.                           | 2016-21 | 15<br>(0.45 ha)  |
| HO.17                  | Bourne Street,<br>Coseley                  | Former refuse tip site in need of remediation works                     | 2016-21 | 53<br>(2.57 ha)  |
| HO.19                  | Holloway Street,<br>Lower Gornal           | Former Education Centre in a residential area                           | 2016-21 | 15<br>(0.6 ha)   |
| HO.20                  | Majors Fold,<br>Lower Gornal               | Greenfield site to rear of residential properties                       | 2016-21 | 20<br>(0.64 ha)  |
| HO.21                  | Cradley Road,<br>Netherton                 | Land to the east of Cradley Road opposite Westminster Industrial Estate | 2016-21 | 6<br>(0.3 ha)    |
| HO.22                  | Hockley Lane<br>Netherton                  | Former pub site in a residential area                                   | 2016-21 | 12<br>(0.4ha)    |
| HO.23                  | The Portway,<br>Kingswinford               | Former Public House with large car park within a residential area       | 2016-21 | 14<br>(0.35 ha)  |
| HO.13                  | Gibbons Refractories,<br>Coopers Bank Road | Industrial Site which would come forward if company relocates           | 2021-26 | 180<br>(4.53 ha) |
| HO.14                  | Rose Hill,<br>Quarry Bank                  | Vacant site with fragmented ownership                                   | 2021-26 | 55<br>(1.89 ha)  |
| <b>TOTAL PROPOSALS</b> |                                            |                                                                         |         | <b>419</b>       |

## **PART THREE – DISTRICT AND LOCAL CENTRES**

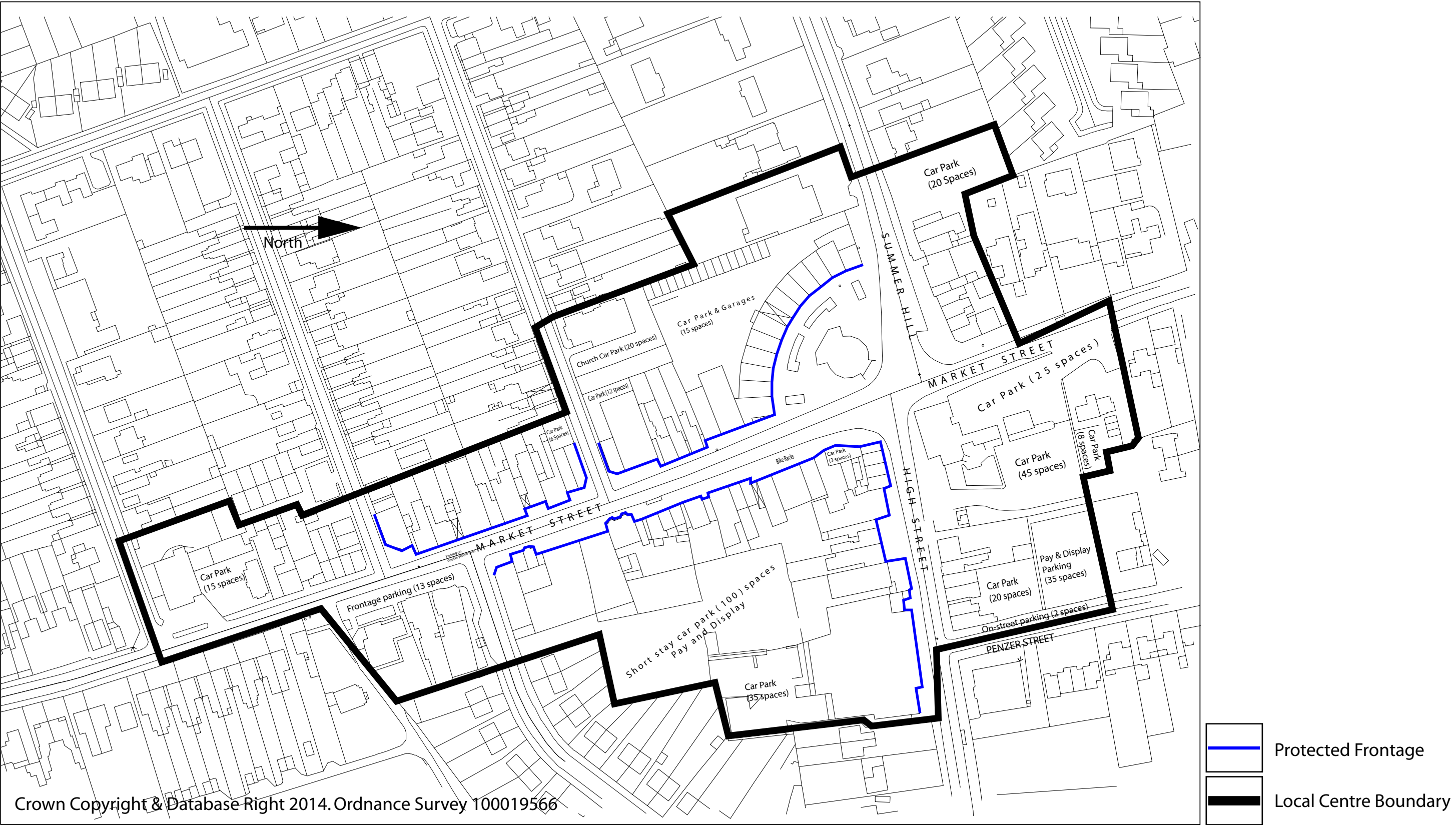




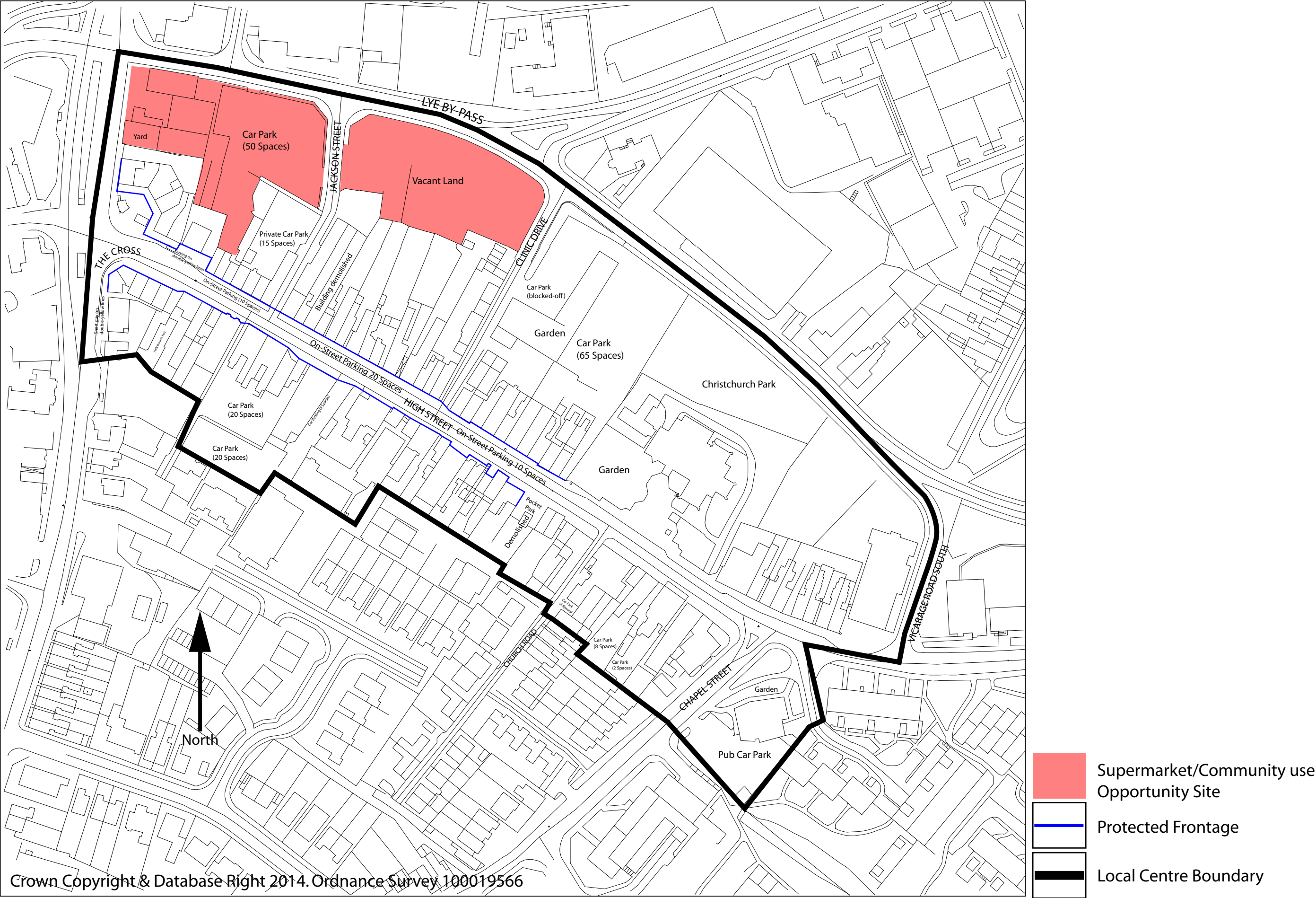
## **DISTRICT CENTRES**

**Kingswinford  
Lye  
Sedgley**

# Kingswinford District Centre

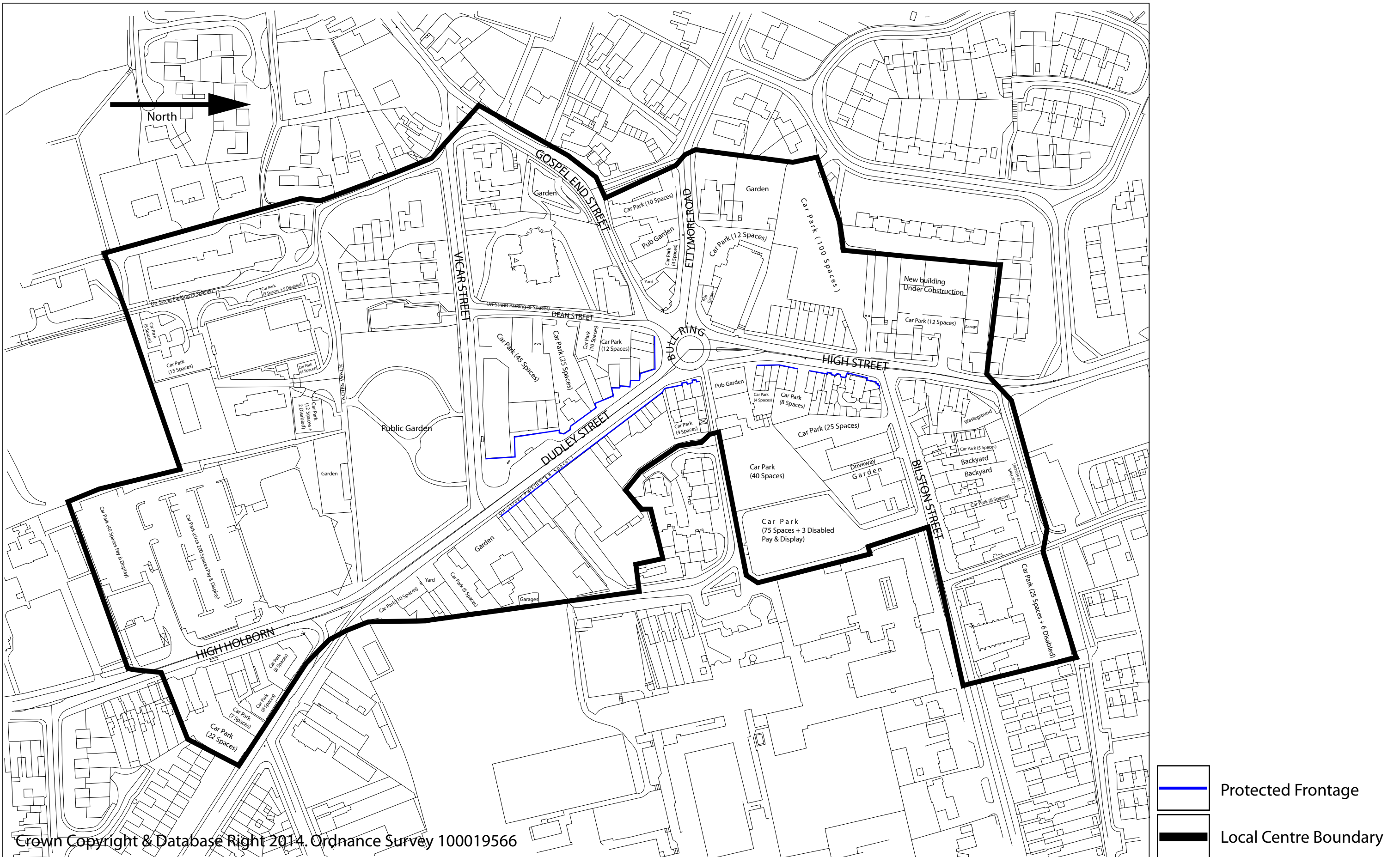


# Lye District Centre





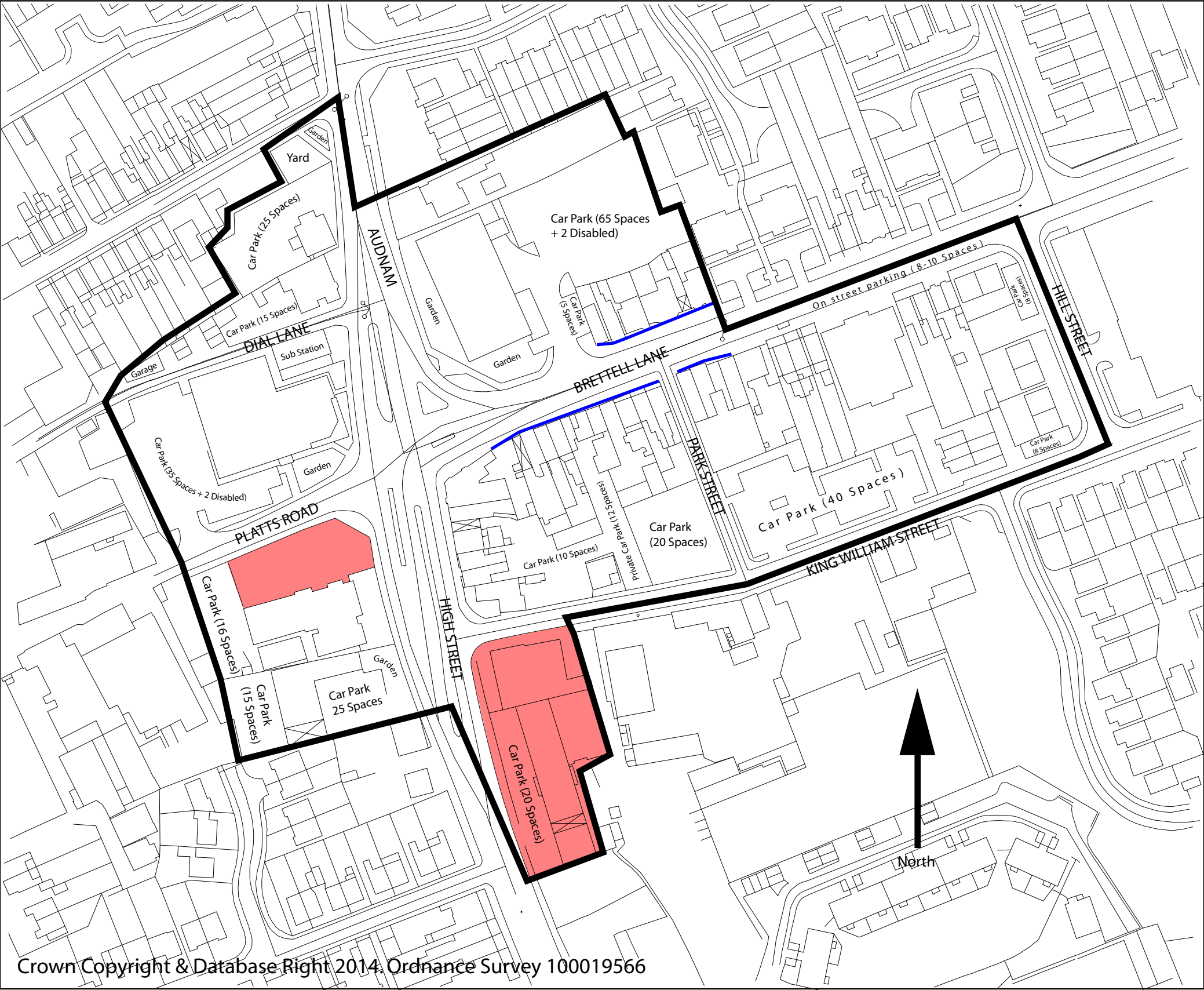
# Sedgley District Centre



## **LOCAL CENTRES**

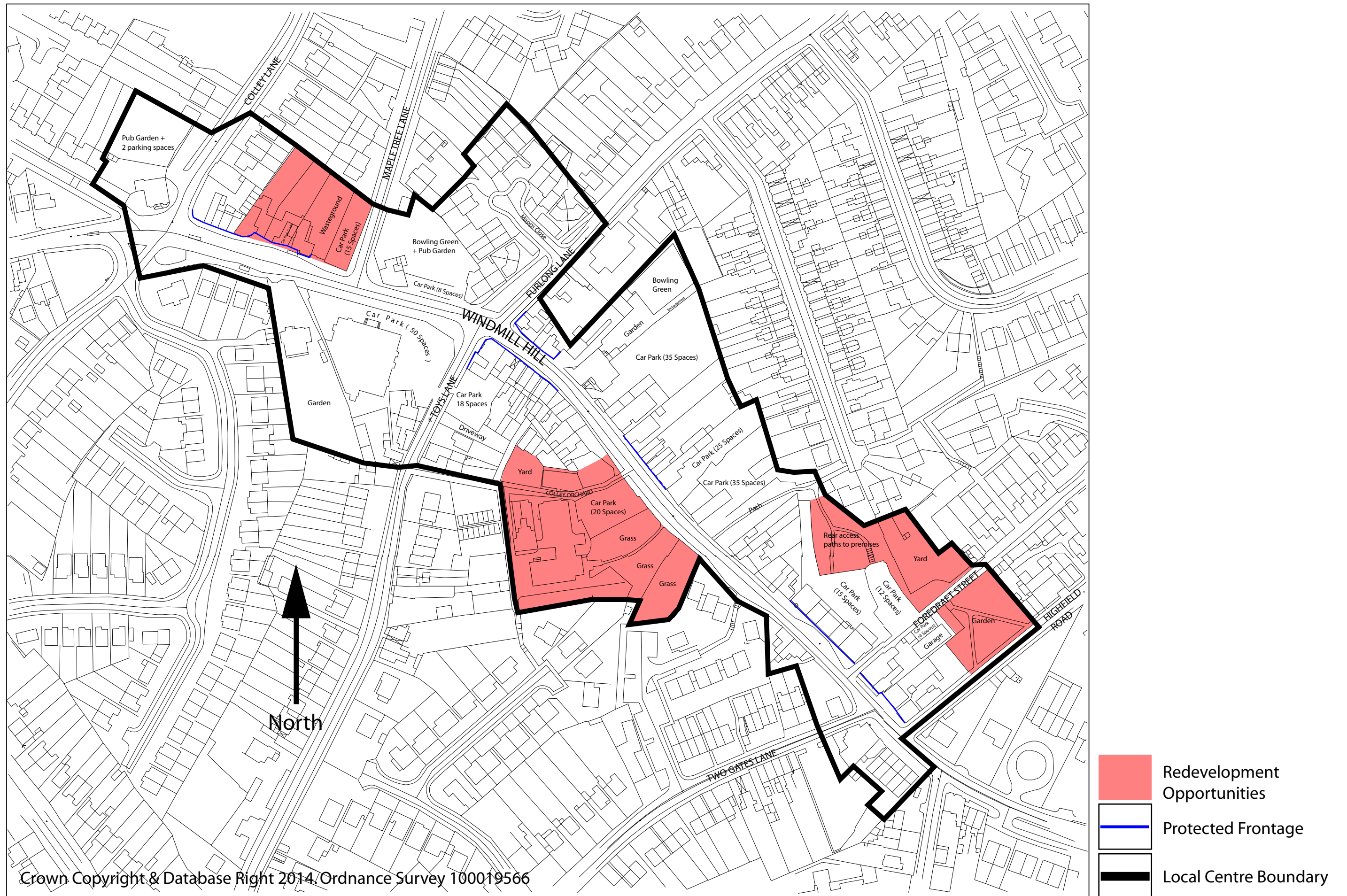
**Amblecote  
Cradley  
Gornal Wood  
Hawne  
Netherton  
Oldswinford  
Pensnett  
Quarry Bank  
Roseville  
Shell Corner  
Stag  
Upper Gornal  
Wall Heath  
Wollaston  
Wordsley**

# Amblecote Local Centre



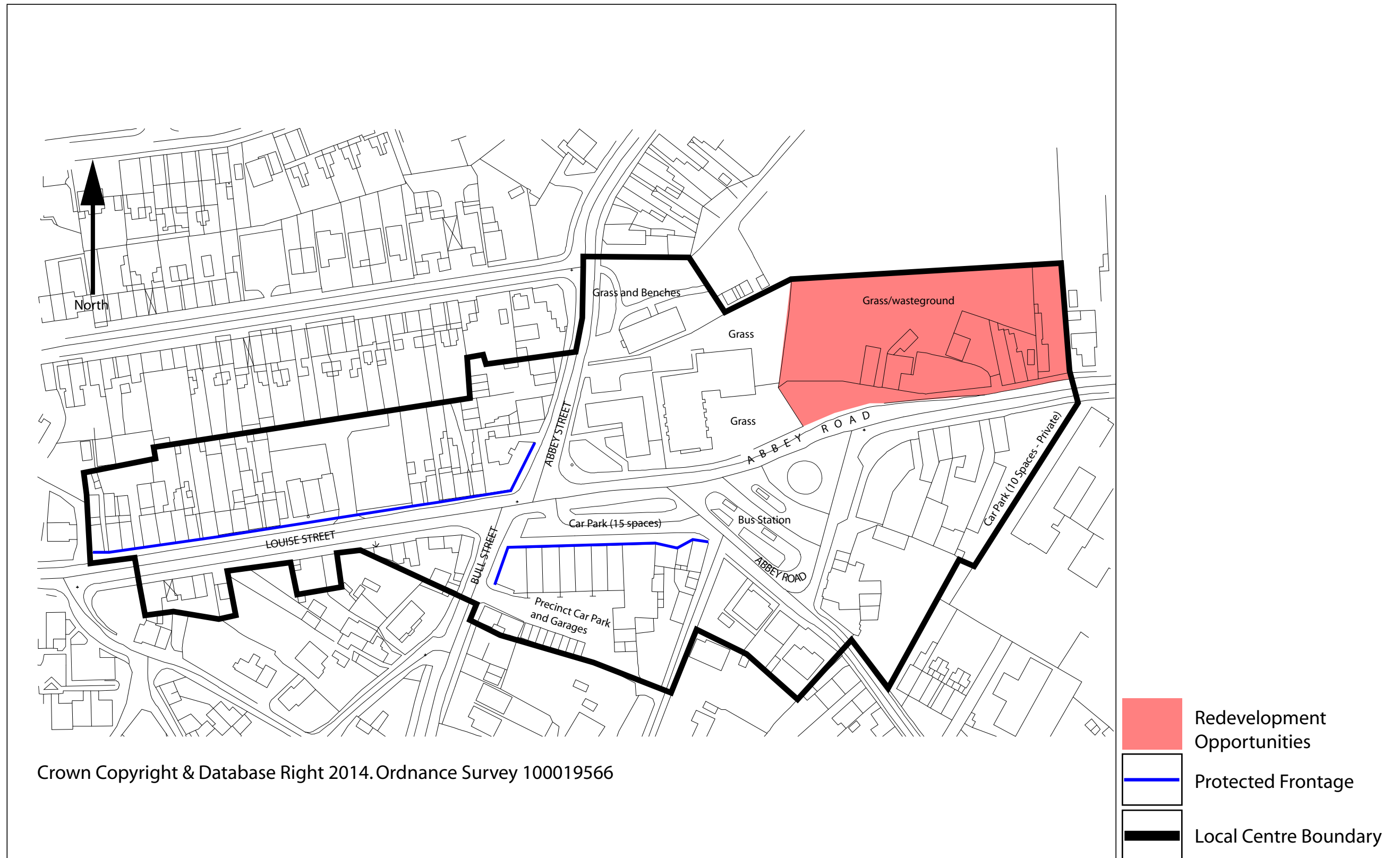


# Cradley/Windmill Hill Local Centre

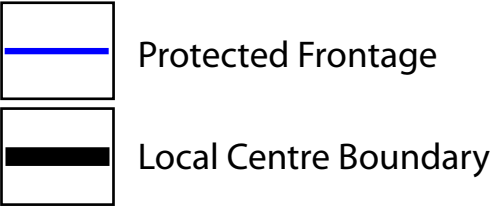
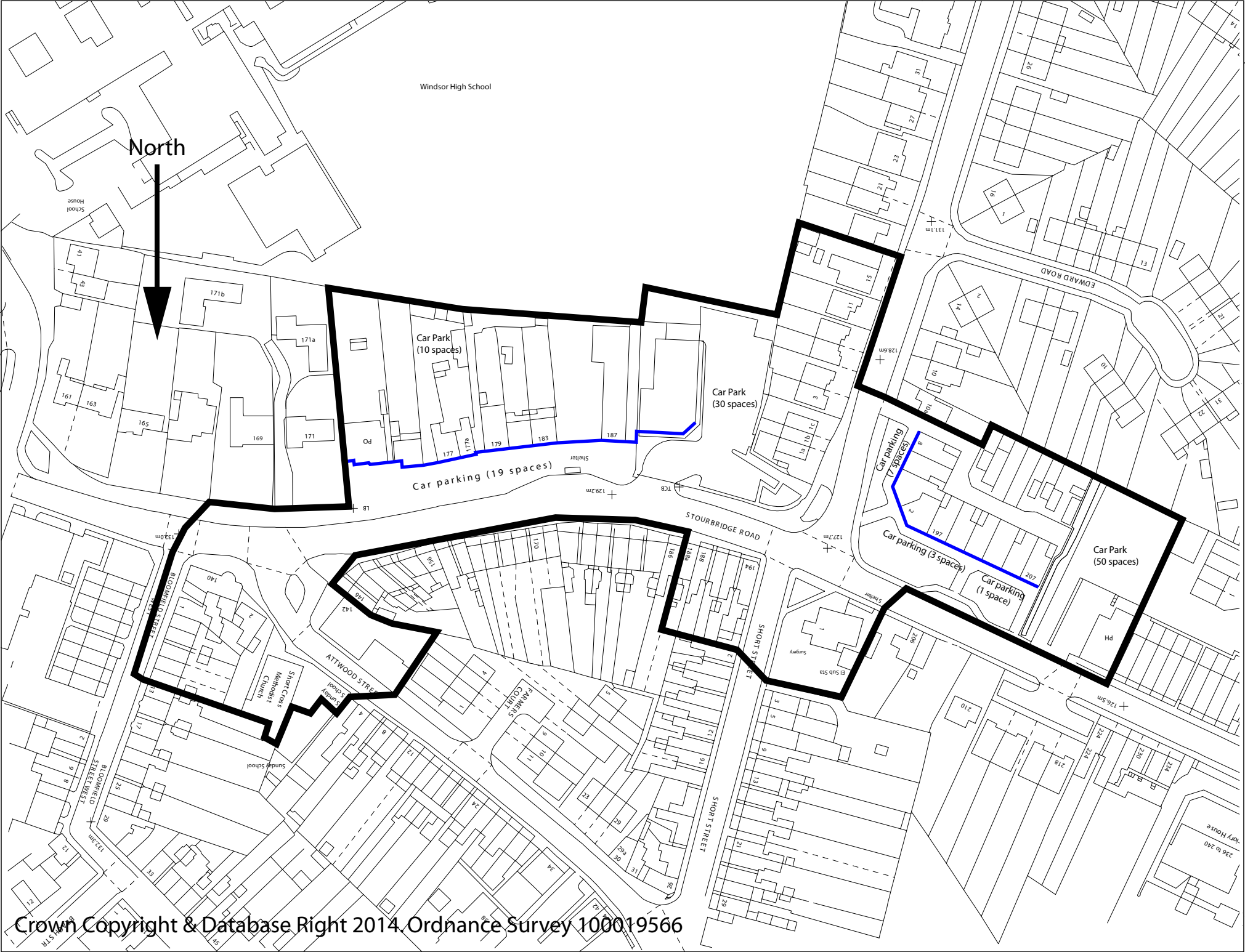




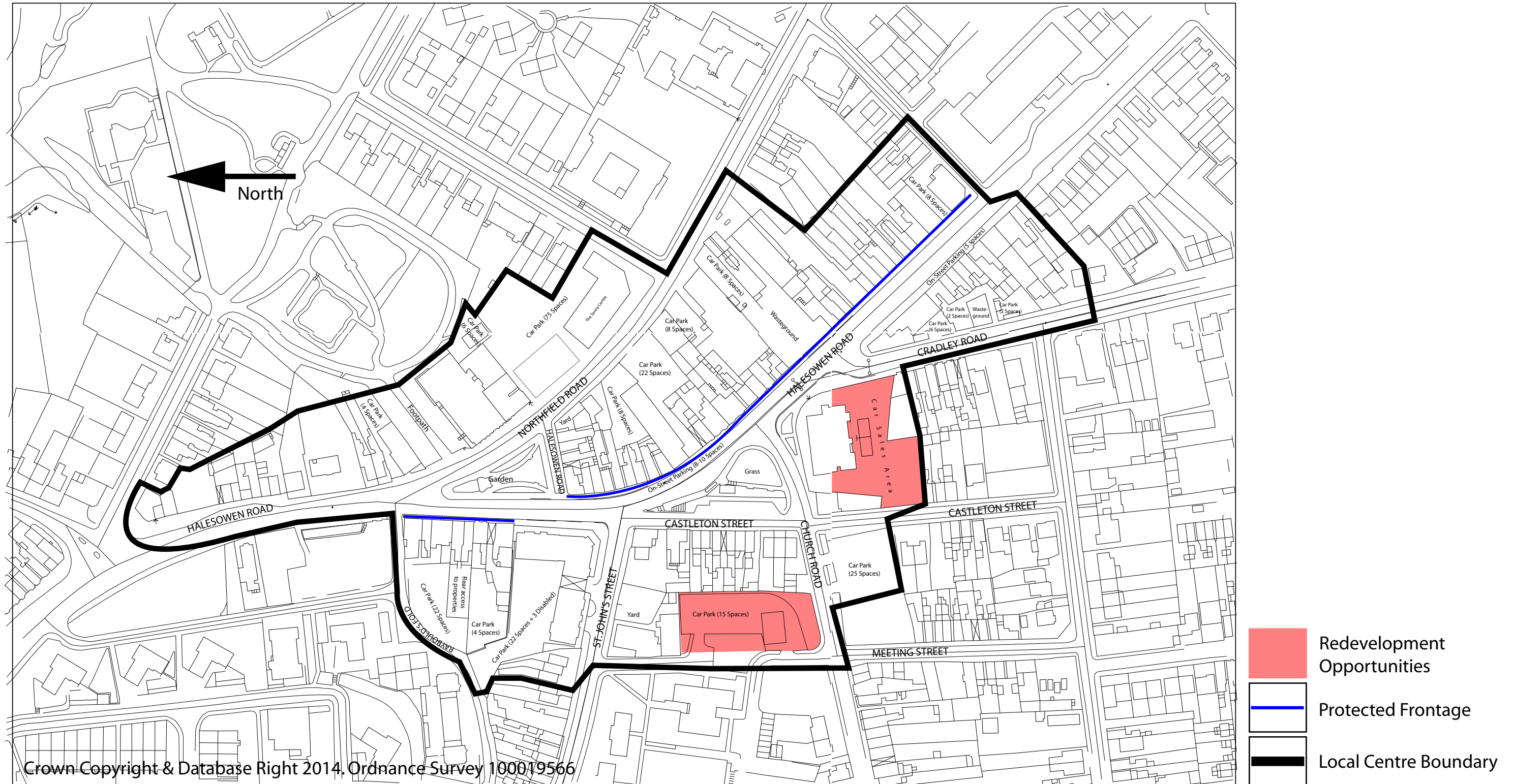
# Gornal Wood Local Centre



# Hawne Local Centre



# Netherton Local Centre





This is a detailed Ordnance Survey map of a residential area in Northampton. The map shows a network of streets including Hagley Road, Rectory Road, Swincross Road, and Rectory Close. A large area is outlined in black, and a smaller area is outlined in blue. A north arrow is present in the bottom right corner. The map includes various features such as buildings, gardens, and a car park. The text 'Crown Copyright & Database Right 2014. Ordnance Survey 100019566' is visible in the bottom left corner.

Crown Copyright & Database Right 2014. Ordnance Survey 100019566



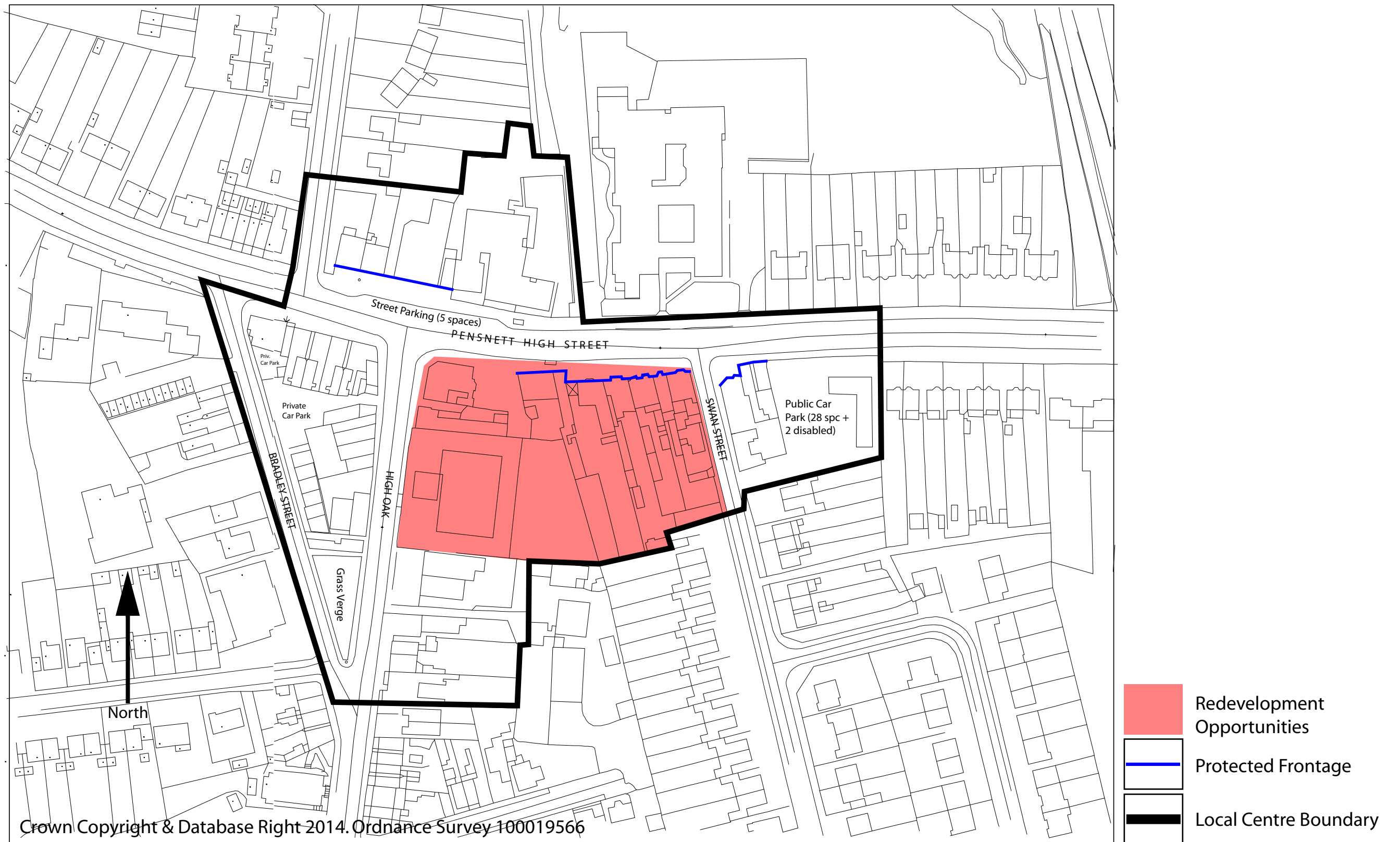
North



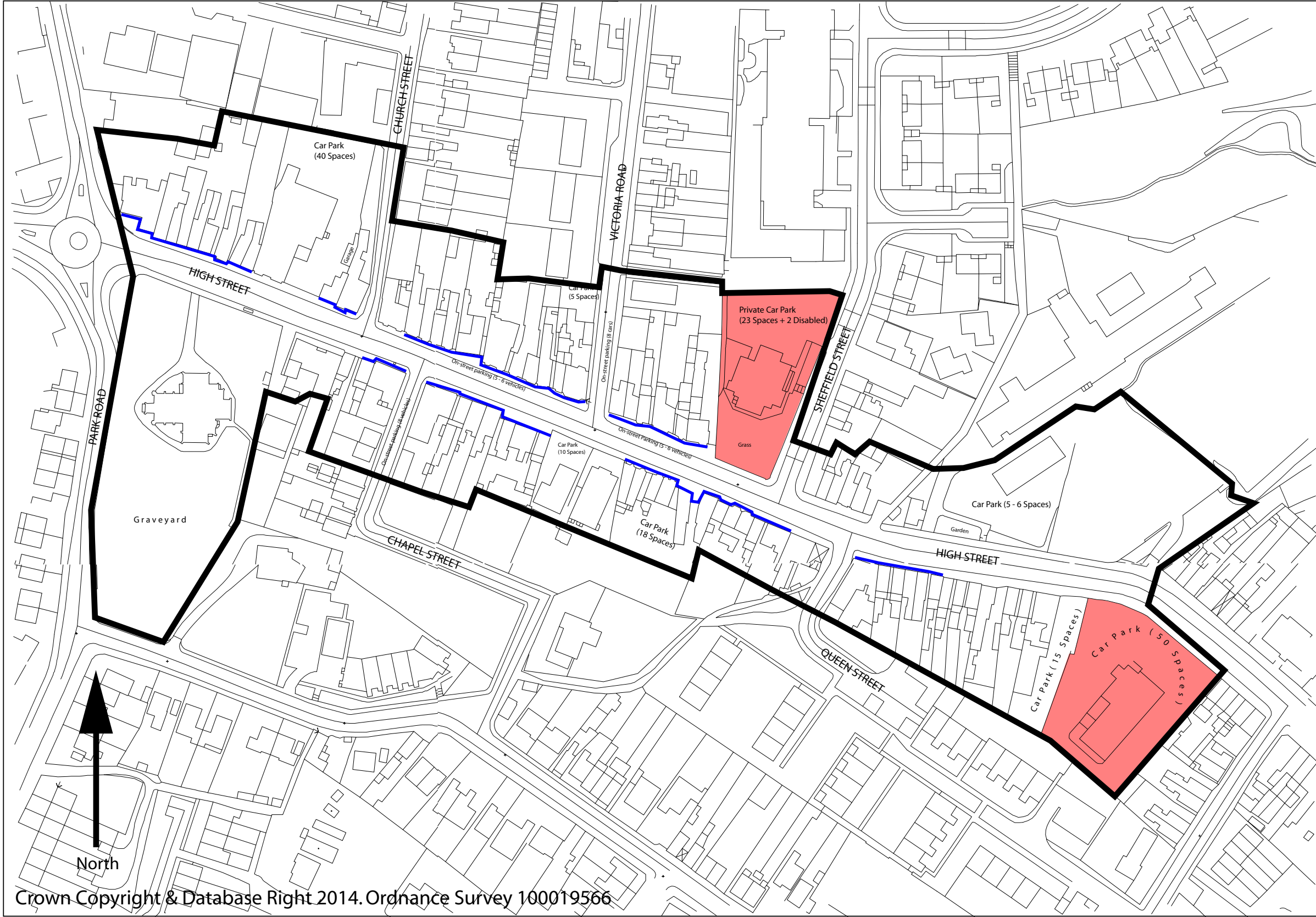
## Protected Frontage

### Local Centre Boundary

# Pensnett Local Centre



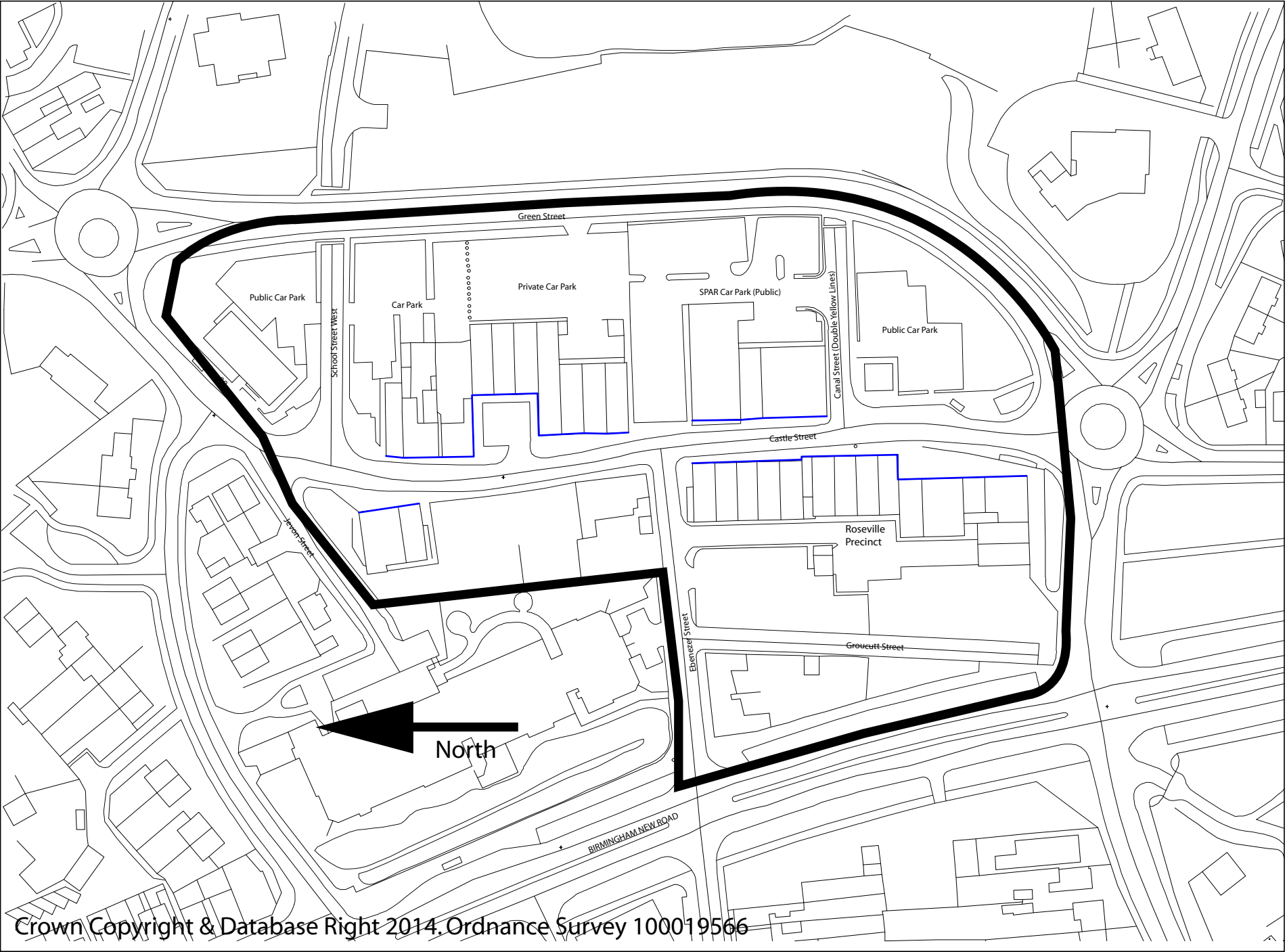
# Quarry Bank Local Centre



- Redevelopment Opportunities
- Protected Frontage
- Local Centre Boundary

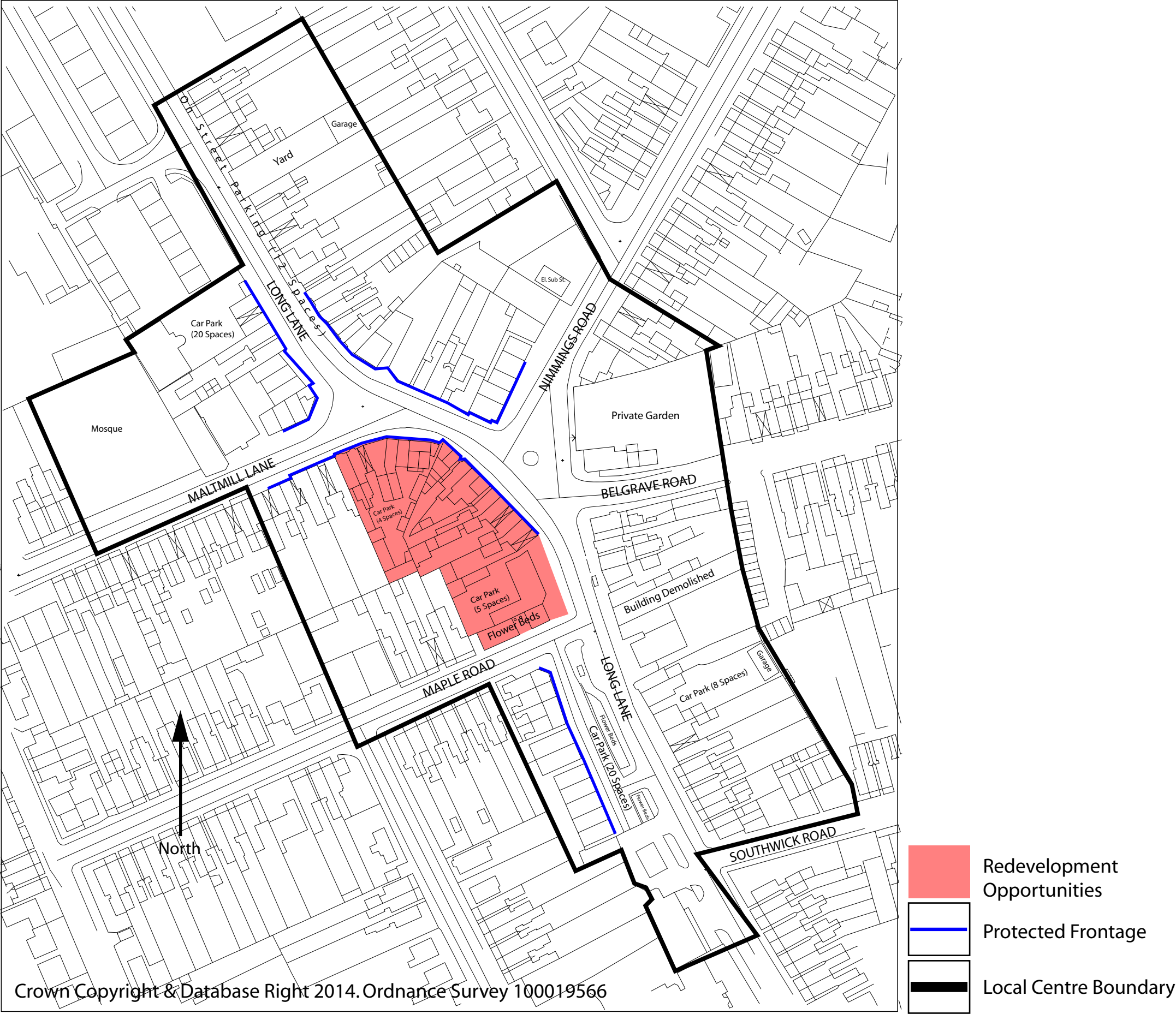


# Roseville Local Centre

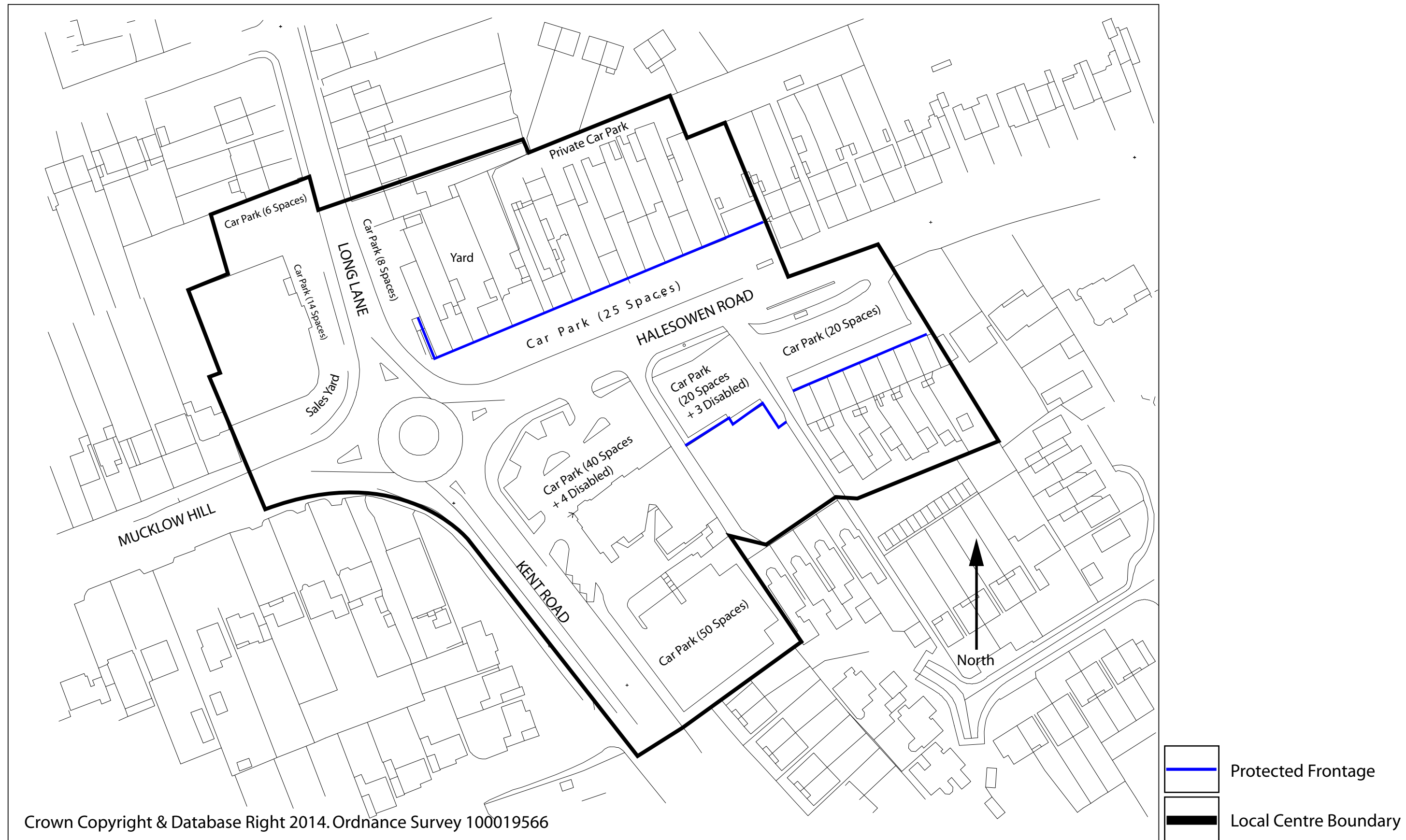


- Protected Frontage
- Local Centre Boundary

# Shell Corner Local Centre

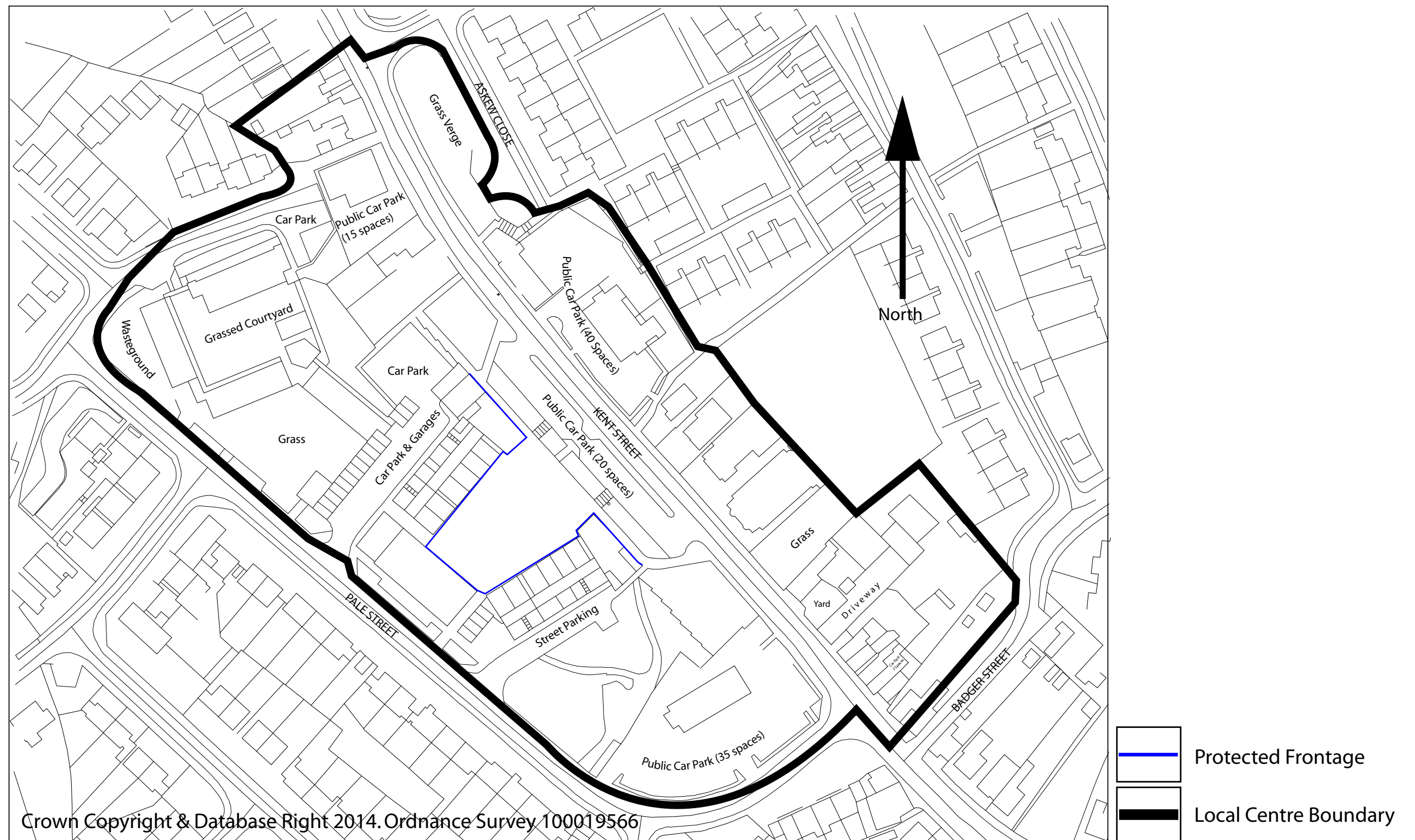


# The Stag Local Centre

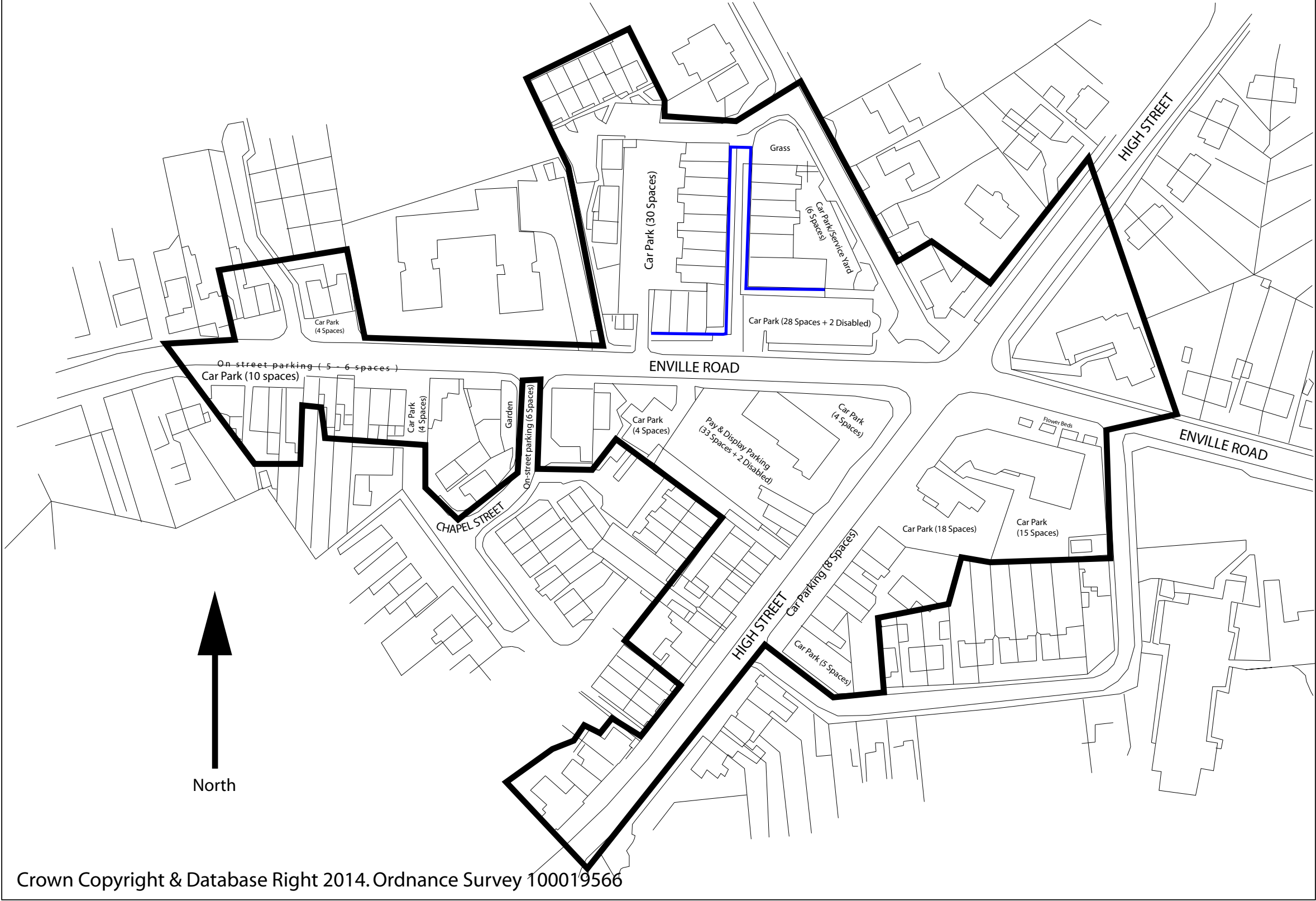




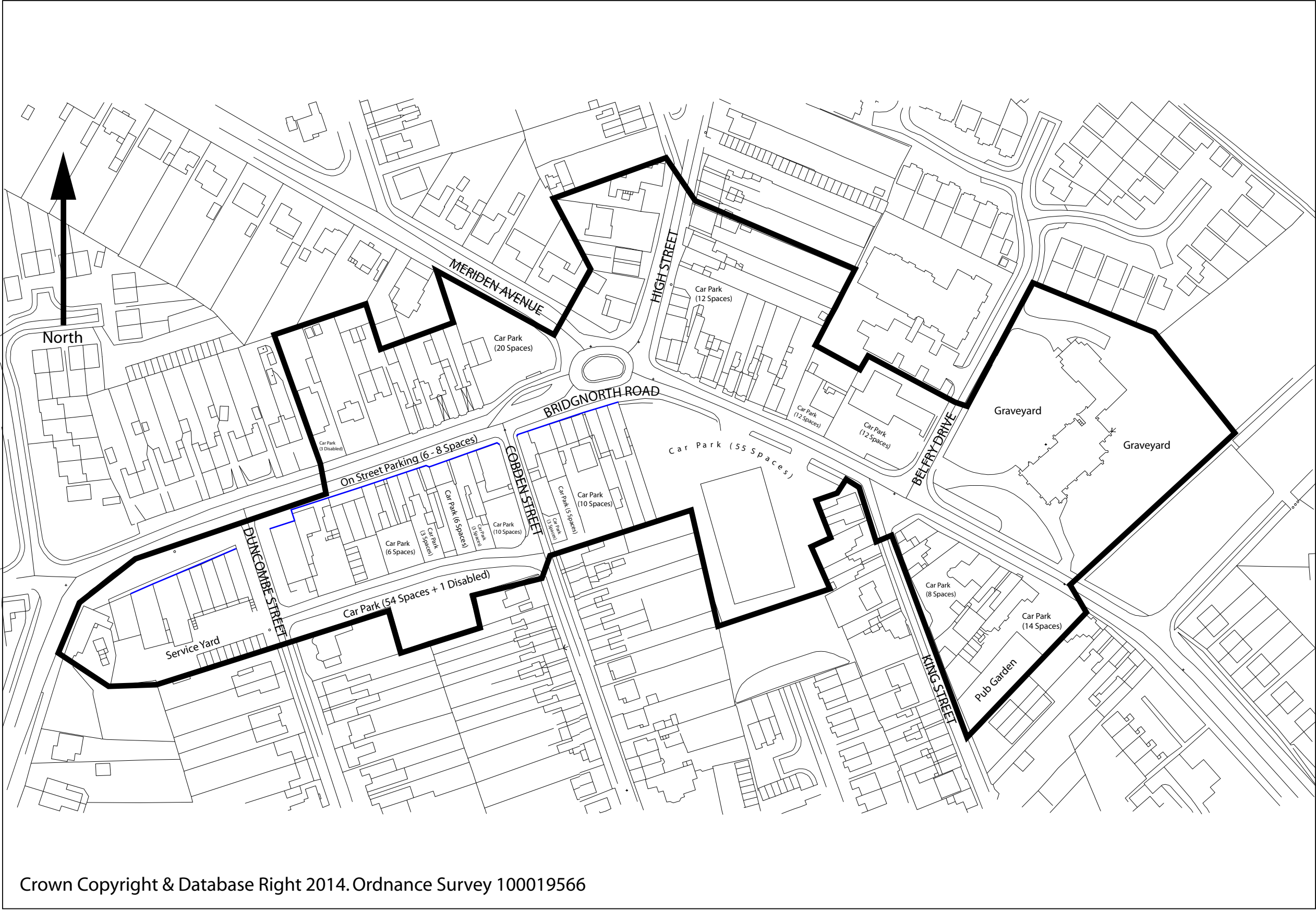
# Upper Gornal Local Centre



# Wall Heath Local Centre

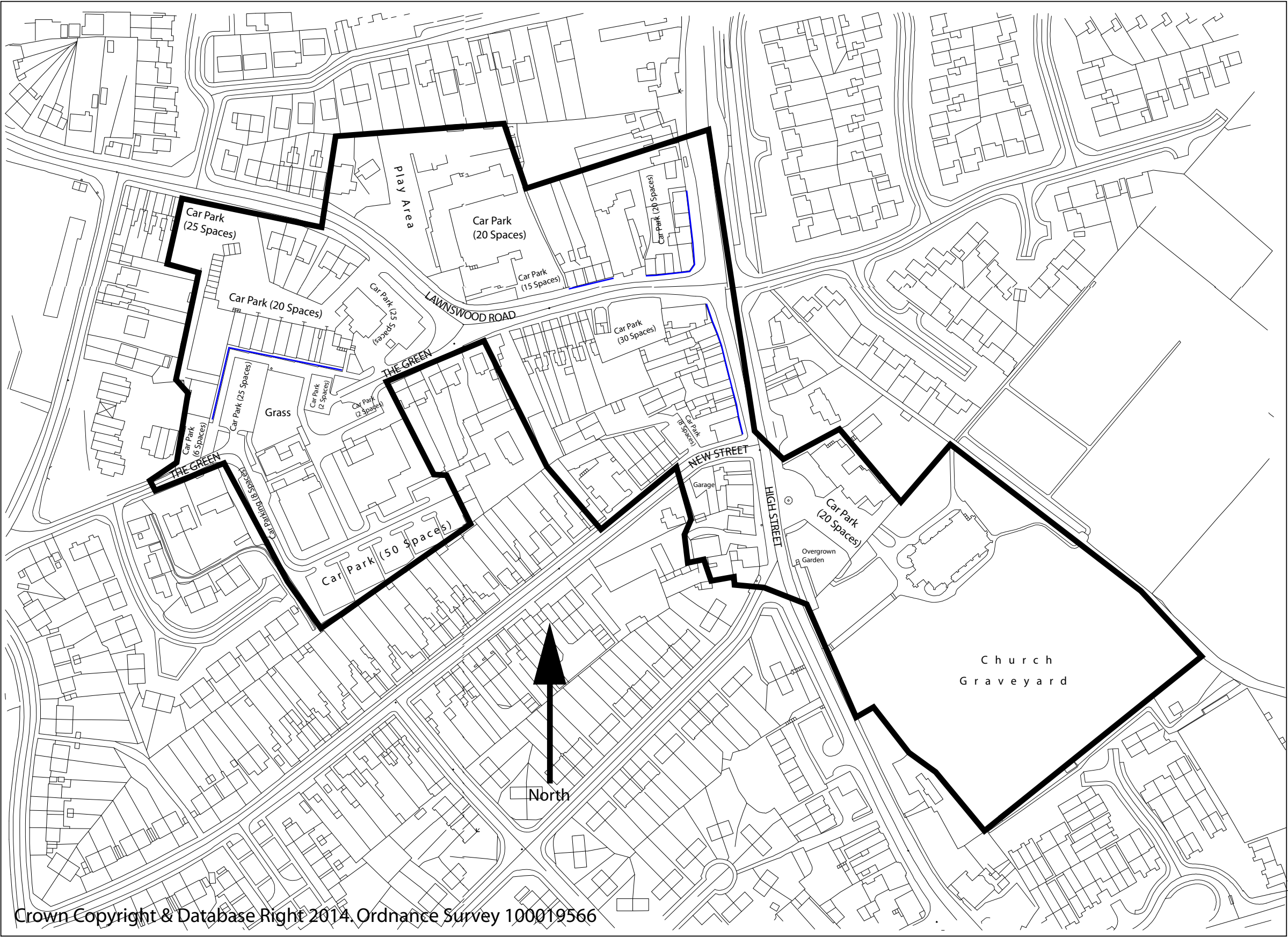


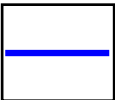
# Wollaston Local Centre





# Wordsley Local Centre



-  Protected Frontage
-  Local Centre Boundary

## **APPENDIX 1**

### **PROPOSALS MAP**

**(Separately attached)**



## **APPENDIX 2**

### **UNITARY DEVELOPMENT PLAN POLICIES TO BE SUPERSEDED BY THIS DOCUMENT**



## **APPENDIX 2: UNITARY DEVELOPMENT PLAN POLICIES TO BE SUPERSEDED BY THIS DOCUMENT**

| <b>SUPERSEDED UDP POLICY</b>                    | <b>REPLACED BY BOROUGH<br/>DEVELOPMENT STRATEGY POLICY</b>                                                                                                          |
|-------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Policy DD1 Urban Design                         | Policy S6 Urban Design                                                                                                                                              |
| Policy DD2 Mixed Use                            | Policy S6 Urban Design<br>Policy L8 Protecting the Viability and Integrity of Industrial and Business Uses (in part)<br>Regeneration Corridors and Site Allocations |
| Policy DD3 Design of Retail Development         | Policy S6 Urban Design                                                                                                                                              |
| Policy DD4 Development in Residential Areas     | Policy L1 Housing Development, extensions and alterations to existing dwellings<br>Policy D2 Incompatible Land Uses (in part)                                       |
| Policy DD5 Development in Industrial Areas      | Policy L8 Protecting the Viability and Integrity of Industrial and Business Uses (in part)<br>Policy D2 Incompatible Land Uses (in part)                            |
| Policy DD9 Public Art                           | Policy S6 Urban Design (in part)<br>Black Country Core Strategy Policy CSP4 Place Making (in part)                                                                  |
| Policy DD10 Nature Conservation and Development | Policy S21 Nature Conservation Enhancement, Mitigation and Compensation<br>Policy S5 - Minimising Flood Risk and Sustainable Drainage Systems (in part)             |
| Policy DD13 Telecommunications                  | Policy D8 Telecommunication Installations                                                                                                                           |
| Policy DD14 Advertisement Control               | Policy D12 Control of Advertisements                                                                                                                                |



|                                                         |                                                                                                                       |
|---------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------|
| Policy UR3 Tipton Road Development Area                 | Regeneration Corridor 11a Site Allocations<br>Dudley Area Action Plan Opportunity Site 7                              |
| Policy UR4 Harts Hill Regeneration and Development Area | Regeneration Corridor 11a<br>Brierley Hill Area Action Plan (Harts Hill Chapter)                                      |
| Policy UR6 Housing Renewal Areas                        | Regeneration Corridors Vision and Site Allocations                                                                    |
| Policy UR8 Derelict Land                                | Policy D3 Contaminated Land                                                                                           |
| Policy UR9 Contaminated Land                            | Policy D3 Contaminated Land                                                                                           |
| Policy UR10 Unstable Land                               | Policy D4 Unstable Land                                                                                               |
| Policy CR4 Protected Frontages                          | Policy L9 District and Local Centres Protected Frontages. Dudley, Halesowen and Stourbridge Area Action Plan policies |
| Policy CR13 Residential Development in Centres          | Policy L10 Living over Shops. Dudley, Halesowen and Stourbridge Area Action Plan policies                             |
| Policy AM13 Public Rights of Way                        | National legislation and law on Public Rights of Way                                                                  |
| Policy CS1 Special Needs Accommodation                  | Policy L2 Supported Accommodation                                                                                     |
| Policy CS3 Community Facilities                         | Policy S2 Planning for a Healthy Borough<br>Black Country Core Strategy Policy HOU5                                   |
| Policy CS5 New Burial Sites                             | Policy S35 Burial Land including Cemeteries and Crematoriums                                                          |
| Policy LR1 Open Space                                   | Policy S29 Public Open Space                                                                                          |
| Policy LR3 Children's Play Areas                        | Policy S31 Children's Play Areas                                                                                      |
| Policy LR4 Young Persons Informal Recreation            | Policy S29 Public Open Space                                                                                          |
| Policy LR5 Playing Fields                               | Policy S33 Playing Fields                                                                                             |
| Policy LR6 Protection of Sport and                      | Policy S28 Sports Facilities and                                                                                      |

|                                                        |                                                                                                                                                                                                                      |
|--------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Recreation Facilities                                  | Stadiums<br>Black Country Core Strategy Policy<br>ENV6 Open Space Sport and Recreation                                                                                                                               |
| Policy LR7 Major Sports Facilities                     | Policy S28 Sports Facilities and Stadiums                                                                                                                                                                            |
| Policy LR9 Allotments                                  | Policy S34 Allotments                                                                                                                                                                                                |
| Policy NC1 Biodiversity                                | Policy S21 Nature Conservation Enhancement, Mitigation and Compensation<br>Policy S20 The Borough's Geology (in part)<br>Policy S1 Presumption in favour of Sustainable Development (in part)                        |
| Policy NC6 Wildlife Species                            | Policy S21 Nature Conservation Enhancement, Mitigation and Compensation (in part)<br>Policy S19 Dudley Borough's Green Network (in part)<br>Black Country Core Strategy Policy<br>ENV1 Nature Conservation (in part) |
| Policy NC7 Geological Resource                         | Policy S20 The Borough's Geology                                                                                                                                                                                     |
| Policy NC9 Mature Trees                                | Policy S22 Mature Trees, Woodland and Ancient Woodland                                                                                                                                                               |
| Policy NC10 The Urban Forest                           | Policy S22 Mature Trees, Woodland and Ancient Woodland (in part)                                                                                                                                                     |
| Policy HE3 Castle Hill Special Landscape Heritage Area | Policy S13 Areas of High Historic Landscape Value (AHHLV)<br>Policy S15 Heritage Assets of Archaeological Interest, Scheduled Ancient Monuments and Archaeological Priority Areas (in part)                          |
| HE4 Conservation Areas                                 | Policy S9 Conservation Areas                                                                                                                                                                                         |
| HE5 Buildings of Local Historic Importance             | Policy S11 Buildings of Local Historic or Architectural Importance                                                                                                                                                   |
| HE6 Listed Buildings                                   | Policy S10 Listed Buildings                                                                                                                                                                                          |
| HE7 Canals                                             | Policy S25 Canals                                                                                                                                                                                                    |

|                                                                |                                                                                                                      |
|----------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------|
|                                                                | Policy S26 Residential Canal Moorings                                                                                |
| HE8 Archaeology and Information                                | Policy S15 Heritage Assets of Archaeological Interest, Scheduled Ancient Monuments and Archaeological Priority Areas |
| HE10 Sites of Regional Importance (Ancient Monuments)          | Policy S15 Heritage Assets of Archaeological Interest, Scheduled Ancient Monuments and Archaeological Priority Areas |
| HE11 Archaeology and Preservation                              | Policy S15 Heritage Assets of Archaeological Interest, Scheduled Ancient Monuments and Archaeological Priority Areas |
| SO1 Green Belt                                                 | Policy S23 Green Belt<br>Policy S24 Agricultural and Rural Workers Dwellings                                         |
| SO2 Linear Open Space                                          | Policy S19 Dudley Borough's Green Network                                                                            |
| SO3 Access and Enhancement of Green Belt and Linear Open Space | Policy S19 Dudley Borough's Green Network                                                                            |
| SO4 Agriculture                                                | Policy S23 Green Belt (in part)<br>Policy S29 Public Open Space (in part)                                            |
| SO6 Parks                                                      | Policy S32 Parks                                                                                                     |
| SO7 Corbett Hospital Open Space                                | Policy S32 Parks                                                                                                     |
| EP1 Incompatible Land Uses                                     | Policy D2 Incompatible Land Uses                                                                                     |
| EP3 Water Protection                                           | Policy S5 Minimising Flood Risk and Sustainable Drainage Systems (SuDS)                                              |
| EP6 Light Pollution                                            | Policy D6 Light Pollution                                                                                            |
| EP7 Noise Pollution                                            | Policy D5 Noise Pollution                                                                                            |

